

PART – B: GENERAL CONDITIONS OF CONTRACT

CONSTRUCTION OF 122 NOS RESIDENTIAL FLATS AT DN NAGAR,
ANDHERI (W), MUMBAI IN EPC MODE



CLIENT



CONSULTANT



STATE BANK OF INDIA

TENDER DOCUMENT Tender No.: SBI/CC/2025-26/DNN/01

**CONSTRUCTION OF 122 NOS RESIDENTIAL FLATS FOR SBI AT DN NAGAR, ANDHERI WEST MUMBAI
IN EPC MODE**

**Last date & time of submission of tenders
08.10.2025 up to 15:00 Hrs.**

Part- B General Conditions of Contract

**Client:
STATE BANK OF INDIA
PREMISES DEPARTMENT,
9th Floor , SBI Bhavan,
CORPORATE CENTRE, Nariman Point ,
MUMBAI- 400021.**

**CONSULTANTS:
PITHAVADIAN AND PARTNERS, CHENNAI
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A. GENERAL INFORMATION TO THE BIDDERS

1. DISCLAIMER:

- i) The information contained in this TENDER or information provided subsequently to Bidder(s) whether verbally or in documentary form/email by or on behalf of SBI, is subject to the terms and conditions set out in this TENDER.
- ii) This TENDER is not an offer by State Bank of India, but an invitation to receive responses from the eligible Bidders qualified through of Prequalification of Bidders.
- iii) The purpose of this TENDER is to provide the Bidder(s) with information to assist preparation of their Bid proposals. This TENDER does not claim to contain all the information each Bidder may require. Each Bidder should conduct its own investigations and analysis and should check the accuracy, reliability and completeness of the information contained in this TENDER and where necessary obtain independent advices/clarifications. Bank may in its absolute discretion, but without being under any obligation to do so, update, amend or supplement the information in this TENDER.
- iv) The Bank, its employees and advisors make no representation or warranty and shall have no liability to any person, including any Bidder under any law, statute, rules or regulations or tort, principles of restitution or unjust enrichment or otherwise for any loss, damages, cost or expense which may arise from or be incurred or suffered on account of anything contained in this TENDER or otherwise, including the accuracy, adequacy, correctness, completeness or reliability of the TENDER and any assessment, assumption, statement or information contained therein or deemed to form or arising in any way for participation in this bidding process.
- v) The Bank also accepts no liability of any nature whether resulting from negligence or otherwise, howsoever caused arising from reliance of any Bidder upon the statements contained in this TENDER.
- vi) The Bidder is expected to examine all instructions, forms, terms and specifications in this TENDER. Failure to furnish all information required under this TENDER or to submit a Bid not substantially responsive to this TENDER in all respect will be at the Bidder's risk and may result in rejection of the Bid.
- vii) The issue of this TENDER does not imply that the Bank is bound to select a Bidder or to award the contract to the Selected Bidder, as the case may be, for the Project and the Bank reserves the right to reject all or any of the Bids or Bidders without assigning any reason whatsoever before issuance of purchase order/LOI and/or its acceptance thereof by the successful Bidder as defined in Award Criteria and Award of Contract in this TENDER.

2. COST OF BID DOCUMENT:

- i) The participating Bidders shall bear all the costs associated with or relating to the preparation and submission of their Bids including but not limited to preparation, copying, postage, delivery fees, expenses associated with any demonstration or presentations which may be required by the Bank or any other costs incurred in connection with or relating to their Bid. The Bank shall not be liable in any manner whatsoever for the same or for any other costs or other expenses incurred by a Bidder regardless of the conduct or outcome of the bidding process.
- ii) The Bidder shall also submit PRE-CONTRACT INTEGRITY PACT along with technical Bid as prescribed (Form F of Part A- NIT) duly signed by the Bidder on each page and witnessed by two persons. The Pre-Contract Integrity Pact shall be stamped as applicable in the State where

it is executed. Bid submitted without Pre-Contract Integrity Pact, as per the format provided in the TENDER, shall not be considered.

3. CLARIFICATION AND AMENDMENTS ON TENDER AND PRE-BID MEETING:

- i) Bidder requiring any clarification on TENDER may notify the Bank in writing strictly as per the format given in **Annexure- I** at the address/by e-mail within the date/time mentioned in the Notice Inviting Tender (NIT).
- ii) A pre-Bid meeting will be held in person or online on the date and time specified in the Notice Inviting Tender (NIT) which may be attended by the authorized representatives of the Bidders interested to respond to this TENDER.
- iii) The queries received (without identifying source of query) and response of the Bank thereof will be posted on the Bank's website or conveyed to the Bidders.
- iv) The Bank reserves the right to amend, rescind or reissue the TENDER, at any time prior to the deadline for submission of Bids. The Bank, for any reason, whether, on its own initiative or in response to a clarification requested by a prospective Bidder, may modify the TENDER, by amendment which will be made available to the Bidders by way of corrigendum/addendum. The interested parties/Bidders are advised to check the Bank's website regularly till the date of submission of Bid document specified in the Notice Inviting Tender (NIT)/email and ensure that clarifications / amendments issued by the Bank, if any, have been taken into consideration before submitting the Bid. Such amendments/clarifications, if any, issued by the Bank will be binding on the participating Bidders. Bank will not take any responsibility for any such omissions by the Bidder. The Bank, at its own discretion, may extend the deadline for submission of Bids in order to allow prospective Bidders a reasonable time to prepare the Bid, for taking the amendment into account. Nothing in this TENDER or any addenda/corrigenda or clarifications issued in connection thereto is intended to relieve Bidders from forming their own opinions and conclusions in respect of the matters addresses in this TENDER or any addenda/corrigenda or clarifications issued in connection thereto.
- v) No request for change in commercial/legal terms and conditions, other than what has been mentioned in this TENDER or any addenda/corrigenda or clarifications issued in connection thereto, will be entertained and queries in this regard, therefore will not be entertained.
- vi) Queries received after the scheduled date and time will not be responded/acted upon.

4. MODIFICATION AND WITHDRAWAL OF BIDS:

- (i) The Bidder may modify or withdraw its Bid after the Bid's submission, provided modification, including substitution or withdrawal of the Bids, is received on e-procurement portal, prior to the deadline prescribed for submission of Bids.
- (ii) No modification in the Bid shall be allowed, after the deadline for submission of Bids.
- (iii) The Bidder may modify or withdraw its Bid after the Bid's submission, provided modification, including substitution or withdrawal of the Bids, is received on e-procurement portal, prior to the deadline prescribed for submission of Bids.

5. PERIOD OF BID VALIDITY AND VALIDITY OF PRICE QUOTED

- i) The tender and price bids shall remain valid for duration of 6 months from the last date of submission of price bid. If the tenderer withdraws his/her offer during the validity period or makes modifications in his/her original offer which are not acceptance to the Bank without prejudice to any other right or remedy the Bank shall be at liberty to forfeit the EMD.
- ii) In exceptional circumstances, the Bank may solicit the Bidders' consent to an extension of the period of validity. The request and the responses thereto shall be made in writing. A Bidder is free to refuse the request. However, in such a case, the Bank will not forfeit its EMD. However, any extension of validity of Bids or price will not entitle the Bidder to revise/modify the Bid document.
- iii) Once Letter of Acceptance is issued by the Bank, the said price will remain fixed for the entire Contract period and shall not be subjected to variation on any account except as explicitly mentioned in this TENDER. A Bid submitted with an adjustable price quotation will be treated as non-responsive and will be rejected.

6. BID INTEGRITY:

Willful misrepresentation of any fact within the Bid will lead to the cancellation of the contract without prejudice to other actions that the Bank may take. All the submissions, including any accompanying documents, will become property of the Bank. The Bidders shall be deemed to license, and grant all rights to the Bank, to reproduce the whole or any portion of their Bid document for the purpose of evaluation and to disclose the contents of submission for regulatory and legal requirements.

7. WAIVER OF RIGHTS:

Each Party agrees that any delay or omission on the part of the other Party to exercise any right, power or remedy under this TENDER will not automatically operate as a waiver of such right, power or remedy or any other right, power or remedy and no waiver will be effective unless it is in writing and signed by the waiving Party. Further, the waiver or the single or partial exercise of any right, power or remedy by either Party hereunder on one occasion will not be construed as a bar to a waiver of any successive or other right, power or remedy on any other occasion.

8. BANK'S RIGHT TO ACCEPT ANY BID AND TO REJECT ANY OR ALL BIDS:

The Bank reserves the right to accept or reject any Bid in part or in full or to cancel the bidding process and reject all Bids at any time prior to contract award, without incurring any liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder or Bidders of the grounds for the Bank's action. No claims in this account will be entertained or considered.

9. CODE OF INTEGRITY AND DEBARMENT/BANNING:

- i) The Bidder and their respective officers, employees, agents and advisers shall observe the highest standard of ethics during the bidding Process. Notwithstanding anything to the contrary contained herein, the Bank shall reject Bid without being liable in any manner whatsoever to the Bidder if it determines that the Bidder has, directly or indirectly or through an agent, engaged in corrupt / fraudulent / coercive / undesirable or restrictive practices in the bidding Process.

- ii) Bidders are obliged under code of integrity to Suo-moto proactively declare any conflicts of interest (pre-existing or as and as soon as these arise at any stage) in TENDER process or execution of contract. Failure to do so would amount to violation of this code of integrity.
- iii) Any Bidder needs to declare any previous transgressions of such a code of integrity with any entity in any country during the last three years or of being debarred by any other procuring entity. Failure to do so would amount to violation of this code of integrity.
- iv) For the purposes of this clause, the following terms shall have the meaning hereinafter, respectively assigned to them:
 - a) **“Corrupt practice”** means making offers, solicitation or acceptance of bribe, rewards or gifts or any material benefit, in exchange for an unfair advantage in the procurement process or to otherwise influence the procurement process or contract execution.
 - b) **“Fraudulent practice”** means any omission or misrepresentation that may mislead or attempt to mislead so that financial or other benefits may be obtained or an obligation avoided. This includes making false declaration or providing false information for participation in a TENDER process or to secure a contract or in execution of the contract.
 - c) **“Coercive practice”** means harming or threatening to harm, persons or their property to influence their participation in the procurement process or affect the execution of a contract.
 - d) **“Anti-competitive practice”** means any collusion, bid rigging or anti-competitive arrangement, or any other practice coming under the purview of the Competition Act, 2002, between two or more bidders, with or without the knowledge of the Bank, that may impair the transparency, fairness and the progress of the procurement process or to establish bid prices at artificial, non-competitive levels.
 - e) **“Obstructive practice”** means materially impede the Bank’s or Government agencies investigation into allegations of one or more of the above mentioned prohibited practices either by deliberately destroying, falsifying, altering; or by concealing of evidence material to the investigation; or by making false statements to investigators and/or by threatening, harassing or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or by impeding the Bank’s rights of audit or access to information;

10. Debarment/Banning

Empanelment/participation of Bidders and their eligibility to participate in the Bank’s procurements is subject to compliance with code of integrity and performance in contracts as per terms and conditions of contracts. Following grades of debarment from empanelment/participation in the Bank’s procurement process shall be considered against delinquent Vendors/Bidders:

A. Holiday Listing (Temporary Debarment - suspension):

Whenever a Vendor is found lacking in performance, in case of less frequent and less serious misdemeanors, the vendors may be put on a holiday listing (temporary debarment) for a period up to 12 (twelve) months. When a Vendor is on the holiday listing, he is neither invited

to bid nor are his bids considered for evaluation during the period of the holiday. The Vendor is, however, not removed from the list of empaneled vendors, if any. Performance issues which may justify holiday listing of the Vendor are:

- i) Vendors who have not responded to requests for quotation/tenders consecutively three times without furnishing valid reasons, if mandated in the empanelment contract (if applicable).
- ii) Repeated non-performance or performance below specified standards (including after sales services and maintenance services etc.).
- iii) Vendors undergoing process for removal from empanelment/participation in procurement process or banning/debarment may also be put on a holiday listing during such proceedings.

B. Debarment from participation including removal from empanelled list

Debarment of a delinquent Vendor (including their related entities) for a period (one to two years) from the Bank's procurements including removal from empanelment, wherever such Vendor is empaneled, due to severe deficiencies in performance or other serious transgressions. Reasons which may justify debarment and/or removal of the Vendor from the list of empaneled vendors are:

- i) Without prejudice to the rights of the Bank under Clause 45(i) hereinabove, if a Bidder is found by the Bank to have directly or indirectly or through an agent, engaged or indulged in any corrupt/fraudulent/coercive/undesirable or restrictive practices during the bidding Process, such Bidder shall not be eligible to participate in any TENDER issued by the Bank during a period of 2 (two) years from the date of debarment.
- ii) The Vendor fails to abide by the terms and conditions or to maintain the required technical/operational staff/equipment or there is change in its production/service line affecting its performance adversely or fails to cooperate or qualify in the review for empanelment.
- iii) If Vendor ceases to exist or ceases to operate in the category of requirements for which it is empaneled.
- iv) Bankruptcy or insolvency on the part of the vendor as declared by a court of law; or
- v) Banning by Ministry/Department or any other Government agency.
- vi) Other than in situations of force majeure, technically qualified Bidder withdraws from the procurement process or after being declared as successful bidder: (i) withdraws from the process; (ii) fails to enter into a Contract; or (iii) fails to provide performance guarantee or any other document or security required in terms of the TENDER documents.
- vii) If the Central Bureau of Investigation/CVC/C&AG or Vigilance Department of the Bank or any other investigating agency recommends such a course in respect of a case under investigation.
- viii) Employs a Government servant or the Bank's Officer within two years of his retirement, who has had business dealings with him in an official capacity before retirement; or
- ix) Any other ground, based on which the Bank considers, that continuation of Contract is not in public interest.
- x) If there is strong justification for believing that the partners / directors / proprietor /agents of the firm/company have been guilty of violation of the code of integrity or Integrity Pact (wherever applicable), evasion or habitual default in payment of any tax levied by law; etc.

C. Banning from Ministry/Country-wide procurements

For serious transgression of code of integrity, a delinquent Vendor (including their related entities) may be banned/debarred from participation in a procurement process of the Bank including procurement process of any procuring entity of Government of India for a period not exceeding three years commencing from the date of debarment.

11. OTHER RELEVANT INFORMATION TO THE BIDDERS

Bidders may please note the following:

1. The Bidder should quote for the entire package on a single responsibility basis for the services required under this TENDER.
2. Care should be taken that the Technical Bid shall not contain any price information. Such proposal, if received, will be rejected.
3. The Bid document shall be complete in accordance with various clauses of the Tender document or any addenda/corrigendum or clarifications issued in connection thereto, duly signed by the authorized representative of the Bidder. Board resolution authorizing representative to Bid and make commitments on behalf of the Bidder is to be attached.
4. All addendum/ corrigendum which are published in Bank's website/ e-tender site in connection with this tender, including reply to pre-bid queries, shall be signed and stamped by the bidders and scanned copy shall be uploaded in the e-tender site.
5. It is mandatory for all the Bidders to have class-III Digital Signature Certificate (DSC) (in the name of person who will sign the Bid) from any of the licensed certifying agency to participate in this Tender. DSC should be in the name of the authorized signatory.
6. Bids are liable to be rejected if only one Bid online (i.e. either Technical Bid or Price Bid) is received.
7. If deemed necessary, the Bank may seek clarifications on any aspect from the Bidder. However, that would not entitle the Bidder to change or cause any change in the substances of the Bid already submitted or the price quoted.
8. The Bidder may also be asked to give presentation at no extra cost to the Bank for the purpose of clarification of the Bid, if required.
9. The Bidder must provide specific and factual replies to the points raised in the TENDER.
10. The Bid shall be typed or written and shall be digitally signed by the Bidder or a person or persons duly authorized to bind the Bidder to the Contract.
11. All the enclosures (Bid submission) shall be serially numbered.
12. Bidder(s) should prepare and submit their online Bids well in advance before the prescribed date and time to avoid any delay or problem during the bid submission process. The Bank or e-tendering agency shall not be held responsible for any sort of delay or the difficulties faced by the Bidder(s) or any technical glitches/ issues during the submission of online Bids.
13. Bidder(s) should ensure that the Bid documents submitted should be free from virus and if the documents could not be opened, due to virus or otherwise, during Bid opening, the Bid is liable to be rejected.
14. The Bank reserves the right to reject Bids not conforming to above.
15. First, technical evaluation of all bids will be done. Upon evaluation based on scrutiny of submitted documents, document verification, Site visit, Bidders will get shortlisted, and these bidders shall be treated as technically qualified bidders. The Financial/Price Bid of the Bidders shall be opened, who qualifies through TENDER Bid evaluation and L1 bidder will be finalized.
16. The bidders who submit Tender Bid and above documents without any conditions shall be considered only for evaluation and further Price Bid Opening process.

B. GENERAL CONDITIONS OF CONTRACT (GCC)

1. DEFINITIONS

“Contract” means the documents forming the tender and the acceptance thereof and the formal agreement executed between State Bank of India (Client) and the contractor, together with the documents referred therein including these conditions, the specifications, designs, drawings and instructions issued from time to time by the PROJECT ARCHITECT CUM PMC/Bank and all these documents taken together shall be deemed to form one contract and shall be complementary to one another.

1.1 In the contract the following expressions shall, unless the context otherwise requires, have the meaning hereby respectively assigned to them.

1.1.1 ‘SBI’ or ‘Bank’ shall mean State Bank of India (client) a body Corporate created under State Bank of India Act 1955, having its Corporate Centre at State Bank Bhavan, Madame Cama Road, Mumbai 400021 and includes the client’s representatives, successors and assigns. ‘PROJECT ARCHITECT CUM PMC’ shall mean M/s. Pithavadian & Partners, Chennai.

1.1.2 ‘Site Engineer’ shall mean an Engineer appointed by the Project Architect/ Bank as their representative to give instructions to the contractors.

1.1.3 ‘The Contractor’ shall mean the individual or firm or company whether incorporated or not, undertaking the works and shall include legal personal representative of such individual or the composing the firm or company and the permitted assignees of such individual or firms of company

The expression ‘works’ or ‘work’ shall mean the permanent or temporary work described in the ‘Scope of Work’ and/or to be executed in accordance with the contract and includes materials, apparatus, equipment, temporary supports, fittings and things of all kinds to be provided, the obligations of the contractor hereunder and work to be done by the contractor under the contract.

1.1.4 ‘Architect’ or ‘Consultant’ or ‘PMC’ shall mean the representative of the PROJECT ARCHITECT CUM PMC

1.1.5 ‘Drawings’ shall mean the drawings prepared by the Architects and issued by the Engineer and referred to in the specifications and any modifications of such drawings as may be issued by the Engineer from time to time ‘Contract value shall mean the value of the entire work as stipulated in the letter of acceptance of tender subject to such additions thereto or deductions there from as may be made under the provision herein after contained.

1.1.6 ‘Specifications’ shall mean the specifications referred to in the tender and any modifications thereof as may time to time be furnished or approved by the PROJECT ARCHITECT CUM PMC.

1.1.6a “Month” means calendar month.

1.1.7 “Week” means seven consecutive days.

1.1.8 “Day” means a calendar day beginning and ending at 00 Hrs and 24 hrs respectively

1.1.9 The following shall constitute the Joint Project Committee (herein under referred to as JPC) for assessing and reviewing the progress of the work on the project and to issue instructions or directions from time to time for being observed and followed by the PROJECT ARCHITECT CUM PMC’s Site Engineer /PROJECT ARCHITECT CUM PMC and other consultants / contractors engaged in the execution of the project.

- a) Deputy General Manager (Premises),
- b) Deputy General Manager (Civil) & Chief Engineer,
- c) SBI Engineers (Civil, Electrical, Fire & Security) in-charge of the Project, as may be nominated by the Premises Department, State Bank of India, Corporate Centre, Mumbai.
- d) Representative of the Architects or Their Project Architect.
- e) Resident Engineer- in Charge of PMC Team.

1.1.10 SITE" shall mean the land and/ or other places on, into or through which work is to be executed under the contract or any adjacent land, path or street through which work is to be executed under the contract or any adjacent land, path or street which may be allotted or used for the purpose of carrying out the contract.

1.1.11 "NOTICE" in writing or written notice means a notice in writing typed or printed characters sent (unless delivered personally or otherwise proved to have been received) by registered post to the last known private or business address or registered office of the tenderer/ contractor and or at the mail id mentioned by the contractor in the "form of tender" of these tender document and shall be deemed to have been received when in the ordinary course of post it would have been delivered.

1.1.12 "APPROVED" means approved in writing including subsequent written confirmation of previous verbal approval and "Approval" means approved in writing including as aforesaid.

1.1.13 "SCHEDULED BANK" means bank included in the second schedule to the Reserve Bank of India Act, 1934.

1.1.14 "SUBCONTRACTOR" means any person, firm or corporation having a contract for the execution of a part or parts of the work included in the contract and a person, firm or corporation furnishing materials called for in the contract and worked to a special design according to the specifications.

1.1.15 "CONTRACT PERIOD" means the accepted period of consecutive days stated on the Form of Tender starting from the PROJECT ARCHITECT CUM PMC or Employer's order to commence the work.

1.1.16 "PROJECT ARCHITECT CUM PMC" shall means M/s Pithavadian & Partners, Chennai who are the Project Architect and Project Management Consultants, hereinafter abbreviated as PROJECT ARCHITECT CUM PMC and their personnel's like Architects, Engineers, Associates, Site Engineers, Project Engineers, Consulting Engineers, PMC Personnels etc. appointed by the SBI at site as their representative for day-to-day supervision of work and to give instructions to the contractors.

1.1.17 "Complete Project Closure Report" by SBI and PROJECT ARCHITECT CUM PMC means following conditions are satisfied and all works related to it are complete & reports closed after due repairs, replacements, trials, test, etc.

The project shall be considered complete & closed only when:

- a. **Defect Liability Period (DLP)** for all items of work is over : DLP is for 18 months (Other than Specifically Mentioned in TENDER and BOQ) from the date of virtual completion (as mentioned in GCC) of work and
- b. Acceptance & closure of all queries & works after due rectification/replacements/ tests as referred by Chief Technical Examiner, CVC and
- c. Acceptance and closure of all arbitration, court cases, etc. as decided by the Bank whichever is later.

2. Total Security Deposit

Total Security deposit comprises of:

- a) Earnest Money Deposit
- b) Initial Security Deposit
- c) Retention Money

a) Earnest Money Deposit -

The tenderer shall furnish EMD ₹. 1,12,00,000/- (**Rupees One Crore Twelve Lakhs Only**) in the form of Payee Demand Draft or Banker's Cheque or Fixed Deposit Receipts Drafts/Banker's Cheque (issued by the scheduled commercial Bank) or Bank Guarantee (issued by the scheduled Commercial Bank other than SBI) for the amount as prescribed in the NIT in favor of Deputy General Manager (Premises), SBI, Corporate Centre, Mumbai, payable at Mumbai. Original of the EMD shall also be submitted to the address specified in the NIT.

No tender shall be considered unless the EMD is so deposited in the required form. No interest shall be paid on this EMD. The EMD of the unsuccessful tenderer shall be refunded within 15 days soon after the decision to award the contract is taken without interest. The EMD shall stand absolutely forfeited if the tenderer revokes his tender at any time during the period when he is required to keep his tender open acceptance by the SBI or after it is accepted by the SBI the contractor fails to enter into a formal agreement or fails to pay the initial security deposit as stipulated or fails to commence the work within the stipulated time.

b) Initial Security Deposit (ISD)

The amount of ISD shall be 2% of accepted value of tender including EMD. The balance of ISD (i.e. excluding EMD) is to be submitted in the form of D/D drawn on any scheduled Bank and shall be deposited within 15 days from the date of letter of acceptance of tender. Initial Security Deposit shall be in the form of Drafts/Banker's Cheque (issued by the scheduled commercial Bank) or Bank Guarantee (issued by the scheduled commercial Bank other than SBI), in favour of "State Bank of India", payable at Mumbai.

c) Retention Money: -

Besides the ISD as deposited by the contractor in the above-mentioned manner the retention money shall be deducted from the running account bill at the rate of 10% of the gross value of work done by the contractor and claimed in each bill provided the total security deposit i.e. the ISD plus Retention Money shall both together not exceed 5% of the contract value.

50% of the total security deposit shall be refunded to the contractor without any interest within 15 days from the date of issue of Virtual Completion certificate by the Project Architect cum PMC. The balance 50% of the total security deposit shall be refunded to the contractors without interest within fifteen days after the end of defects liability period from the date of receipt of recommendations from the Project Architect, provided the contractor has satisfactorily attended to all defects in accordance with the conditions of contract including site clearance.

3. Language Errors, Omissions and Discrepancies

In case of errors, omissions and/or disagreement between written and scaled dimensions on the drawings or between the drawings and specifications etc, the following order shall apply.

- i) Between scaled and written dimension (or description) on a drawing, the latter shall be adopted.

- ii) The contractor shall prepare all drawings in correlation with the specifications in the BOQ and clarifications shall be sought from Project Architect in case of any doubts. All drawings shall be approved by the Project Architect. The Project Architect will check and advise corrections in the drawings, if required, in co-relation with the item specification. Thereafter, final drawings shall be submitted by the Contractor.
- iii) Between written description of the item in the technical specifications and descriptions in bills of quantities (BOQ) of the same item, the latter shall be adopted.
- iv) In case of difference between rates written in figures and words, the rate in words shall prevail.
- v) Between the duplicate/subsequent copies of the tender, the original tender shall be taken as correct.

4. Scope of Work:

The scope of work involves the **Planning, Designing, and Construction of Residential flats** for Officers and Executives of **State Bank of India, Mumbai**. The development shall feature an **RCC-framed structure** and include all associated **miscellaneous works**, such as **site development, services, lifts, solar PV plant and other required amenities** to make the premises fully fit for **occupation** (services including electrical, firefighting, solar system, etc).

The project shall be executed on an **Engineering, Procurement, and Construction (EPC) basis** to ensure timely delivery without compromising on quality or safety standards.

The responsibility of carrying out site investigations, preparation of detailed designs & drawings (including but not limited to Structural, MEP, Fire-fighting, Architectural and Service) as per approved layouts and elevations, obtaining statutory/ mandatory approvals from local bodies/ other authorities as per requirement for pre-construction, from commencement to completion of the project, post construction, complete procurement as required for completion of the buildings, safety, quality and risk etc. lies with the EPC Contractor.

The cost of labour, material, tools and plants, machinery required for execution of the whole project as per Layout plan & approved drawings, specifications/ BOQ etc. is within the scope of selected EPC Contractor.

The layout plan and conceptual Architectural plans of buildings as well as BOQ for the project are provided in this bid document.

Mockup / Model flat: The EPC contractor must complete a mockup/model flat including all fixtures, fittings, finishes, etc. for each type (2Bhk and 3BHK) for approval of the Bank/PMC before starting the internal finishing works for residential buildings.

The user department through PMC/SBI may suggest changes within the given scope for accommodating future needs which have to be carried out by the EPC contractor as part of the scope of the work. Any changes, modifications, revision etc. required to be done by PMC/Bank, Electrical inspectorate, Fire safety authorities, Local bodies, proof consultant etc. will have to be attended by the EPC contractor.

The bidder has to include cost of services of engaging consultant(s) towards preparation of necessary architectural/structural/service drawings, GRIHA /LEED/IGBC Consultant, obtaining mandatory pre and post construction approvals from local bodies /authorities required for commencing the work including occupancy certificate from the local bodies / authorities and nothing extra shall be payable on this account. The buildings are to be planned and designed in such a way that they derive maximum benefit of the natural resources like sun, wind, etc. The

building should be ECBC (Issued by Bureau of Energy Efficiency, Ministry of Power, Govt. Of India) compliant.

Prepare all drawings relevant to the construction (based on the approved drawings including modifications etc. if any) including structural and service drawings, retaining walls etc. for all Civil, E&M works involved in the scope and obtain the approval of the SBI/PMC/Authority Engineer-in-charge. Any changes, modifications, revision etc. required to be done by PMC/ SBI (end user), CFO, Local bodies, proof consultant etc. will have to be attended by the EPC contractor & nothing extra shall be payable.

The EPC Contractor shall construct the Buildings, Development and Bulk services as per the Approved drawings. The work in general is to be executed on the basis of the Approved Architectural, Structural & Service drawings and as per the schedule of finishes mentioned in the BOQ, by following the other conditions of bid document, Item Specifications, relevant IS codes, National Building Code 2016, LEED/ GRIHA/IGBC, Bank's/ CPWD norms, ECBC Norms, CPWD hand book on barrier free and accessibility, CPWD manual on Accessible Built environment 2019 and other standard specifications shall be followed in general except otherwise mentioned in bid document. Samples of the materials of preferred make or otherwise shall be got approved from the Officer-in- charge before use in the work. The above scope of work includes cost of all materials, manpower, equipment, T&P, fixtures, accessories, royalties (Seigniorage), taxes (GST and all other Taxes/levies), watch & ward and all other essential elements for completion and maintenance of works whatsoever as already stated.

On Completion of Work, EPC Contractor shall get required post-construction permissions from the local body, Fire department and other statutory authorities whose permission is required after completion of the construction including completion/occupancy certificate required to complete the building in all respects to make it habitable and ready for occupation and submit a copy of such approvals/certificates to the Engineer-in-charge. The statutory fees required shall be borne by the Department but all other expenses towards obtaining the post-construction permission shall rest with EPC contractor.

The site and contour survey has to be carried out the EPC contractor and the contour map has to be submitted to the Architect, before commencement of construction. No claims on account of difficult terrain conditions or contour difference etc. shall be entertained later on and nothing extra shall be payable on this account.

The contractor may work out his rates considering all the leads, lifts, material, transportation, demolition of any old structure at site, including head loads, less output of labor etc. involved in execution, if any, and quote his rates accordingly. The rates shall also include all charges related to preparation of all designs and drawings including working drawings, local body approval charges (except those with original receipts which will be reimbursed by the Bank), all other related charges and expenses connected with pre-construction and during construction as well as completion of the project including obtaining occupation certificate as well as other permissions/ NOCs required from municipal / other statutory authorities.

Bank has already conducted soil investigations for the site and accordingly items for pile foundation and structural design of the superstructure have been proposed in the BOQ. The soil investigation report will be shared with the successful contractor only. The contractor shall carryout the detailed structural design and structural drawings based on the findings of soil investigation report given to them. Final structural design and drawings submitted by the successful contractor will be subject to vetting by the reputed Engineering Institutions like IITs, NITs, **Central/State government Institutes** and approved by PMC/ SBI before the same are used in structural design purpose and for construction. Any changes/ revisions proposed after vetting by the Institution / Project Architect/ SBI shall be carried out by the contractor without any extra cost.

Providing & fixing of furniture and computers, electric fixture/ installations for the site office is within the scope of the contractor and no extra payment will be made on this account.

The work shall be carried out in accordance with true intent and meaning of the specifications and the drawings read together, regardless of whether the same may or may not be particularly shown on the drawings and / or described in the specifications, provided that the same can be reasonably inferred there from.

In case specifications of some of items are not explicitly mentioned in the bid documents same shall be adopted as given in the CPWD Specifications/ NBC-2016/ BIS Codes or according to sound engineering practices so as to make the building and services fully functional. No claim whatsoever shall be entertained on this account.

Obtaining mandatory and statutory approvals including Environmental Clearance from local bodies/ State & Central authorities/ Municipal Corporation/ MHADA/Fire Department/ Pollution Control Board/ Airport Authority of India or any such statutory authorities etc. including tree cutting permissions from local municipal authorities etc. for the complete work is in scope of this contract. Approvals as per latest applicable Bye laws for Mumbai (Suburban) areas with up-to-date correction slips, **necessary Environmental Clearance from the appropriate authority (if required)**, NOC from Fire Department, **NOC from Airport Authority of India** and any other statutory approval related to building for institutional campus, approval from authorities required for commencing the work, execution of work & services and handing over the assets is in the scope of the Contractor. The Contractor shall also take all necessary measures required to be taken to remove/ relocate any live or dead service lines running through the plot area without any extra cost, in co-ordination and after taking approvals with concerned Municipal Authority/ Government Departments.

The cost of labor, material, tools and plants and machinery required for execution of the whole project as per approved Layout plan & detailed design and drawings, BOQ specifications etc. is within the scope of this work.

The Contractor is required to connect all the external services like Water Supply, Sewerage, Drainage, Electric Supply, LAN/WAN, Telephone Lines, Gas pipe line etc. of the proposed building(s) to the main lines of the authorized service providers of local bodies or any other agency and this shall be considered as integral part of scope of work and such cost shall be included in the price quoted by the Contractor.

The Contractor shall be responsible for the safety and watch & ward of fittings and fixtures provided and installed by it in all buildings against pilferage and breakage during the period of installations and thereafter till the building is physically handed over to the department. No extra payment shall be made on this account.

The contractor shall carryout complete and maintain the said work in every respect strictly in accordance with this contract and with the directions of and to the satisfaction of the Bank to be communicated through the PROJECT ARCHITECT CUM PMC. The PROJECT ARCHITECT CUM PMC at the directions of the SBI from time-to-time issue written instructions, details directions and explanations which are here after collectively referred to as PROJECT ARCHITECT CUM PMC 's/SBI's instructions in regard to the variation or modification of the design, quality or quantity of any work or the addition or omission or substitution of any work.

The removal from the site of any material brought thereon by the Contractor and any substitution of any other materials therefore, the demolition, removal and / or re-execution of any work executed by him. The dismissal from the work of any employed/engaged thereupon.

5. Letter of Acceptance:

Within the validity period of the tender the SBI shall issue a letter of acceptance directly or through the PROJECT ARCHITECT CUM PMC by registered post at the address of the contractor as given in the tender to enter into a Contract for the execution of the work as per the terms of the tender. Till the execution of a formal contract, the letter of acceptance shall constitute a binding contract between the SBI and the contractor.

6. Work Order

Work order will be issued only after receipt of commencement certificate and all other approvals from local authorities which are required mandatorily for start of construction works.

7. Contract Agreement:

On receipt of intimation of the acceptance of tender from the SBI/PROJECT ARCHITECT CUM PMC the successful tenderer shall be bound to implement the contract agreement and within thirty days thereof he shall sign an agreement in a non-judicial stamp paper of appropriate value (**Annexure- IV**). Two copies of agreement/tender document duly signed by both the parties in a non-judicial stamp paper with the drawings shall be handed over to the contractors. All expenses, stamp duty and other charges/ expenses in connection with the execution of the Agreement as a result of this RFP process shall be borne by Service Provider. The Agreement/ Contract would be stamped as per Maharashtra Stamp Act, 1958 and any amendment thereto.

8. Mobilization Advance

Mobilization advances not exceeding 10% of the tendered amount may be given, if requested by the contractor, after issuance of work order.

Such advance shall be released in instalments to be determined by the PMC/ SBI. The amount of any instalment shall not exceed 2.5% of the tendered amount of the work. The first instalment of such advance shall be released by the SBI / PMC to the contractor on his request and on submission of Bank guarantee, as specified below. The second and subsequent instalment(s) shall be released by the SBI / PMC only after the contractor furnishes a proof of the satisfactory utilization of full amount of the earlier instalment(s) to the satisfaction of the SBI / PMC / Engineer-in-Charge. The mobilization advance will be utilized for the following:

- i. Establishment of Site Office for Contractor and PMC / SBI Staff, Testing lab, laboratory equipment, labour camps, basic amenities, Services for labour/staff, Cement Godown, Reinforcement yard and stores etc. Any other item as mentioned in NIT by the NIT approving authority.
- ii. 90% of the price of new items and 50% of the depreciated price of old items will be considered for assessing the utilized amount of mobilization advance.
- iii. Expenditure incurred on items / materials which are measurable and payable under agreement / extra items as well as materials eligible for secured advance will be excluded from utilized amount of mobilization advance, if any.

The assessment of PMC in this respect shall be final and binding.

However, clause 8 (ii) and clause 8 (iii) are mutually exclusive i.e. both cannot be operated for same material simultaneously.

Before any instalment of advance is released, the contractor shall execute Bank Guarantee Bonds valid for not less than 6 (six) in number from scheduled commercial Bank other than SBI for the amount equal to 110% of the amount of advance and valid for the period till recovery of advance. This Bank Guarantee from commercial Bank on prescribed format for the amount equal to 110% of the balance amount of advance shall be kept renewed from time to time to cover the balance amount and likely period of complete recovery

9. Ownership of drawings:

All drawings, specifications and copies thereof furnished by the SBI through its PROJECT ARCHITECT CUM PMC are the properties of the SBI. They are not to be used on other work.

10. Detailed drawings and instructions:

The scope of preparation of detailed drawings for the buildings is with the Contractor.

The SBI through its Project Architects/consultants, shall furnish with reasonable promptness additional instructions/ corrections by means of written instructions for the proper execution of the work. All such drawings and instructions shall be consistent with the contract documents and specifications in the BOQ/ Technical Specifications/ IS codes/ true developments thereof and reasonably inferable there from.

The work shall be executed in conformity therewith and the contractor prepare a detailed programme schedule (BAR/ PERT Chart or any Project Management Software tool like MS Project) indicating therein the date of start and completion of various activities on receipt of the work order and submit the same to the SBI through the PROJECT ARCHITECT CUM PMC for approval.

3 Sets of hard Copies of finalized working drawings will be submitted by the Contractor, one for Project Architect, one set for the Bank and one set for site office. The Contractor shall make necessary laminations, waterproof paper covering & filing so that these drawings will be available in good condition at site throughout the period of works.

11. Programme schedule

As soon as the contract is awarded, a suitable program of work, preferably in the form of a bar / PERT chart shall be drawn up for completion of the different stages of the work, so as to ensure its completion within the allotted period of time. This program shall be submitted by the contractor in consultation with Architect/PROJECT ARCHITECT CUM PMC.

The monthly progress chart indicating there in the programme and progress achieved both physical and financial with reasons for short fall, if any, shall be sent by the Site Engineer/PROJECT ARCHITECT CUM PMC to concern Department of the Bank before 10th of the following month.

12. Liquidated damages:

i) Delay for getting approvals / NOCs/ clearances required for commencement of works:-

It is the responsibility of the contractor to obtain all required approvals/ NOCs/ clearances including environmental clearance (State / Central) within 6 months from the date of issuance of Letter of Acceptance. Further, the Contractor has to carryout pre-construction activities such as preparation and submission of the detailed designs & drawings, proof checking and obtain final approvals for design and drawings from PMC and SBI for the same within this period. Pre-construction site activities could also be commenced during this period (without mobilization advance).

However, if the contractor is unable to obtain all the approvals within the time period of 6 months, then he may request for extension of time. The request for extension shall be examined based on the following:-

- a) Whether all the required documents have been submitted to the concerned authorities seeking approval within 3 months from the date of LoA.
- b) The contractor must submit proof that the approvals are pending with the local authorities/ Government.

A maximum period of extension of 2 months shall be allowed in such cases.

If the contractor has failed to obtain approvals from local municipal authorities even after giving extension of time for the same, further extension of contractor's request will be allowed up to a further 1 month subject to deduction of 0.5% of the contract value per week or part thereof up to maximum of 2% of the contract value, which will be deducted from the Initial Security Deposit/Bank Guarantee submitted by the Contractor.

Even after 4 weeks of extension with liquidated damages for obtaining approvals, the contractor fails to obtain all required approvals for commencement of work, then the contract will be terminated, entire ISD will be deducted as liquidated damages and will be forfeited. The discretion to give further extension of time for obtaining approvals, lies with the Bank, based on the status of approvals for which proof has to be submitted by the Contractor.

ii) For Delay in completion of works:

If the contractor fails to maintain the required progress in terms of clause of Tender or to complete the work and clear the site including vacating their office on or before the contracted or extended date or completion without justification in support of the cause of delay, he may be called upon without prejudice to any other right of remedy available under the law to the SBI on account of such breach to pay a liquidated damages at the rate of 0.5% of the contract value per week or part thereof subject to a maximum of 5% of the contract value.

13. Materials, Appliances and Employees

Unless or otherwise specified the contractor provide and pay for all materials, labour, water, power, tools, equipment, transportation and any other facilities that are required for the satisfactory execution and completion of the work. Unless or otherwise specified all materials shall be new and both workmanship and materials shall be best quality. The contractor shall at all times enforce strict discipline and good order among his employees and shall not employ any unfit person or anyone not skilled in the work assigned to him. Workman whose work or behavior is found to be unsatisfactory by the SBI/PROJECT ARCHITECT CUM PMC he shall be removed from the site immediately.

14. Permits, Laws and Regulations:

All Approvals, Permits, NOCs and licenses required during pre-construction, from commencement to completion (execution stage) and post construction shall be obtained by the contractor at his own expenses. On submission of Original receipts of payments made on behalf of Bank from Government / Statutory Authorities shall be reimbursed.

The contractor shall give notices and comply with the regulations, laws, and ordinances rules, applicable to the contractor. If the contractor performs any act which is against the law, rules and regulations he shall meet all the costs / penalties arising there from and shall indemnify the SBI any legal actions arising there from.

15. Setting out Work:

The contractor shall set out the work and shall be responsible for the true and perfect setting out of the same and for the correctness of the positions, levels, dimensions, and alignment of all parts thereof and get it approved by the PROJECT ARCHITECT CUM PMC before proceeding with the work. If at any time any error in this respect shall appear during the progress of the works, irrespective of the fact that the layout had been approved by the PROJECT ARCHITECT CUM PMC the contractor shall be responsible for the same and shall at his own expenses rectify such error, if so, required.

16. Protection of works and property:

The contractor shall continuously maintain adequate protection of all his work from damage and shall protect the SBI's properties from damage or injury or loss arising in connection with contract. He shall make good any such damage, injury, loss due to his fault or negligence except which are due to causes beyond his control.

The Contractor shall take adequate care and steps for protection of the adjacent properties. The contractor shall take all precautions for safety and protection of his employees on the works and shall comply with all applicable provisions of Government and local bodies' safety laws and building codes to prevent accidents, or injuries to persons or property of about or adjacent to his

place of work. The contractor shall take insurance covers as per clause 28 at his own cost. The policy may be taken in joint names of the contractors and the SBI and the original policy may be lodged with the SBI.

17. Inspection of work:

The SBI / PROJECT ARCHITECT CUM PMC or their representatives shall at all reasonable time have free access to the work site and/or to the workshop, factories or other places where materials are lying or from where they are obtained and the contractor shall give every facility to the SBI/ PROJECT ARCHITECT CUM PMC and their representatives necessary for inspection and examination and test of the materials and workmanship. No person unless authorized by the SBI/PROJECT ARCHITECT CUM PMC, except the representative of public authorities, shall be allowed on the work at any time. The proposed work either during its construction stage or its completion can also be inspected by the Chief Technical Examiner's organization, a wing of Central Vigilance Commission.

18. Assignment and subletting

The whole of work included in the contract shall be executed by the contractor and he shall not directly entrust and engage or indirectly transfer assign or underlet the contract or any part or share thereof or interest therein without the written consent of the Project Architect cum PMC/ SBI through the architect and no such works undertaken shall relieve the contractor from the responsibility of the contractor from active superintendence of the work during its progress.

19. Quality of materials, workmanship & Test

- (i) All materials and workmanship shall be of the required superior quality of the respective kinds described in the contract and in accordance with PROJECT ARCHITECT CUM PMC instructions and shall be subject from time to time to such tests as the PROJECT ARCHITECT CUM PMC may direct at the place of manufacture or fabrication or on the site or an approved testing laboratory or laboratory set up at site. The contractor shall provide such assistance, instruments, machinery, labour and materials.

- (ii) Samples:

All samples of adequate numbers, size, shades & pattern as per specifications shall be supplied by the contractor without any extra charges. If certain items proposed to be used are of such nature that samples cannot be presented or prepared at the site detailed literature/test certificate of the same shall be provided to the satisfaction of the Architect/ consultant. Before submitting the sample/literature the contractor shall satisfy himself that the material/equipment for which he is submitting the samples/literature meet with the requirement of tender specification. Only when the samples are approved in writing by the PROJECT ARCHITECT CUM PMC the contractor shall proceed with the procurement and installation of the particular material/equipment. The approved samples shall be signed by the PROJECT ARCHITECT CUM PMC for identification and shall be kept on record at site office until the completion of the work for inspection/comparison at any time. The PROJECT ARCHITECT CUM PMC shall take reasonable time to approve the sample. Any delay that might occur in approving the samples for reasons of its not meeting the specifications or other discrepancies inadequacy in furnishing samples of best qualities from various manufacturers and such other aspects causing delay on the approval of the materials / equipment etc shall be to the account of the contractor.

20. Cost of tests

The cost of making any test shall be borne by the contractor if such a test is intended by or provided for in the specifications or BOQ.

Costs of tests not provided for

If any test is ordered by the PROJECT ARCHITECT CUM PMC/SBI which is either :

If so intended by or provided for or (in the cases above mentioned) is not so particularized, or though so intended or provided for but ordered by the PROJECT ARCHITECT CUM PMC which is either to be carried out by an independent person at any place other than the site or the place of manufacture or fabrication of the materials tested or any Government / approved laboratory, then the cost of such test shall also be borne by the contractor.

21. Obtaining information related to execution of work

No claim by the contractor for additional payment shall be entertained which is consequent upon failure on his part to obtain correct information as to any matter affecting the execution of the work nor any misunderstanding or the obtaining incorrect information or the failure to obtain correct information relieve him from any risks or from the entire responsibility for the fulfillment of contract.

22. Contractor's Superintendence

The contractor shall give necessary personal superintendence during the execution of the works and as long, thereafter, as the PROJECT ARCHITECT CUM PMC may consider necessary until the expiry of the defect liability period, stated here to.

23. Quantities

The bill of quantities (BOQ) unless or otherwise stated shall be deemed to have been prepared in accordance with the Indian Standard Method of Measurements. Since this is a percentage rate tender, the percentage rate quoted by the Contractor in price bid shall remain valid for any variation of quantity against individual item. However, the increase in quantities in any item shall be advised to the Project Architect and Bank prior to execution.

24. Works to be measured

The PROJECT ARCHITECT CUM PMC may from time to time intimate to the contractor that he required the work to be measured and the contractor shall forthwith attend or send a qualified representative to assist the Architect in taking such measurements and calculation and to furnish all particulars or to give all assistance required by any of them. Such measurements shall be taken in accordance with the Mode of measurements detailed in the specifications or relevant IS codes if no mode of measurement is specified in the BOQ/ Preamble of BOQ.

The representative of the PROJECT ARCHITECT CUM PMC shall take joint measurements with the contractor's representative and the measurements shall be entered in the measurement book. The contractor or his authorized representative shall sign all the pages of the measurement book in which the measurements have been recorded in token of his acceptance. All the corrections shall be duly attested by both representatives. No over writings shall be made in the M book. Should the contractor not attend or neglect or omit to depute his representative to take measurements then the measurements recorded by the representative of the PROJECT ARCHITECT CUM PMC shall be final. All authorized extra work and all variations in quantities shall be included in such measurements.

25. Variations

No alteration, omission or variation ordered in writing by the PROJECT ARCHITECT CUM PMC shall vitiates the contract.

In case the SBI / PROJECT ARCHITECT CUM PMC, during the progress of works to make any alteration in, or additions to or omission from the works or any alteration in the kind or quality of the materials to be used therein, the PROJECT ARCHITECT CUM PMC shall give notice thereof in

writing to the contractor or shall confirm in writing within seven days of giving such oral instructions which are mentioned in the site order book. The contract shall alter to, add to, or omit from as the case may be in accordance with such items, but the contractor shall not do any work extra to or make any alterations or additions to or omissions from the works or any deviation from any of the provisions of the contract, stipulations, specifications or contract drawings without previous consent in writing of the PROJECT ARCHITECT CUM PMC and the value of such extras, alterations, additions or omissions shall in all cases be determined by the PROJECT ARCHITECT CUM PMC and the same shall be added to or deducted from the contract value, as the case may be.

26. Valuation of Variations

No claim for an extra item shall be allowed unless it shall have been executed under the authority of the PROJECT ARCHITECT CUM PMC with the concurrence of the SBI as herein mentioned. Any such extra is herein referred to as authorized extra and shall be made in accordance with the following provisions.

- a. In the case of extra item(s) (items which are not available in the contract), the contractor may within 10 days of the receipt of order/ instructions or occurrence of the item(s), submit claim for market rate(s), supported with proper analysis of rate and manufacturer's specification for the work, invoices, vouchers, etc. (as applicable), failing which the rate(s) approved later by the Project Architect/ Bank shall be final and binding. Where the contractor submits claim for market rate(s) in the manner prescribed above, the Project Architect/ Bank shall, within 7 days of the receipt of the claims, after giving consideration to the analysis of rates and other documents submitted by the contractor, determine the rates on the basis of the market rates and the contractor shall be allowed to execute the work in accordance with the rates so determined, subject to approval of the Bank. The maximum claim towards establishment charges, contractor's overheads and profit shall not exceed 15%.
- b. Such extra items shall not be eligible for price escalation under PVA.

27. Final measurement

The measurement and valuation in respect of the contract shall be completed within three months of the virtual completion of the work.

28. Virtual Completion Certificate (VCC)

On successful completion of entire works covered by the contract to the full satisfaction of the PROJECT ARCHITECT CUM PMC/SBI, the contractor shall ensure that the following works have been completed the satisfaction of the SBI:

- a) Clear the site of all scaffolding, wiring, pipes, surplus materials, contractor's labour equipment and machinery.
- b) Demolish, dismantle and remove the contractor's site office, temporary works, structure including labour sheds/camps and constructions and other items and things whatsoever brought upon or erected at the site or any land allotted to the contractor by the SBI not incorporated in the permanent works.
- c) Remove all rubbish, debris etc. from the site and the land allotted to the contractor by the PROJECT ARCHITECT CUM PMC/SBI and shall clear, level and dress, compact the site as required by the PROJECT ARCHITECT CUM PMC/SBI
- d) Shall put SBI in undisputed custody and possession of the site and all land allotted by the SBI.

- e) Shall hand over the work in a peaceful manner to the PROJECT ARCHITECT CUM PMC/SBI
- f) All defects / imperfections have been attended and rectified as pointed out by the Architects to the full satisfaction of SBI

Upon the satisfactory fulfillment by the contractor as stated above, the contractor shall be entitled to apply to the PROJECT ARCHITECT CUM PMC for the certificate. If the PROJECT ARCHITECT CUM PMC is satisfied of the completion of the work, relative to which the completion certificate has been sought, the PROJECT ARCHITECT CUM PMC shall within fourteen (14) days of the receipt of the application for virtual completion certificate, issue a VCC in respect of the work for which the VCC has been applied.

This issuance of a VCC shall be without prejudice to the SBI's rights and contractor's liabilities under the contract including the contractor's liability for defects liability period nor shall the issuance of VCC in respect of the works or work at any site be construed as a waiver of any right or claim of the SBI against the contractor in respect of works or work at the site and in respect of which the VCC has been issued.

29. Work by other agencies

The SBI / PROJECT ARCHITECT CUM PMC reserves the rights to use premises and any portion the site for execution of any work not included in the scope of this contract which it may desire to have carried out by other persons simultaneously and the contractor shall not only allow but also extend reasonable facilities for the execution of such work. The contractor, however, shall not be required to provide any plant or material for the execution of such work except by special arrangement with the SBI. Such work shall be carried out in such manner as not to impede the progress of the works included in the contract.

30. Insurance of works

30.1 Without limiting his obligations and responsibilities under the contract, the contractor shall insure in the joint names of the SBI and the contractor against all loss of damages from whatever cause arising other than the excepted risks, for which he is responsible under the terms of contract and in such a manner that the SBI and contractor are covered for the contract period + 6 months stipulated including vide clause 30 of GCC and are also covered during the period of maintenance for loss or damage arising from a cause, occurring prior to the commencement of the period of maintenance and for any loss or damage occasioned by the contractor in the course of any operations carried out by him for the purpose of complying with his obligations under clause.

- a) The Works for the time being executed to the estimated current Contract value thereof, or such additional sum as may be specified together with the materials for incorporation in the works at their replacement value.
- b) The constructional plant and other things brought on to the site by the contractor to the replacement value of such constructional plant and other things.
- c) Such insurance shall be affected with an insurer and in terms approved by the SBI which approval shall not be unreasonably withheld, and the contractor shall whenever require produce to the PROJECT ARCHITECT CUM PMC the policy of insurance and the receipts for payment of the current premiums.

30.2 Damage to persons and property

The contractor shall, except if and so far as the contract provides otherwise indemnify the SBI against all losses and claims in respect of injuries or damages to any person or material or physical damage to any property whatsoever which may arise out of or in consequence of the execution and maintenance of the works and against all claims proceedings, damages, costs, charges and expenses whatsoever in respect of or in relation thereto except any compensation of damages for or with respect to:

- a) The permanent use or occupation of land by or any part thereof.
- b) The right of SBI to execute the works or any part thereof on, over, under, in or through any lands.
- c) Injuries or damages to persons or properties which are unavoidable result of the execution or maintenance of the works in accordance with the contract
- d) Injuries or damage to persons or property resulting from any act or neglect of the SBI their agents, employees or other contractors not being employed by the contractor or for or in respect of any claims, proceedings, damages, costs, charges and expenses in respect thereof or in relation thereto or where the injury or damage was contributed to by the contractor, his servants or agents such part of the compensation as may be just and equitable having regard to the extent of the responsibility of the SBI, their employees, or agents or other employees, or agents or other contractors for the damage or injury.

30.3 Contractor to indemnify SBI

The contractor shall indemnify the SBI against all claims, proceedings, damages, costs, charges and expenses in respect of the matters referred to in the provision sub-clause 30.2 of this clause.

30.4 Contractor's superintendence

The contractor shall fully indemnify and keep indemnified the SBI against any action, claim, or proceeding relating to infringement or use of any patent or design or any alleged patent or design rights and shall pay any royalties which may be payable in respect of any article or part thereof included in the contract. In the event of any claim made under or action brought against SBI in respect of such matters as aforesaid the contractor shall be immediately notified thereof and the contractor shall be at liberty, at his own expenses to settle any dispute or to conduct any litigation that may arise there from, provided that the contractor shall not be liable to indemnify the SBI if the infringement of the patent or design or any alleged patent or design right is the direct result of an order passed by the PROJECT ARCHITECT CUM PMC in this behalf.

30.5 Third Party Insurance

25.5.1 Before commencing the execution of the work the contractor but without limiting his obligations and responsibilities under clause 27.0 of GCC shall insure against his liability for any material or physical damage, loss, or injury which may occur to any property including that of SBI, or to any person, including any employee of the SBI, by or arising out of the execution of the works or in the carrying out of the contract, otherwise than due to the matters referred to in the provision to clause 27.0 & 28.0 thereof.

30.5.2 Minimum amount of Third-Party Insurance

Such insurance shall be affected with an insurer and in terms approved by the SBI which approval shall not be reasonably withheld and for at least the amount stated below. The contractor shall, whenever required, produce to the. PROJECT ARCHITECT CUM PMC the policy or policies of insurance cover and receipts for payment of the current premiums.

30.6 The minimum insurance cover for physical property, injury, and death is Rs.10.00 Lacs per occurrence with the number of occurrences limited to four. After each occurrence contractor will pay additional premium necessary to make insurance valid for four occurrences always.

30.7 Accident or Injury to workman:

30.7.1 The SBI shall not be liable for or in respect of any damages or compensation payable at law in respect or in consequence of any accident or injury to any workmen or other person in the employment of the contractor or any sub-contractor, save and except an accident or injury resulting from any act or default of the SBI or their agents, or employees. The contractor shall indemnify and keep indemnified SBI against all such damages and compensation, save and except as aforesaid, and against all claims, proceedings, costs, charges and expenses whatsoever in respect thereof or in relation thereto.

30.7.2 Insurance against accidents etc. to workmen

The contractor shall insure against such liability with an insurer approved by the SBI during the whole of the time that any persons are employed by him on the works and shall, when required, produce to the PROJECT ARCHITECT CUM PMC such policy of insurance and receipt for payment of the current premium. Provided always that, in respect of any persons employed by any sub-contractor the contractor's obligation to insure as aforesaid under this sub-clause shall be satisfied if the sub-contractor shall have insured against the liability in respect of such persons in such manner that SBI is indemnified under the policy but the contractor shall require such sub-contractor to produce to the Architect /consultant when such policy of insurance and the receipt for the payment of the current premium.

30.7.3 Remedy on contractor's failure to insure

If the contractor fails to effect and keep in force the insurance referred to above or any other insurance which he may be required to effect under the terms of contract, then and in any such case the SBI may effect and keep in force any such insurance and pay such premium or premiums as may be necessary for that purpose and from time to time deduct the amount so paid by the SBI as aforesaid and also deduct 15% of contract value from any amount due or which may become due to the contractor, or recover the same as debt from the contractor.

30.7.4 Without prejudice to the other rights of the SBI against contractors. In respect of such default, the employer shall be entitled to deduct from any sums payable to the contractor the amount of any damages costs, charges, and other expenses paid by the SBI and which are payable by the contractors under this clause. The contractor shall upon settlement by the Insurer of any claim made against the insurer pursuant to a policy taken under this clause, proceed with due diligence to rebuild or repair the works destroyed or damaged. In this event all the monies received from the Insurer in respect of such damage shall be paid to the contractor and the Contractor shall not be entitled to any further payment in respect of the expenditure incurred for rebuilding or repairing of the materials or goods destroyed or damaged.

31. Commencement of Works:

The date of commencement of the construction work will be reckoned as the recorded date of handing over site by the SBI or 15 days from the date of issue of Work Order of Bank, whichever is later, subject to submission of all required statutory approvals from the Local Authorities.

32. Time for completion:

Time is essence of the contract and shall be strictly observed by the contractor. The time period allowed for obtaining approvals during pre-construction and commencement stage is within 6 months. The entire construction work shall be completed within a period of **24 (Twenty four Months)** including Monsoon & Holidays from the date of commencement of construction works. If required in the contract or as directed by the Architect / SBI, the contractor shall complete certain portions of work before completion of the entire work. However, the completion date shall be reckoned as the date by which the whole work is completed as per the terms of the contract. A time period of 2 months is allowed for obtaining post completion approvals, NOCs and occupancy certificate.

33. Extension of time

33.1 The execution of the work shall commence from such time period as mentioned in the work order or from the date of handing over of the site, whichever is later. The time allowed for carrying out the work as entered into in the agreement shall be strictly observed by the contractor and shall be reckoned from the date of commencement of work. The work shall throughout the stipulated period of contract be proceeded with care and due diligence (time being the essence of the contract) on the part of the contractor. To ensure good progress of the work during the execution, the contractor shall be bound in all cases, by the time schedule submitted by him.

If the Contractor commits default in commencing the execution of the work as aforesaid without any valid reasons, the Initial Security Deposit and Additional Security Deposit (if applicable) shall be forfeited by the Bank and shall be absolutely at the disposal of the Bank without prejudice to any other right or remedy available in law.

The Contractor shall submit a Time and Progress Chart for each milestone. The Project Architect cum PMC may within 7 (seven) working days thereafter, if required modify, and communicate the program approved to the contractor failing which the program submitted by the contractor shall be deemed to be approved by the Project Architect cum PMC. The Chart shall be prepared in direct relation to the time stated in the Contract documents for completion of items of the works. It shall indicate the forecast of the dates of commencement and completion of various trades of sections of the work and may be amended as necessary by agreement between the Bank and the Contractor within the limitations of time imposed in the Contract documents.

In case of non-submission of construction programme by the contractor, the program approved by the Project Architect cum PMC shall be deemed to be final.

The approval by the Project Architect cum PMC of such programme shall not relieve the contractor of any of the obligations under the contract.

The contractor shall submit the Time and Progress Chart and progress report using the mutually agreed software or in other format decided by Project Architect cum PMC for the work done during previous month to the Project Architect cum PMC on or before 5th day of each month.

33.2 If the work(s) be delayed by:-

- (i) force majeure, or
- (ii) abnormally bad weather, or
- (iii) serious loss or damage by fire, or
- (iv) civil commotion, local commotion of workmen, strike or lockout, affecting any of the trades employed on the work, or
- (v) delay on the part of other contractors or tradesmen engaged by Project Architect cum PMC / Bank in executing work not forming part of this Contract, or then upon the happening of any such event causing delay, the Contractor shall immediately give notice thereof in writing to the Project Architect cum PMC but shall nevertheless use constantly his best endeavours to prevent or make good the delay and shall do all that may be reasonably required to the satisfaction of the Project Architect cum PMC to proceed with the works.

- (vi) any other cause like above which, in the reasoned opinion of the Project Architect cum PMC is beyond the Contractor's control.

The contractor shall have no claim of damages for extension of time granted or rescheduling of milestone/s for events listed in sub clause 31.2.

33.3 In case the work is hindered in the opinion of the contractor, by the Bank/ Project Architect cum PMC or for any reason / event, for which the Bank / Project Architect cum PMC is responsible, the Bank, if justified, give a fair and reasonable extension of time and reschedule the mile stones for completion of work. Such extension of time or rescheduling of milestone/s shall be without prejudice to any other right or remedy of the parties in contract or in law, provided further that for concurrent delays under this sub clause and sub clause 31.2 to the extent the delay is covered under sub clause 31.2 the contractor shall be entitled to only extension of time and no damages.

33.4 Request for rescheduling of Mile stones or extension of time, to be eligible for consideration, shall be made by the Contractor in writing within fourteen days of the happening of the event causing delay on the prescribed forms i.e. Form of application by the contractor for seeking rescheduling of milestones or Form of application by the contractor for seeking extension of time (Appendix -XVI) respectively to the Bank through Project Architect cum PMC. The Contractor shall indicate in such a request the period by which rescheduling of milestone/s or extension of time is desired. Contractor shall finalize/ reschedule a particular milestone before taking an action against subsequent milestone. Such extension or rescheduling of the milestones shall be communicated by the Contractor to Project Architect cum PMC in writing together with his request for extension. In event of non-application by the contractor for extension of time, Project Architect cum PMC/ Bank after affording opportunity to the contractor, may give, supported with a programme (as specified under 31.4 above), a fair and reasonable extension within a reasonable period of occurrence of the event.

Extension of time shall be granted before expiry of the contract period so that the contract is in force at the time of granting extension of time. Even if the contractor fails to apply for extension of time, the PROJECT ARCHITECT CUM PMC shall bring the fact to the notice of the Premises Department, Corporate Centre, SBI.

33.4.1 The PMC shall thereafter forward their comments/recommendations to the Deputy General Manager, Premises Department of the Bank along with their recommendations. The Premises Department, Corporate Centre, SBI on being satisfied about the reasonableness of the request of the contractors, in terms of the relevant contract conditions, may recommend a fair and reasonable extension of time as per Bank Guidelines for granting extension of time. While granting extension of time, it shall be clearly stipulated that the extension of time is being given with/ without prejudice to the Bank's right to recover liquidated damages under relevant contract clause. The letter granting extension of time is to be issued by the PMC.

33.4.2 With every request for rescheduling of milestones, or if at any time the actual progress of work falls behind the approved programme by more than 10% of the stipulated period of completion of contract, the contractor shall produce a revised programme without causing any delay in execution of the work. In case of not achieving the desired milestone as per approved programme chart, Bank reserves the right to withhold partial or proportionate amount from the running bills while making payments, up to a maximum of 10% from each running bill during this period. This amount will be released only after Contractor makeup the delays and increase the pace of the project or else will be released during final bill or adjusted in the liquidated damages for delay.

33.5 In case the work is delayed by any reasons by the contractor for reasons beyond the events mentioned in clause 31.2 or clause 31.3 or clause 31.4 and beyond the justified extended date, without prejudice to right to take action, may grant extension of time required for completion

of work without rescheduling of milestones. The contractor shall be liable for levy of compensation for delay for such extension of time. If the contractors fail to complete the work within the stipulated period, the extended time as above or if the delay in completion of the work is attributable to the contractor in any way whatsoever, liquidated damages shall be recovered from the contractor's dues as stipulated in the contract.

34. Rate of progress

Whole of the materials, plant and labour to be provided by the contractor and the mode, manner and speed of execution and maintenance of the works are to be of a kind and conducted in a manner to the satisfaction of the PROJECT ARCHITECT CUM PMC. Should the rate of progress of the work or any part thereof be at any time be in the opinion the PROJECT ARCHITECT CUM PMC too slow to ensure the completion of the whole of the work the prescribed time or extended time for completion the PROJECT ARCHITECT CUM PMC shall thereupon take such steps as considered necessary by the PROJECT ARCHITECT CUM PMC to expedite progress so as to complete the works by the prescribed time or extended time. Such communications from the PROJECT ARCHITECT CUM PMC neither shall relieve the contractor from fulfilling obligations under the contract nor will he be entitled to raise any claims arising out of such directions.

35. Work during nights and holidays

Subject to any provision to the contrary contained in the contract, no permanent work shall have as herein provided be carried on during the night or on holidays without the permission in writing of the SBI/PROJECT ARCHITECT CUM PMC, save when the work is unavoidable or absolutely necessary for the saving of life or property or for the safety of the work in which case the contractor shall immediately advise the SBI/PROJECT ARCHITECT CUM PMC. However, the provisions of the clause shall not be applicable in the case of any work which becomes essential to carry by rotary or double shifts in order to achieve the progress and quality of the part of the works being technically required / continued with the prior approval of the PROJECT ARCHITECT CUM PMC at no extra cost to the SBI.

All work at night after obtaining approval from competent authorities shall be carried out without unreasonable noise and disturbance.

36. No compensation or restrictions of work

If at any time after acceptance of the tender Project Architect cum PMC/ SBI decides to abandon or reduce the scope of work for any reason whatsoever and hence not required, the whole or any part of the work to be carried out. The PROJECT ARCHITECT CUM PMC/SBI shall give notice in writing that effect to the contractor and the contractor shall act accordingly in the matter. The contractor shall have no claim to any payment of compensation or whatsoever on account of any profit or advantage which he might have derived from the execution of the Work fully but which he did not derive in consequence of the foreclosure of the whole or part of the work.

Provided that the contractor shall be paid the charges on the cartage only of materials actually and bona-fide brought to the site of the work by the contractor and rendered surplus as a result of the abandonment, curtailment of the work or any portion thereof and then taken back by the contractor, provided however that the PROJECT ARCHITECT CUM PMC shall have in such cases the option of taking over all or any such materials at their purchase price or a local current rate whichever is less.

37. Suspension of work

The contractor shall, on receipt of the order in writing of the PROJECT ARCHITECT CUM PMC/SBI whose decision shall be final and binding on the contractor) suspend the progress of works or any part thereof for such time and in such manner as PROJECT ARCHITECT CUM PMC may consider necessary so as not to cause any damage or injury to the work already done or endanger the safety thereof for any of following reasons:

- a) On account any default on the part of the contractor, or
- b) For proper execution of the works or part thereof for reasons other than the default of the contractor, or
- c) For safety of the works or part thereof

The contractor shall, during such suspension, properly protect and secure the works the extent necessary and carry out the instructions given in that behalf by the PROJECT ARCHITECT CUM PMC.

If the suspension is ordered for reasons (b) and (c) in sub-para (i) above, the contractor shall be entitled to an extension of time equal to the period of every such suspension. No compensation whatsoever shall be paid on this account.

38. Action when the total security deposit is forfeited

In any case in which under any clause or clauses of this contract, the Contractor shall have rendered himself liable to pay compensation amounting to the whole of his security deposit the PROJECT ARCHITECT CUM PMC shall have the power to adopt any of the following course as they may deem best suited to the interest of the SBI:

- a) To rescind the contract (of which rescission notice in writing to the contractor by - PROJECT ARCHITECT CUM PMC shall be conclusive evidence) and in which case the security deposit of the contractor shall be forfeited and be absolutely at the disposal of SBI.
- b) To employ labour paid by the SBI and to supply materials to carry out the work, or part of the work, debiting the contractor with the cost of the labour and materials cost of such labour and materials as worked out by the PROJECT ARCHITECT CUM PMC shall final and conclusive against the contractor) and crediting him with the value of the work done, in all respects in the same manner and at the same manner and at the same rates as if it had been carried out by the contractor under the terms of this contract certificate of Architect /consultant as to the value of work done shall be final conclusive against the contractor.
- c) To measure up the work of the contractor, and to take such part thereof as shall unexecuted, out of his hands, and to give it to another contractor to complete in which case any expenses which may be incurred in excess of the sum which would have been paid to the original contractor, if the whole work had been executed by him (The amount of which excess the certificates in writing of the Architects / consultant shall final and conclusive) shall be borne by original contractor and may be deducted f any money due to him by SBI under the contract or otherwise, or from his security deposit or the proceeds of sale thereof, or sufficient part thereof.

In the event of any of above courses being adopted by the SBI, the contractor shall have no claim to compensation for any loss sustained by him by reasons of his having purchased or procured any material or entered into any engagements or make any advances on account of, or with a view to the execution of the work or the performance of the contract and in case the contract shall be rescind under the provision aforesaid, the contractor shall not be entitled to recover or to be paid any sum or any work thereto for actually performed under this contract, unless, and until the PROJECT ARCHITECT CUM PMC will have certified in writing the performance of such work and the value payable in respect thereof, and he shall only be entitled to be paid the value so certified.

39. SBI's right to terminate the contract

If the contractor being an individual or a firm commit any 'Act of insolvency' or shall be adjusted an insolvent or being an incorporated company shall have an order for compulsory winding up

voluntarily or subject to the supervision of Govt. and of the Official Assignee of the liquidator in such acts of insolvency or winding up shall be unable within seven days after notice to him to do so, to show to the reasonable satisfaction of the PROJECT ARCHITECT CUM PMC that he is able to carry out and fulfill the contract, and to dye security therefore if so required by the PROJECT ARCHITECT CUM PMC.

(OR)

if the contractor (whether an individual firm or incorporated Company) shall suffer execution to be issued or shall suffer any payment under this contract to be attached by or on behalf of any of the creditors of the contractor.

(OR)

shall assign or sublet this contract without the consent in writing of the SBI through the PROJECT ARCHITECT CUM PMC or shall charge or encumber this contract or any payment due to which may become due to the contractor there under:

- a) Has abandoned the contract; or
- b) Has failed to commence the works, or has without any lawful excuse under these conditions suspended the progress of the works for 14 days after receiving from the SBI through the PROJECT ARCHITECT CUM PMC written notice to proceed, or
- c) has failed to proceed with the works with such diligence and failed to make such due progress as would enable the works to be completed within the time agreed upon, or has failed to remove the materials from the site or to pull down and replace work within seven days after written notice from the SBI through the PROJECT ARCHITECT CUM PMC that the said materials were condemned and rejected by the PROJECT ARCHITECT CUM PMC under these conditions; or has neglected or failed persistently to observe and perform all or any of the acts matters or things by this contract to be observed and performed by the contractor for seven days after written notice shall have been given to the contractor to observe or perform the same or has to the detriment of good workmanship or in defiance of the SBI or Architect's / consultant's instructions to the contrary subject any part of the contract. Then and in any of said cases the SBI and or the Architect / consultant, may not withstanding any previous waiver, after giving seven days' notice in writing to the contractor, determine the contract, but without thereby affecting the powers of the SBI or the PROJECT ARCHITECT CUM PMC or the obligation and liabilities of the contractor the whole of which shall continue in force as fully as if the contract had not been determined and as if the works subsequently had been executed by or on behalf of the contractor. And, further the SBI through the PROJECT ARCHITECT CUM PMC their agents or employees may enter upon and take possession of the work and all plants, took scaffolding, materials, sheds, machineries lying upon the premises or on the adjoining lands or roads use the same by means of their own employees or workmen in carrying on and completing the work or by engaging any other contractors or persons to the work and the contractor shall not in any was interrupt or do any act, matter or thing to prevent or hinder such other contractor or other persons employed for complement and finishing or using the materials and plant for the works.

When the works shall be completed or as soon thereafter as convenient the SBI or PROJECT ARCHITECT CUM PMC shall give a notice in writing to the contractor to remove his surplus materials and plants and should the contractor fail to do so within 14 days after receiving thereof by him the SBI sell the same by publication, and after due publication, and shall, adjust the amount realized by such auction. The contractor shall have no right to question any of the act of the SBI incidental to the sale of the materials etc.

40. Certificate of payment

The contractor shall be entitled under the certificates to be issued by the Architect/ Consultant to the contractor within 10 working days from the date of certificate to the payment from SBI from time to time. The SBI shall recover the statutory recoveries and

other dues including the retention amount from the certificate of payment. The SBI shall recover the statutory taxes, recovering other dues including the retention amount/ mobilization/ advance from the certificate of payment. The tentative list of documents to be submitted to the PMC along with the running bills of the contractor are as follows:-

- i) Detailed joint measurement sheets (MB) from PMC and Contractor's Engineers.
- ii) BOQ/ Abstract of the bill.
- iii) Test certificates and mandatory test reports showing the frequency of tests required.
- iv) Labour compliance reports and returns.
- v) Details of advances, if any, given by the Bank.
- vi) Guarantee certificates for relevant items in the bill.
- vii) Any other details/ documents relevant to the payment and processing of bills.

Only submission of Bills to the SBI/PROJECT ARCHITECT CUM PMC does not relieve the contractor's responsibility. Contractor shall help/assist PROJECT ARCHITECT CUM PMC/SBI during checking/verification of Bills with all required documents, details and presence of Billing Engineer is necessary while scrutiny of Bills.

Provided always that the issue of any certificate by the PROJECT ARCHITECT CUM PMC during progress of works or completion shall not have effect as certificate of satisfaction relieve the contractor from his liability under clause.

The PROJECT ARCHITECT CUM PMC shall have power to withhold the certificate if the work or in part thereof is not carried out to their satisfaction.

The PROJECT ARCHITECT CUM PMC may by any certificate make any corrections required previous certificate.

The SBI shall modify the certificate of payment as issued by the PROJECT ARCHITECT CUM PMC from time to time while making the payment

The contractor shall submit interim bills only after taking actual measurements and properly recorded in the Measurement Book (M. B.)

The Contractor shall not submit interim bills when the value of work done by him is less than the limit as prescribed in NIT, and the minimum interval between two such bill shall be one month.

The final bill may be submitted by contractor within a period of one month from the date of virtual completion and PROJECT ARCHITECT CUM PMC shall issue the certificate of payment within a period of two months. The SBI shall pay the amount within a period of three months from the date of issue of certificate provided there is no dispute in respect of rates and quantities.

The contractor shall submit the interim bills in the prescribed format with all details.

No Running Account Biil/Finat Biil shall be paid for the work till the applicable labour licenses, registration with EPFO, ESIC and BOCW Welfare Board, whatever applicable are submitted by the contractor to the PMC. The following documents shall also be part of the bill submitted by the contractor (these documents shall be owned by the contractor) before making payment:-

- i) Details of person employed with date of their employment up to previous month.
- ii) Documents of payment made to the employees directly into their bank accounts up to previous month.
- iii) Documents of attendance through biometric attendance or other mode up to previous month.

- iv) Documents of deposition of EPF and ESI deductions in the employees accounts up to previous month.
- v) Any penalty imposed on the agency for delay in disbursing payment and deposition of EPF and ESI deductions in the employees accounts up to previous month.
- vi) Any other document(s) required as per statutory requirements and/or as directed by PMC.

In case, any of the documents submitted by the contractor is found false/forged at a later date, action for debarment of contractor will be initiated.

41. Settlement of Disputes and Arbitration

Except where otherwise provided in the contract, all questions and disputes relating to the meaning of the specifications, designs, drawings and instructions hereinbefore mentioned and as to the quality of workmanship or materials used in the work or as to any other question, claim, right, matter or thing whatsoever in any way arising out of or relating to the contract, designs, drawings, specifications, estimates, instructions, orders or otherwise concerning the works or the execution or failure to execute the same whether arising during the progress of the work or after the cancellation, termination, completion or abandonment thereof shall be dealt with as mentioned hereinafter.

41.1 Conciliation: If the contractor considers any work demanded of him to be outside the requirements of the contract, or disputes any drawing, record or decision given in writing by the Project Architect cum PMC / Bank; or if the Project Architect cum PMC / Bank considers any act or decision of the contractor on any matter in connection with or arising out of the contract or carrying out of the work to be unacceptable and disputed; such party may promptly refer such disputes and amount claimed for each dispute to the Conciliator (General Manager (OL & CS)) under intimation to the other party. The Conciliator may then request each party to submit to him a brief written statement describing the disputes and the points at issue. Each party shall send a copy of such statement to the other party. At any stage of the conciliation proceedings, the Conciliator may request a party to submit to him such additional information as he deems appropriate. When it appears to the Conciliator that there exist elements of a settlement which may be acceptable to the parties, he shall formulate the terms of a possible settlement and submit them to the parties for their observations.

After receiving the observations of the parties, he may re-formulate the terms of a possible settlement in the light of such observations. If the parties reach agreement on a settlement of the disputes, they may draw up and sign a written settlement agreement on non-judicial stamp paper as per Stamp Act. The Conciliator shall authenticate the settlement agreement and furnish a copy thereof to each party. The termination of conciliation proceedings shall be in accordance with Section 76 of The Arbitration and Conciliation Act, 1996. No party shall be represented before the said Conciliator by an advocate or legal counsel. The conciliation proceedings shall be completed within 45 days from the receipt of reference. This time may be extended by 15 days by the Conciliator. The conciliation proceedings shall be deemed to have been terminated at the end of 60 days from the receipt of reference.

41.2 Arbitration (Institutional Arbitration through ICA):

Any dispute or difference whatsoever arising between the parties out of or relating to the construction, meaning, scope, operation or effect of this contract or the validity or the breach

thereof shall be settled by arbitration in accordance with the Rules of Domestic Commercial Arbitration of the Indian Council of Arbitration (ICA) and the award made in pursuance thereof shall be binding on all the parties.

41.2.1 Applicable Law: The provisions of the Arbitration and Conciliation Act, 1996 (Act 26 of 1996) and any further statutory modification or re-enactment thereof shall be applicable. The proceeding before the Arbitral Tribunal shall be governed by applicable laws in India.

41.2.2 Fee payable to Arbitrator(s): The fee payable to the arbitral tribunal shall be as per Rule 31 of Rules of Domestic Commercial Arbitration of the ICA. The expenses payable to the arbitrator or Arbitration Tribunal and to the ICA appointed by the ICA will be borne and paid by both/ all the parties in equal proportion or in such other manner as may be determined by the Arbitral Tribunal.

41.2.3 Place of Arbitration: The place of arbitration shall be neutral and mutually decided by both the parties.

42. Power Supply

The contractor shall make his own arrangements for power and supply/distribution system for driving plant or machinery for the work and for lighting purpose at his own cost. The cost of running and maintenance of the plants are to be included in his tender prices. He shall pay all fees and charges required for the power supply and include the same in his tendered rates and hold the owner free from all such costs. He has to obtain necessary approval from the appropriate authorities, if required.

43. Water Supply

The contractor shall make his own arrangements for water required for the work and nothing extra will be paid for the same. This will be subject to the following condition.

- i) That the water used by the contractor shall be fit for construction purposes to the satisfaction of the Architect / consultant's.
- ii) The contractor shall make alternative arrangements for the supply of water if the arrangement made by the contractor for procurement of water in the opinion of the PROJECT ARCHITECT CUM PMC is unsatisfactory.
- iii) The contractor shall construct temporary well / tube well in SBI land for taking water for construction purposes only after obtaining permission in writing from the SBI. The contractor has to make his own arrangements for drawing and distributing the water at his own cost.
- iv) He has to make necessary arrangements and comply with Environmental Clearance guidelines/NOC.
- v) To avoid any accidents or damages caused due to construction and subsequent maintenance of the wells.
- vi) He has to obtain necessary approvals from local authorities, if required, at his own cost.
- vii) He shall restore the ground to its original condition after wells are dismantled on completion of work or hand over the well to the SBI without any compensation as directed by the Architect / consultant.

44. Treasure Trove etc.

Any treasure trove, coin or object antique which may be found on the site shall be the property of SBI and shall be handed over to the bank immediately.

45. Method of Measurement

Unless otherwise mentioned in the schedule of quantities or in mode of measurement, the measurement will be on the net quantities or work produced in accordance with up-to-date rules laid down by the Bureau of Indian Standards. In the event any dispute / disagreement the decision of the PROJECT ARCHITECT CUM PMC/SBI shall be final and binding on the contractor.

Precedence to be followed for measurements is mentioned below.

- a) As mentioned in Price Bid
- b) As mentioned in Technical Bid
- c) As Per relevant IS codes
- d) As per sound Engineering Practices or any other relevant standards available.

46. Maintenance of Registers

The contractor shall maintain the following registers as per the enclosed formats at site of work and should produce the same for inspection of SBI /PROJECT ARCHITECT CUM PMC whenever desired by them. The contractor shall also maintain the records / registers as required by the local authorities / Govt. from time to time.

- i) Register for secured advance
- ii) Register for hindrance to work
- iii) Register for running account bill
- iv) Register for labour.
- v) Register for cement and steel.
- vi) Register for cube testing and slump testing.

47. PRICE VARIATION ADJUSTMENT (PVA) FOR ALL MATERIALS (INCLUDING CEMENT & STEEL) & LABOUR

(Applicable only for completion period beyond 12 months)

In partial modification of the provisions made elsewhere in this contract regarding rate quoted being not subject to any variations, price adjustments to the value of work payable to the Contractor at tendered rates shall be made towards variations in the prices of materials and labour in the manner specified hereunder: -

If the prices of materials and/or wages of labour required for execution of the work increase, the contractor shall be compensated for such increase as per provisions detailed below and the amount of the contract shall accordingly be varied, subject to the condition that such compensation for escalation in prices and wages shall be available only for the work done during the stipulated period of the contract including the justified period extended under the provisions of clause 31 of the contract without any action under clause 12.

Such compensation for escalation in the prices of materials and labour, when due, shall be worked out based on the following provisions:

- (i) The base date for working out such escalation shall be the last stipulated date of receipt of tenders including extension, if any.
- (ii) The cost of work on which escalation will be payable shall be reckoned as below :
 - a. Gross value of work done up to this quarter: (A)

- b. Gross value of work done up to the last quarter : (B)
- c. Gross value of work done since previous quarter (C) = (A-B)
- d. Full assessed value of Secured Advance fresh paid in this quarter : (D)
- e. Full assessed value of Secured Advance recovered in this quarter : (E)
- f. Full assessed value of Secured Advance for which escalation Payable in this quarter, (F) = (D-E)
- g. Advance payment made during this quarter: (G)
- h. Advance payment recovered during this quarter: (H)
- i. Advance payment for which escalation is payable in this Quarter (I) = (G-H)
- j. Amount paid based on prevailing market rates due to deviations/variations as per clause 12 during this quarter: (J)

Then, $M = C+F+I-J$

Cost of work for which escalation is applicable (W) = 0.85M

Components for materials, labour, etc. shall be pre-determined for every work and incorporated in the conditions of contract attached to the tender documents included in Schedule 'F'. The decision of the Engineer-in-Charge in working out such percentage shall be binding on the contractors.

- (iii) The following principles shall be followed while working out the payment/recovery on account of variation of prices of materials and/ or wages of labour.
 - (a) The compensation for escalation shall be worked out at quarterly intervals and shall be with respect to the cost of work done as per bills paid during the three calendar months of the said quarter. The date of submission of bill by the contractor to the department shall be the guiding factor to decide the bills relevant to the quarterly interval. The first such payment shall be made at the end of three months after the month (excluding the month in which the letter of commencement of work is issued by the PMC) and thereafter at three months' interval. At the time of completion of the work, the last period for payment might become less than 3 months, depending on the actual date of completion.
 - (b) The indices as defined below (excluding L_1) relevant to any quarter/period for which such compensation is to be paid shall be the arithmetical average of the indices relevant to the three calendar months. If the period up to the date of completion after the quarter covered by the last such installment of payment, is less than three months, the indices shall be the average of the indices for the months falling within that period.
 - (c) The minimum wage of an unskilled Mazdoor shall be the higher of the wage notified by Government of India, Ministry of Labour and that notified by the local administration both relevant to the place of work and the period of reckoning.
 - (d) The escalation for labour also shall be paid at the same quarterly intervals when escalation due to increase in cost of materials is paid under this clause. If such revision of minimum wages takes place during any such quarterly intervals, the escalation compensation shall be payable at revised rates only for work done in subsequent quarters;
 - (e) Irrespective of variations in minimum wages of any category of labour, for the purpose of this clause, the variation in the rate for an unskilled Mazdoor alone shall form the basis for working out the escalation compensation payable on the labour component.
- (iv) In the event the price of materials and/or wages of labour required for execution of the work decreases, there shall be a downward adjustment of the cost of work so that such price of materials and/or wages of labour shall be deductible from the cost of work under this contract and in this regard the formula herein stated below under this Clause 47 shall mutatis mutandis apply.
- (v) The contract price shall be adjusted for increase or decrease in rates and prices of labour, cement, steel reinforcement bar, fuel and lubricants and other input materials as per percentage of materials/labour specified in schedule F and in accordance with the principles, procedures and formulae specified below:

(a) Price adjustment for change in cost shall be paid in accordance with the following formulae:

i. For Construction period of this work:

$$V_W = W * (1/100) * [C_P * (C_I - C_0) / C_0 + L_P * (L_I - L_0) / L_0 + CM_P * (CM_I - CM_0) / CM_0 + EM_P * (EM_I - EM_0) / EM_0 + F_P * (F_I - F_0) / F_0 + S_P * (S_I - S_0) / S_0 + B_P * (B_I - B_0) / B_0]$$

ii. For Maintenance period of this work: $V_W = W * (1/100) * [L_P * (L_I - L_0) / L_0 + CM_P * (CM_I - CM_0) / CM_0 + EM_P * (EM_I - EM_0) / EM_0 + B_P * (B_I - B_0) / B_0]$ (* means multiplication) Where, W=cost of work done as per para (ii) above.

V_W (Variation of cost of Work) = Increase or decrease in the cost of works during the period under consideration due to change in the rates for relevant components.

Percentage components of materials & labour as specified in the schedule F are defined as under:

C_P - Cement component,

L_P - Labour component,

CM_P - Civil component of other construction materials,

EM_P - E & M component of construction materials

F_P - POL (Diesel) component

S_P - Reinforcement steel bars/TMT bars/structural steel (including strands and cables) component

B_P - Bitumen component

Indices for various components of materials & labour to be used for the purpose of this Clause are defined as under:

C_0 = Wholesale Price Index for Pozzolana Cement published by office of the Economic Adviser, Ministry of Industry & Commerce valid for the month of last date of receipt of tender including extension, if any.

C_I = Wholesale Price Index for Pozzolana Cement published by office of the Economic Adviser, Ministry of Industry & Commerce for the period under consideration.

L_0 = Minimum daily wage in rupees of an unskilled adult mazdoor, fixed under any law, statutory rule or order as on the last date of receipt of tender including extension, if any.

L_I = Minimum wage in rupees of an unskilled adult mazdoor, fixed under any law, statutory rule or order as applicable on the last date of the quarter previous to the one under consideration.

CM_0 = Price Index for civil components of other construction materials valid for the month of the last date of receipt of tender including extension, if any, as issued by the office of CE CSQ (Civil) or successor.

CM_I = Price Index for civil components of other construction materials for the period under consideration and as issued by the office of CE CSQ (Civil) or successor.

EM_0 = Price Index for E & M components of construction materials valid for the month of the last date of receipt of tender including extension, if any, as issued by the office of CE CSQ (Electrical) or successor.

EM_I = Price Index for E & M components of construction materials for the period under consideration and as issued by the office of CE CSQ (Electrical) or successor.

F_0 = Wholesale Price Index of HSD (High Speed Diesel) published by office of the Economic Adviser, Ministry of Industry & Commerce valid for the month of the last date of receipt of tender including extension, if any.

F_I = Wholesale Price Index of HSD (High Speed Diesel) published by office of the Economic Adviser, Ministry of Industry & Commerce for the period under consideration.

S_0 = Wholesale Price Index of Mild Steel-long products published by office of the Economic Adviser, Ministry of Industry & Commerce valid for the month of the last date of receipt of tender including extension, if any

S_I = Wholesale Price Index of Mild Steel-long products published by office of the Economic Adviser, Ministry of Industry & Commerce for the period under consideration.

B_0 = Wholesale Price Index of Bitumen published by office of the Economic Adviser, Ministry of Industry & Commerce valid for the month of the last date of receipt of tender including extension, if any

B_1 = Wholesale Price Index of Bitumen published by office of the Economic Adviser, Ministry of Industry & Commerce for the period under consideration.

Stipulations:

(i) PVA Clause is operative either way i.e. if the variations in above referred price indices are on the plus side. PVA shall be payable to the contractor and if they are on the negative side PVA shall be recoverable from the contractor for the respective bill period of occurrence of fluctuations.

(ii) The rates quoted by the Contractor shall be treated as firm for the value of work required to be done in the first 12 months of the contract period from the date of written order to commence work and no PVA is admissible on the same on any grounds whatsoever. The value of work required to be done during the first 12 months of the contract period shall be taken as 80% of the value of work to be done on pro-rata basis in 12 months as compared to the total stipulated completion period. No PVA is admissible on the value of work required to be done in first 12 months as worked out above, even if this value of work is actually done in a period longer than 12 months. However, in case of any delay in the first 12 months due to genuine reasons which are not attributable to the contractor and which are beyond his control, such period of delay will be deducted from 12 months, and the value of work to be done will be 80% of the pro-rata value of work to be done in such reduced period on pro-rata basis.

(iii) (a) For works where the original stipulated period of completion is not more than 12 months, no PVA whatsoever is permissible under this clause. However, if the period of completion is delayed beyond 12 months on account of genuine reasons which are not attributable to the contractor and which are beyond his control, PVA will be admissible on the value of work done only in excess of value of work required to be done on a pro-rata basis in the first 12 months minus the period of such genuine delay.

(b) For purpose of admissibility of PVA all the cumulative period of extensions granted for reasons which are solely attributable to the contractor is excluded from the total extended period of the contracts and PVA shall not be admissible on the value of work done during such period of extensions, which are granted for keeping the contract current, but only due to reasons for which the contractor was solely responsible. Periods of extensions granted on account of genuine reasons which are not attributable to the contractor and which are beyond his control will, however, be included in the period for which PVA is admissible.

(c) Notwithstanding anything to the contrary mentioned in any other clause/ clauses of the contract, extensions of the contract period shall be granted by the Architect only with prior approval of the Bank. Extensions granted by the Architect without Bank's prior approval shall not bind the Bank for payment of PVA for work done in the concerned period of extensions.

(iv) (a) Where the total cost of work done beyond the value of work required to be done in the first 12 months (vide note (ii) and (iii) above) does not exceed Rs.50 lacs the total amount of PVA worked out on the basis of provisions of foregoing stipulations will be limited to an upper ceiling of 10% of such value of work done in excess of value of work required to be done in the first 12 months, minus the cost of any materials issued/arranged by the Bank at fixed prices i.e. $P - Y$ (these terms being as per definitions given formulae A and B above).

(b) Where the total value of work done beyond the value of work required to be done in the first 12 months exceeds Rs.50 lacs, the PVA on the first Rs.50 lacs will be calculated as provided for in the foregoing para and for the balance value of work done for which PVA is admissible subject to foregoing conditions, the PVA will have the upper ceiling of 10% but it will be worked out at a lower rate i.e. 80% of the amount worked out as per the formulae A and B referred to earlier.

(v) In working out the amount of PVA as per all the foregoing stipulations, value of such extra items or such portions of extra items the rates of which are derived from the prevailing market

rates of materials and labour will not be included in the value of work done. Value of only such extra items or such portions of extra items, rats of which are derived entirely from tendered rates will be included in the value of work on which PVA as calculated.

(vi) For claiming the payment for PVA the contractor shall keep such books of accounts and other documents, vouchers receipts etc. as may be required by the Bank/Architect, for verification of the increased claims or reduction to be made as the case may be and he shall also allow Engineers and/or other duly authorized representatives of the Bank/Architects and furnish such information as may be required or called for to enable verification of the claim within a week of such request.

(vii) The contractor is required to submit to the Bank, through the Architect, his claims for PVA separately for each running Bill for the individual bill periods for the work paid to him by the Bank. He will also be required to submit detailed calculations in support of the claims.

(viii) No claim will be entertained from the contractor for interest or any other grounds for nonpayment or for any delay in payment of PVA due to late publication or non-availability of the necessary price indices or due to delay in preparation of the Running or Final Bills.

(ix) In view of adjustments for variations in process of materials and labor which have been covered in this clause no other adjustments for any reason whatsoever like statutory measures, taxes, levies, etc. will be allowed.

47.a Materials Having Basic Price

If the basic rate of any material used for the work is more or less than the basic rate given in schedule of quantities, in that case differential rate will be 1.15 times of actual rate without GST minus Basic rate in the tender. The actual rate without GST shall be taken from the GST invoice produced by the contractor subject to be found in order as per the then prevailing market rates by the Architect & the Bank. The differential rate shall be applicable for the actual quantity executed & measured for that item of work. The differential amount thus calculated shall be either plus or minus and shall be paid or recovered from the contractor. GST shall be paid on this amount.

It shall be mandatory to obtain approval of quantity / rate for the PMC / Bank before purchase of any material.

In the above case for calculating price variation as per clause 42 of GCC, amount of above material/s shall be deducted as per basic rate from the total work done amount.

48. Force Majeure

48.1 Neither contractor nor SBI shall be considered in default in performance of the obligations if such performance is prevented or delayed by events such as but not war, hostilities revolution, riots, civil commotion, strikes, lockout, conflagrations, epidemics, pandemic, accidents, fire, storms, floods, droughts, earthquakes or ordinances or any act of or for any other cause beyond the reasonable control of the party affected or prevents or delayed. However, a notice is required to be given within 30 days from the happening of the event with complete details, to the other party to the contract, if it is not possible to serve a notice, within the shortest possible period without delay.

48.2 As soon as the cause of force majeure has been removed the party whose ability perform its obligations has been affected, shall notify the other of such cessation and the actual delay incurred in such affected activity adducing necessary evidence in support thereof.

48.3 From the date of occurrence of a case of force majeure obligations of the party affected shall be suspended during the continuance of any inability so caused. With the caused itself and

inability resulting there from having been removed, the agreed time completion of the respective obligations under this agreement shall stand extended a period equal to the period of delay occasioned by such events.

48.4 Should one or both parties be prevented from fulfilling the contractual obligations by state of force majeure lasting to a period of 6 months or more the two parties, shall each other to decide regarding the future execution of this agreement.

49. Local laws, Acts Regulations:

The contractor shall strictly adhere to all prevailing labour laws inclusive at contract labour (regulation and abolition act of 1970) and other safety regulations. The contractors should comply with the provision of all labour legislation including the latest requirements of the Acts, laws, any other regulations that are applicable to the execution of the project.

- i) Minimum wages Act 1948 (Amended)
- ii) Payment of wages Act 1936 (Amended)
- iii) Workmen's compensation Act 1923 (Amended)
- iv) Contract labour regulation and abolition act 1970 and central rules 1971 (Amended)
- vi) Apprentice act 1961 (Amended)
- vii) Industrial employment (standing order) Act 1946 (Amended)
- viii) Personal injuries (Compensation insurance) act 1963 and any other modifications
- ix) Employees' provident fund and miscellaneous provisions Act 1952 and amendment thereof
- x) Shop and establishment act
- xi) Any other act or enactment relating thereto and rules framed there under from time to time.
- xii) Prevailing Indian Electricity rules & act.

50. SAFETY CODE:

Safety code to be followed as per para Section-3 of GCC.

51. Accidents

The contractor shall immediately on occurrence of any accident at or about the site or in connection with the execution of the work report such accident to the Architect / consultant. The contractor shall also such report immediately to the competent authority whenever such report is required to be lodged by the law and take appropriate actions thereof.

52. BIDDING RESTRICTIONS

The contractor's shall be bound to comply the following provision in terms of "Restrictions imposed by the Government of India, Ministry of Finance Department of Expenditure under Rule 144 (XI) of General Financial Rules 2017 vide their order no. F. No 6/18/2019/PPD dated 23rd July 2020" (including any amendment/ revision thereto) as under.

- a) Any bidder from a country which shares a land border with India will be eligible to bid in this tender ONLY if the bidder is registered with the Competent Authority (registration committee constituted by the Department for Promotion of Industry and Internal Trade).
- b) Bidder' (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial judicial person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or Office controlled by such person, participating in a procurement process.
- c) 'Bidder from a country which shares a land border with India (such a country)' for this purpose means:

- i. An entity incorporated, established or registered in such a country; or
- ii. A subsidiary of an entity incorporated, established or registered in such a country; or
- iii. An entity substantially controlled through entities incorporated, established or registered in such a country; or
- iv. An entity whose beneficial owner is situated in such a country; or
- v. An Indian (or other) agent of such an entity; or
- vi. A natural person who is a citizen of such a country; or
- vii. A consortium or joint venture where any member of the consortium or joint venture falls under any of the above.

The beneficial owner for the purpose of (iv) above will be as under:

1. In case of A Company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more judicial person, has a controlling interest or who exercises control through other means. Explanation

a. "Controlling ownership interest" means ownership of or entitlement to more than twenty five percent of shares or capital or profits of the company.

b. "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders agreements or voting agreements.

2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more judicial person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership.

3. In case of an unincorporated association or body of Individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more judicial person, has ownership of or entitlement to more than fifteen percent of the property or the capital or profits of such association or body of individuals.

4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official.

5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

d) An Agent is a person to do any act for another, or to represent another in dealings with third person.

e) The successful bidder shall not be allowed to sub-contract works to any contractor from country which shares a land border with India unless such contractor is registered with the Competent Authority. All bidders need to submit a declaration-cum-certificate (along with proof) in this regard as per "Annexure II". Failure to submit such valid declaration-cum-Certificate will make the bid liable for rejection."

53. Substandard works and materials:

The contractors are required to execute all works satisfactorily and according to the specifications.

- 1. If any material or work is found to be unsound, imperfect, or inferior, from what is specified in the contract, the contractor shall be advised to rectify or re-execute the work or remove the material as the case may be within a reasonable time depending upon the nature of work. If the contractor fails to do so, the work shall be got redone or rectified or the material

replaced through any other agency at the contractor's risk and cost as per the provisions of the contract. The form of letter to be given to the contractor in regard to rectification of defective work and removal of substandard material is to be issued as per Bank's Standard Format.

2. Under certain exceptional circumstances, when the substandard work done cannot be rectified or redone because of structural or other constraints, the matter shall be reported to the Architects cum PMC and Premises Department, SBI and if it is subsequently decided to accept the said work, payment for such work shall be allowed at a reduced rate arrived at keeping in view the nature and extent of deviation from the specifications or drawings.

54. DELINQUENCIES

The under noted delinquencies / defaults / misconduct / misdemeanors on the part of tenderer or enlisted contractor will attract disqualification action.

- a) Incorrect information about credentials, about his performance, equipment, resources, technical staff etc.
- b) Non-submission of the fresh / latest income tax clearance certificate
- c) Irregular tendering practice.
- d) Submission of tender containing far too many arithmetical errors and freak rates.
- e) Revoking a tender without any valid reasons.
- f) Tardiness in commencing work
- g) Poor organization at site and lack of his personal supervision
- h) Ignoring Bank's notices for replacement / rectification of rejected materials, workmanship etc.
- i) Violating any of the important conditions of contract i.e. site facilities, insurance, labour laws, ban on subletting etc.
- j) Lack of promptitude and co-operation in measurement of work and settlement of final account.
- k) Non-submission of vouchers and proof of purchases etc.
- l) Tendency towards putting up false and untenable claims.
- m) Tendency towards suspension of work for frivolous reasons.
- n) Treatment of labour
- o) Bad treatment of sub-contractors (piece workers) and unbusiness like dealings with suppliers of material.
- p) Lack of co-operation with nominated contractors of Bank
- q) Contractors becoming Bankrupt or insolvent.
- r) Contractor's conviction by a Court of Law.
- s) Failure to satisfactorily rectify defects during Defects Liability Period (DLP) and discovery of latent defects in contractor's work after the expiry of DLP of his contract.

54.1 DISQUALIFICATION ACTION AGAINST (DELINQUENCIES OF) CONTRACTOR

The award of the under noted disciplinary action shall be considered.

- a) Placing embargo on issue of tenders or temporary suspension from the Bank's approved list.
- b) Permanent ban on issue of tenders and removal from the Bank's approved list.

54.2 PROCEDURE

1. Correspondence on this subject shall be initiated (marked confidential) by the PMC/ SBI who discovered the contractor's misdemeanors / delinquencies etc.
2. The correspondence shall contain facts and proofs and not mere suspicions.

3. No disqualification action shall be taken against a contractor by an officer below rank of General Manager or the authority who have accorded approval for empanelment of pre-qualification.
4. Record of disqualification action taken against contractors shall be maintained in a separate file as also in the concerned contractor's dossier.

55. Observance of Contract Labour Act 1970

Various provisions of the Contract labour Act 1970 and the rules made there under cast certain obligations on the Bank in respect of Bank's Projects under construction at various centers. Under the Act, the Deputy General Manager of Premises Department, State Bank of India would be considered as the "Principal Employer", even though the labourers are employed by the building contractor. The Act applies to every establishment in which twenty or more workmen are employed or were employed on any day of the preceding 12 months as contract labour. A workman shall be deemed to be employed as contract labour in connection with the work of an establishment when she/he is hired in connection with such work through a contractor with or without the knowledge of the principal employer.

These provisions relate to-

(i) Registration of Establishment (Section 7).

The principal employer shall make an application to the registering officer in the prescribed manner for registration of establishment. The application for registration shall be made in triplicate in Form No.1 (Ref. Annexure XII) to the registering officer of the area in which the establishment sought to be registered is located. The application shall be accompanied by the Treasury receipt showing payment of fees for the registration of the establishment. The application shall be either personally delivered to the registering officer or sent to him by registered post. The employer can not employ the contract labour in his establishment unless he registers under Section 7 of the Act.

(ii) Maintenance of registers and other records (Section 29).

The following registers and records are required to be maintained by the Principal Employer:

1. Register of contractors in Form XII of the Contract Labour (Regulation & Abolition) Control Rules 1971 (Refer Annexure-XIII).
2. Notice showing the rates of wages, hours of work, wage period, dates of payment of wages, names and address of the Inspectors having jurisdiction and date of payment of unpaid wages, shall be displayed in English and in Hindi and in local language, in conspicuous places at the work site.
3. Return intimating the actual date of the commencement or completion of each contract work, under each contractor, shall be submitted to the Inspector within 15 days from the commencement or completion of the work as the case may be. The return shall be filed in Form No.VI B.
4. The annual return in duplicate in Form No. XXV shall be submitted to the Registering Officer concerned so as to reach him not later than the 15th of February following the end of the year to which it relates.

All the registers, records and notices shall be produced on demand before the Inspector or any other authority under the Act.

(iii) Responsibility of payment of wages of workmen (Section 21).

Every principal employer shall nominate a representative duly authorized by him to be present

at the time of disbursement of wages by the contractor and it shall be the duty of such representative to certify the amounts paid as wages in the prescribed manner. The authorized representative shall record under his signature, a certificate at the end of the entries in the Register of wages or in the Register of wage and Muster Roll, in the following form.

"Certified that the amount shown in Column No. _____ has been paid to the workmen concerned in my presence on _____ at _____."

The Contractor shall be advised to disburse the wages in the presence of the authorized representative. If the contractor fails to make payment of wages within the prescribed period or makes short payment, the principal employer shall be liable to make payment of wages in full or the unpaid balance due to the contract labour employed by the contractor and recover the amount so paid from amounts payable to the contractors.

(iv) Welfare measures (Sections 16 to 19)

The welfare measures like canteen, rest rooms and other facilities to the contract labour are required to be provided by the contractor himself, but if any of the facilities is not provided by the contractor, then it shall be provided by the employer within 7 days of the commencement of the employment of contract labour. However, all expenses incurred by the Bank in providing the amenity shall be recovered from the Contractor either by deductions from any amount payable to the contractor or as a debt payable by the contractor.

(v) Penalty for contravention (Section 22 to 27).

a) Whoever obstructs an Inspector in the discharge of his duties under the Act or refuses or willfully neglects to afford the Inspector any reasonable facility for making any inspection, examination, enquiry or investigation authorised by or under the Act in relation to an establishment, shall be punishable with imprisonment for a term which may extend to 3 months or with fine which may extend to Rs.500/- or with both.

b) The contravention of any provision of the Act or of the rules made thereunder or contravention of any condition of a license granted under the Act is punishable with imprisonment which may extend to 3 months or with fine which may extend up to Rs.1000/- or with both.

The Site Engineer/PROJECT ARCHITECT CUM PMC shall ensure that all the obligations under the relevant provisions of the Act including obtaining licenses by the contractor under Section 12 of the Act are complied with. Before releasing the contractor's final payment, they shall also ensure that the contractors have paid all dues to their contract labour.

Note : The contractor has to meticulously comply with para 56 & relevant forms/ returns about the Observance of Contract Labour Act 1970 and its updated version/ amendments time to time.

55.1. FORM I: FORMAT OF APPLICATION FOR REGISTRATION OF ESTABLISHMENT EMPLOYING CONTRACT LABOUR

1	Name and location of the Establishment.	
2	Postal address of the Establishment.	
3	Full name and address of the Principal Employer. (furnish father's name in the case of individuals)	
4	Full name and address of the Manager or the person responsible for the supervision and control of the Establishment.	
5	Nature of work carried on in the Establishment.	
6	Particulars of Contractors and Contract Labour:	
(a)	Names and address of the Contractors	
(b)	Nature of work in which contract labour is employed or is to be employed.	
(c)	Maximum number of contract labour to be employed any day through each Contractor.	
(d)	Estimated date of commencement of each contract work under each Contractor.	
(e)	Estimated date of termination of employment of contract labour under each Contractor.	
7	Particulars of Treasury Receipt enclosed. (Name of the Treasury, Amount and Date)	

I hereby declare that the particulars given above are true to the best of my knowledge and belief.

Principal Employer

Seal and Stamp

.....

55.2. FORM XII: FORMAT OF REGISTER OF CONTRACTORS

1 Name and addresses of the Principal Employer _____

2 Name and address of the Establishment _____

Sr. No	Name and address of the contractor	Nature of work on contract	Location of contract work	Period of contract from to	Maximum number of workmen employed by the contractor

I hereby declare that the particulars given above are true to the best of my knowledge and belief.

Principal Employer

Seal and Stamp

.....

55.3. FORM VI-B: FORMAT OF NOTICE OF COMMENCEMENT/COMPLETION OF CONTRACT WORK

1. Name and Principal Employer & address.
2. No. and Date of certificate of registration
3. I / We hereby intimate that the contract work _____ (Name of work) given to _____ (Name and address of the contractor) having License No. _____ dated _____ has commenced/has been completed with effect from _____(date)/ on _____(date).

Signature of the Principal Employer

The Inspector,

55.4. FORM XXV: FORMAT OF ANNUAL RETURN OF THE PRINCIPAL EMPLOYER TO BE SENT TO THE REGISTERING OFFICER

Sr. No		Year ending 31st December
1	Full name and address of the Principal employer	
2	Name of the Establishment. (a) District (b) Postal Address (c) Nature of operation/industry/work carried on	
3	Full name of the Manager or person responsible for supervision control of the Establishment.	
4	Number of Contractors who worked in the Establishment during the year (Given details as per proforma below).	
5	Nature of work/operations on which contract labour was employed.	
6	Total number of days during the year on which contract labour was employed.	
7	Total number of man days worked by contract labour during the year.	
8	Maximum number of workmen employed directly on any day during the year.	
9	Total number of days during the year on which direct labour was employed.	
10	Total number of man days worked by directly employed workmen.	
11	Changes, if any, in the management of the establishment, its location or any other particulars furnished to the Registering Officer in the application for Registration indicating also the dates.	

Place_____

Date_____

Principal Employer

Name

56. Co-ordination and Monitoring:

- a) It is the prime responsibility of the PROJECT ARCHITECT CUM PMC to ensure that execution of the work progresses smoothly in accordance with the programme and in proper co-ordination among different agencies.
- b) The PROJECT ARCHITECT CUM PMC shall keep a close watch on the progress of work, the resources position etc. and take suitable timely remedial measures to sort out the bottlenecks in consultation with the concerned Department of the Bank.
- c) Site meetings shall be held at periodical intervals at least once in a month or at closer intervals where PROJECT ARCHITECT CUM PMC/SBI and the representatives of various agencies who are involved in the project shall attend and review the progress of work and sort out hindrances, if any.
- d) Concerned Project Engineers shall attend site meetings as often as possible in the interest of expeditious progress of the work. Minutes of the site meetings shall be prepared by the Architects/PROJECT ARCHITECT CUM PMC and furnished to the concerned Department and others concerned immediately after of holding such meeting.
- e) In terms of the contract provisions, the contractors for general building work are required to submit progress photographs (in triplicate) at the beginning of each month. The photographs shall be so taken in such a manner so as to give a fair idea of progress of construction and the date of photographs taken shall be written on the reverse.
- f) As a faster means of coordination and monitoring, the use of advanced technology may be used.

57. Testing of materials and approval:

- a) To ensure use of quality materials and to exercise proper quality control on the works, certain tests are to be undertaken regularly by the contractor during the progress of the work as per the provisions of the contract. Some of the important tests that are to be carried out on the construction materials are such as water, steel, bricks, cement, tiles, timber, particle boards, aggregates, pipes, fittings, concrete, wires/cables, M.S. sheets, conduits, earth pits and these shall be conducted as per the relevant BIS specifications/agreement at the Government approved Technical Institutes/Laboratories. Report on these tests shall be forwarded to the Architects/PROJECT ARCHITECT CUM PMC who shall duly certify the results thereof are in order and the materials may be used in the work. If the results do not conform to the relative BIS, the architects shall take immediate appropriate action as per terms of contract.
- b) Results of all concrete cube tests shall be recorded in a Register of Cube Tests as per Annexure VI maintained at site in a register and signature of the contractors and Site Engineer/PROJECT ARCHITECT CUM PMC be obtained.
- c) In case to ascertain quality of executed work on site SBI/PROJECT ARCHITECT CUM PMC may ask Contractor to carry out specialized third-party tests, then the contractor to carry out those tests without any extra cost to SBI/PROJECT ARCHITECT CUM PMC.
- d) Under the terms of contract, the contractors are required to submit samples of various materials, items, fittings etc. for the approval of the Bank and architect. For this purpose, special site meetings shall be arranged in the initial stage of project execution. The materials of brand names, if any, given in the contract shall only be considered for quoting the rates and will be selected. In exceptional cases only like outdate of product technology, closure of company etc., equivalent material usage other than mentioned in approved materials list shall be allowed after duly approval from the SBI/PROJECT ARCHITECT CUM PMC. SBI reserves the right to reject the materials without assigning any reason. As far as possible, the materials of brand names, if any, given in the contract shall only be selected.

58. Site order book:

- i) For issuing instructions to contractors in the course of day-to-day supervision of works, site order book shall be maintained by the Site Engineer/PROJECT ARCHITECT CUM PMC. Instructions should be prepared in triplicate and serially numbered. A copy of these instructions can be given to the contractor and architect for necessary action. While issuing such instructions, the contractor/his authorized representatives' signature shall be obtained on the office copy. The format of site order book is available at Annexure-VII.
- ii) Instructions in the site order book shall be recorded under the signature of the SBI/PROJECT ARCHITECT CUM PMC. The Bank's Engineer during his periodical inspection/visit shall peruse and record his instructions, if any, in this book.
- iii) All instructions to the contractors which are at variance with tender provisions as also pointing out lapses on the part of the contractors to adhere to the tender specifications shall be issued in writing through site order book by the SBI /PROJECT ARCHITECT CUM PMC as well as architect and Bank's officials visiting the site.
- iv) The site order book shall be kept in the custody of the SBI/PROJECT ARCHITECT CUM PMC at site. This fact shall be made clear to the contractors at the beginning of the work.
- v) The site order book shall be referred to at the time of making final payments to the contractors.
- vi) The site order book shall be preserved for a period of 5 years or up to the time of all disputes/arbitration cases of the work are finally settled, whichever is later, after completion of a work in the same manner as a M.B.

59. Hindrance Register:

In order to have a record of hindrance in the progress of work which may result in delays and consequent claims from the contractors for extension of time a Hindrance Register shall be maintained at the construction site. The details of hindrances with time period shall be recorded by the PROJECT ARCHITECT CUM PMC therein when these occur and all recordings shall be signed jointly by the PROJECT ARCHITECT CUM PMC and the contractor's representative. A format for hindrance register is available at Annexure- VIII. The extract of the same shall be sent to the Premises Department. While considering the contractor's request for extension of time for completion of work, this register shall be referred to.

60. Site Register:

The following registers are to be maintained at site office:

- c. Daily Progress record
- d. Site order book
- e. Cement and steel register (Receipts, consumption, balances).
- f. Concrete cube test register/slump cone test register.
- g. Register of drawings and working details.
- h. Logbook of defects.
- i. Test reports of building materials.
- j. Sand bulkage register/silt content register.
- k. Daily labour register.
- l. Variation order register.
- m. Hindrance register
- n. Electrical wiring system testing register.
- o. Equipment test certificate register.

These registers and a set of latest drawings shall be kept in the safe custody of the Site Engineer/PROJECT ARCHITECT CUM PMC.

Other than above registers, more may be required to be maintained at site as per project requirements.

61. SUSPENSION OF WORK

The contractor shall, on receipt of the order in writing of The State Bank of India (SBI) /PMC, (whose decision shall be final and binding on the contractor) suspend the progress of the works or any part thereof for such time and in such manner as the PMC/ SBI may consider necessary so as not to cause any damage or injury to the work already done or endanger the safety thereof for any of the following reasons:

- (a) on account of any default on the part of the contractor or;
- (b) for proper execution of the works or part thereof for reasons other than the default of the contractor; or
- (c) For safety of the works or part thereof. The contractor shall, during such suspension, properly protect and secure the works to the extent necessary and carry out the instructions given in that behalf by the PMC/ SBI.

If the suspension is ordered for reasons (b) and (c) in sub-Para (i) above, the contractor shall be entitled to an extension of time equal to the period of every such suspension plus 25%, for completion of the item or group of items of work for which a separate period of completion is specified in the contract and of which the suspended work forms a part, and;

If the works or part thereof is suspended on the orders of the PMC/ SBI for more than three months at a time, except when suspension is ordered for reason (a) in sub Para 62(i) above, the contractor may after receipt of such order serve a written notice on the PMC/ SBI requiring permission within fifteen days from receipt by the PMC/ SBI of the said notice, to proceed with the work or part thereof in regard to which progress has been suspended and if such permission is not granted within that time, the contractor, if he intends to treat the suspension, where it affects only a part of the works as an omission of such part by SBI or where it affects whole of the works, as an abandonment of the works by SBI, shall within ten days of expiry of such period of 15 days give notice in writing of his intention to the PMC/ SBI. In the event of the contractor treating the suspension as an abandonment of the contract by SBI, he shall have no claim to payment of any compensation on account of any profit or advantage which he might have derived from the execution of the work in full but which he could not derive in consequence of the abandonment.

62. FORECLOSURE OF CONTRACT DUE TO ABANDONMENT OR REDUCTION IN SCOPE OF WORK

If at any time after acceptance of the tender or during the progress of work, the purpose or object for which the work is being done changes due to any supervening cause and as a result of which the work has to be abandoned or reduced in scope, the PMC/ SBI shall give notice in writing to that effect to the contractor stating the decision as well as the cause for such decision and the contractor shall act accordingly in the matter. The contractor shall have no claim to any payment of compensation or otherwise whatsoever, on account of any profit or advantage which he might have derived from the execution of the works in full but which he did not derive in consequence of the foreclosure of the whole or part of the works.

The contractor shall be paid at contract rates, full amount for works executed at site and, as certified by the PMC/ SBI for the items hereunder mentioned which could not be utilized on the work to the full extent in view of the foreclosure;

- (i) Any expenditure incurred on preliminary site work, e.g. temporary access roads, temporary labour huts, staff quarters and site office; storage accommodation and water storage tanks.
- (ii) SBI shall have the option to take over contractor's materials or any part thereof either brought to site or of which the contractor is legally bound to accept delivery from suppliers (for incorporation in or incidental to the work) provided, however SBI shall be bound to take over the materials or such portions thereof as the contractor does not desire to retain. For materials taken over or to be taken over by SBI, cost of such materials as detailed by PMC shall be paid. The cost shall, however, take into account purchase price, cost of transportation and deterioration or damage which may have been caused to materials whilst in the custody of the contractor.

The contractor shall, if required by the PMC/ SBI, furnish to him, books of account, wage books, time sheets and other relevant documents and evidence as may be necessary to enable him to certify the reasonable amount payable under this condition.

The reasonable amount of items on (i), (iii) and (iv) above shall not be in excess of 2% of the cost of the work remaining incomplete on the date of closure, i.e. total stipulated cost of the work as per accepted tender less the cost of work actually executed under the contract and less the cost of contractor's materials at site taken over by the SBI as per item (ii) above. Provided always that against any payments due to the contractor on this account or otherwise, the PMC/ SBI shall be entitled to recover or be credited with any outstanding balances due from the contractor for advance paid in respect of any tool, plants and materials and any other sums which at the date of termination were recoverable by the Government from the contractor under the terms of the contract.

In the event of action being taken to reduce the scope of work, the contractor may furnish fresh Performance Guarantee on the same conditions, in the same manner and at the same rate for the balance tendered amount and initially valid up to the extended date of completion or stipulated date of completion if no extension has been granted plus minimum 180 days beyond that. Wherever such a fresh Performance Guarantee is furnished by the contractor the PMC/ SBI may return the previous Performance Guarantee.

63. ACTION IN CASE WORK NOT DONE AS PER SPECIFICATIONS

All works under or in course of execution or executed in pursuance of the contract, shall at all times be open and accessible to the inspection and supervision of the SBI/ PMC, his authorized subordinates in Charge of the work and all the superior officers, officer of the Quality Assurance Unit of the Department or any organization engaged by the Department for Quality Assurance and of the Chief Technical Examiner's Office, and the contractor shall, at all times, during the usual working hours and at all other times at which reasonable notice of the visit of such officers has been given to the contractor, either himself be present to receive orders and instructions or have a responsible agent duly accredited in writing, present for that purpose. Orders given to the Contractor shall be considered to have the same force as if they had been given to the contractor himself.

If it shall appear to the PMC/ SBI or their authorized subordinates in charge of the work or to the or the officers of the organization engaged by the Department for Quality Assurance or to the Chief Technical Examiner or his subordinate officers, that any work has been executed with unsound, imperfect, or unskillful workmanship, or with materials or articles provided by him for the execution of the work which are unsound or of a quality inferior to that contracted or otherwise not in accordance with the contract, the contractor shall, on demand in writing which shall be made within twelve months (six months in the case of work costing Rs. 10 Lac and below except road work) of the completion of the work from the PMC/ SBI specifying the work, materials or articles complained of, notwithstanding that the same may have been passed, certified and paid for, forthwith rectify, or remove and reconstruct the work so specified in whole or in part, as the case may require or as the case may be, remove the materials or articles so specified and provide other proper and suitable materials or articles at his own charge and cost. In the event of the failing to do so within a period specified by the PMC/ SBI in his demand aforesaid, then the contractor shall be liable to pay compensation at the same rate as specified (for non-completion of the work in time) for this default.

In such case the PMC/ SBI may not accept the item of work at the rates applicable under the contract but may accept such items at reduced rates as may consider reasonable by the PMC/ SBI during the preparation of on account bills or final bill or any other amount due to the contractor, if the item is so acceptable without detriment to the safety and utility of the item and the structure or he may reject the work outright without any payment and/or get it along with other connected and incidental items rectified, or removed and re-executed at the risk

and cost of the contractor. Decision of the PMC/ SBI to be conveyed in writing in respect of the same will be final and binding on the contractor.

64. DAMAGES AND DEFECTS LIABILITY

64.1 During progress of work

If the contractor or his working staff or workers damage any part of the work in the scope of contract, or any building, road, road kerb, fence, enclosure, water pipe, cables, drains, electric or telephone post or wires, trees, grass, grassland, cultivated ground, etc. contiguous to the premises on which the work or any part of it is being executed, the contractor shall make good the same at his own cost.

Contractor shall repair/replace and restore the damaged structures/services in a time bound manner as required and as directed by the PMC/ SBI, Contractor shall not be given any benefit of hindrance caused in the execution of the work owing to such damaged structure/service and time taken in its restoration by the contractor.

64.2 During defect liability period

The contractor shall be responsible for all the defects and deficiencies in the work within the scope of this contract, during the defect liability period which shall be for 18 months after the date of actual completion of work as certified by the Project Architect. The liability of contractor for defects and deficiencies may arise due to:

- a. Improper planning and design of the project, if in the scope of contract.
- b. Works, Tools, Plant & Machinery, Materials or Workmanship not being in accordance with this contract.
- c. Improper upkeep & maintenance during construction of the work.
- d. Improper upkeep, operation and/or maintenance during defect liability period, if these are in the scope of this contract.
- e. Failure by the contractor to comply with any other obligation under this contract.

Such defects and deficiencies shall be made good by the contractor at his own cost after getting instructions/notice from the PMC/ SBI within the time period specified in such instructions/notice.

However, contractor need not wait for instructions/notice from The SBI/PMC for rectification of defects in work which come to his notice and he should initiate action for needful rectification of defect on priority, under intimation to PMC/ Authority Engineer in Charge, to avoid any untoward incident.

64.3 Structural soundness

The contractor shall follow the good engineering practice for safety, serviceability and structural soundness of the building/ structure/road work etc. as covered in the scope of contract.

Structure design in the scope of contract

The contractor shall have obligation to rectify all defects in the structural elements or any other part of building/structure/road etc. due to design deficiency at his own cost for 10 (ten) years from the date of completion as recorded in the completion certificate by the PMC/ Authority Engineer in Charge. Such defects shall be made good by the contractor at his own cost after getting instructions/notice from the PMC/ Authority Engineer in Charge within the time period specified in such instructions/notice and as per the methodology duly approved by the PMC/ Authority Engineer in Charge.

Liability for execution

The contractor shall be fully liable for any deficiency in structural soundness of work owing to

execution of the work under the scope of this contract. The contractor shall have obligation to rectify all defects in the structural elements owing to any deficiency in execution of work at his own cost for 10 (ten) years from the date of completion as recorded in the completion certificate by PMC/ Authority Engineer in Charge. Such defects shall be made good by the contractor at his own cost after getting instructions/notice from the PMC/ Authority Engineer in Charge within the time period specified in such instructions/notice and as per methodology duly approved by the Engineer- in-Charge.

64.4 Methodology for rectification of defects

The design, methodology and quality of rectification of defects carried out by the contractor shall be as per sound engineering practice.

64.5 Contractor's failure to rectify defects as defined in the sub-clauses 64.1, 64.2, 64.3 & 64.4.

In the event that the contractor fails to repair or rectify the defect or deficiency within the period specified by the State Bank of India (SBI) shall be entitled to get the same repaired, rectified or remedied at the contractor's cost and recover such amount from any dues like performance guarantee, security deposits etc. available with the State Bank of India (SBI) may take action for debarment of contractor from tendering in the department by following due process. For inaction or failure to rectify the defects covered under sub clause 65.3 within specified time limit, the State Bank of India (SBI) may also initiate legal and/or other actions under other applicable laws in addition to other remedies available in the contract.

65. RELEASE OF SECURITY DEPOSIT

50% of security deposit can be released along with final payment after completing the work in all respects and handing over the building to the Bank with necessary occupation certificates, permissions etc. from local authorities.

Fifty percent (50%) of the security deposit of the contractor shall be retained for a period of 18 (eighteen) months from the date of completion of work as per completion certificate issued by the the State Bank of India (SBI) or till the final bill has been passed whichever is later. This balance fifty percent (50%) security deposit shall be released after completion of defect liability period after issuance of satisfactory completion of defects liability period by the Project Architect cum PMC.

Additional security deposit shall be released after issuance of virtual completion certificate by the Project Architect cum PMC.

66. RECOVERY OF COMPENSATION PAID TO WORKMEN

In every case in which by virtue of the provisions sub-section (1) of Section 12, of the Workmen's Compensation Act, 1923, SBI is obliged to pay compensation to a workman employed by the contractor, in execution of the works, SBI will recover from the contractor, the amount of the compensation so paid; and, without prejudice to the rights of the SBI under sub-section (2) of Section 12, of the said Act, SBI shall be at liberty to recover such amount or any part thereof by deducting it from the security deposit or from any sum due by SBI to the contractor whether under this contract or otherwise. SBI shall not be bound to contest any claim made against it under sub-section (1) of Section 12, of the said Act, except on the written request of the contractor and upon his giving to SBI full security for all costs for which SBI might become liable in consequence of contesting such claim.

ENSURING PAYMENT AND AMENITIES TO WORKERS IF CONTRACTOR FAILS

In every case in which by virtue of the provisions of the Contract Labour (Regulation and Abolition) Act, 1970, and of the Contract Labour (Regulation and Abolition) Central Rules, 1971, SBI is obliged to pay any amounts of wages to a workman employed by the contractor in execution of the works, or to incur any expenditure in providing welfare and health amenities required to be provided under the above said Act and the rules under Clause 19H or under the Contractor's Labour Regulations, or under the Rules framed by Government / SBI from time to time for the protection of health and

sanitary arrangements for workers employed by Contractors, SBI will recover from the contractor, the amount of wages so paid or the amount of expenditure so incurred; and without prejudice to the rights of the SBI under sub-section(2) of Section 20, and sub-section (4) of Section 21, of the Contract Labour (Regulation and Abolition) Act, 1970, SBI shall be at liberty to recover such amount or any part thereof by deducting it from the security deposit or of the said Act, from any sum due by SBI to the contractor whether under this contract or otherwise SBI shall not be bound to contest any claim made against it under sub-section (1) of Section 20, sub-section (4) of Section 21, except on the written request of the contractor and upon his giving to the SBI full security for all costs for which SBI might become liable in contesting such claim.

67. LABOUR LAWS TO BE COMPLIED BY THE CONTRACTOR

The contractor shall obtain a valid license under the Contract Labour (R&A) Act, 1970, and the Contract Labour (Regulation and Abolition) Central Rules, 1971, before the commencement of the work, and continue to have a valid license until the completion of the work. The contractor shall also comply with provisions of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979. The contractor shall also abide by the provisions of the Child and Adolescent Labour (Prohibition and Regulation) Act, 1986, amended by Amendment Act No. 35 of 2016 and thereafter time to time.

The contractor shall also comply with the provisions of the building and other Construction Workers (Regulation of Employment & Conditions of Service) Act, 1996 and the building and other Construction Workers Welfare Cess Act, 1996.

The contractor shall also comply with provisions of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979.

The contractor shall also comply with provisions of Sexual Harassment of Women at workplace (Prevention Prohibition and Redressal) Act, 2013 and amendment thereafter time to time.

Any failure to fulfill these requirements shall attract the penal provisions of this contract arising out of the resultant non-execution of the work.

66A. No labour below the age of Eighteen years shall be employed on the work.

66B. PAYMENTS OF WAGES

The contractor shall pay to labour employed by him either directly or through sub- contractors, wages not less than fair wages as defined in the CPWD Contractor's Labour Regulations or as per the provisions of the Contract Labour (Regulation and Abolition) Act, 1970 and the contract Labour (Regulation and Abolition) Central Rules, 1971 and Gazette Notification 19.01.2017, S.O. 188 (E) extra ordinary part-2-sec.3 (ii) amended from time to time.

Thus, higher of the wages either notified by Govt. of India, Ministry of Labour and/or that notified by the local administration of the State Govt. both relevant to the place of work and the period of the reckoning shall be paid by the contractor to the labourer.

The minimum wage of an unskilled Mazdoor shall be the higher of the wage notified by Government of India, Ministry of Labour and that notified by the local administration both relevant to the place of work and the period of reckoning.

The minimum wage of an unskilled Mazdoor shall be the higher of the wage notified by Government of India, Ministry of Labour and that notified by the local administration both relevant to the place of work and the period of reckoning.

The contractor shall, notwithstanding the provisions of any contract to the contrary, cause to be paid fair wage to labour indirectly engaged on the work, including any labour engaged by his sub-contractors in connection with the said work, as if the labour had been immediately employed by him.

In respect of all labour directly or indirectly employed in the works for performance of the contractor's part of this contract, the contractor shall comply with or cause to be complied with the

Central Public Works Department contractor's Labour Regulations made by Government from time to time in regard to payment of wages, wage period, deductions from wages recovery of wages not paid and deductions unauthorized made, maintenance of wage books or wage slips, publication of scale of wages and other terms of employment, inspection and submission of periodical returns and all other matters of the like nature or as per the provisions of the Contract Labour (Regulation and Abolition) Act, 1970, and the Contract Labour (Regulation and Abolition) Central Rules, 1971, wherever applicable.

(a) The Deputy General Manager (Premises), State Bank of India (SBI) shall have the right to deduct from the moneys due to the contractor any sum required or estimated to be required for making good the loss suffered by a worker or workers by reason of non-fulfillment of the conditions of the contract for the benefit of the workers, non-payment of wages or of deductions made from his or their wages which are not justified by their terms of the contract or non-observance of the Regulations.

(b) Under the provision of Minimum Wages (Central) Rules, 1950, the contractor is bound to allow to the labours directly or indirectly employed in the works one-day rest for 6 days' continuous work and pay wages at the same rate as for duty. In the event of default, the PMC/ SBI shall have the right to deduct the sum or sums not paid on account of wages for weekly holidays to any labours and pay the same to the persons entitled thereto from any money due to the contractor by the PMC.

In the case of Union Territory of Delhi, however, as the all-inclusive minimum daily wages fixed under Notification of the Delhi Administration No. F.12(162) MWO / DAB/43884-91, dated 31-12-1979 as amended from time to time are inclusive of wages for the weekly day of rest, the question of extra payment for weekly holiday would not arise.

The contractor shall comply with the provisions of the Payment of Wages Act, 1936, Minimum Wages Act, 1948, Employees Liability Act, 1938, Workmen's Compensation Act, 1923, Industrial Disputes Act, 1947, Maternity Benefits Act, 1961, and the Contractor's Labour (Regulation and Abolition) Act 1970, and Gazette Notification 19.01.2017, S.O. 188 (E) extra ordinary part-2-sec.3 (ii) amended from time to time and the modifications thereof or any other laws relating thereto and the rules made there under from time to time.

The contractor shall indemnify and keep indemnified SBI against payments to be made under and for the observance of the laws aforesaid and the Contractor's Labour Regulations without prejudice to his right to claim indemnity from his sub-contractors.

The laws aforesaid shall be deemed to be a part of this contract and any breach thereof shall be deemed to be a breach of this contract.

Whatever is the minimum wage for the time being, or if the wage payable is higher than such wage, such wage shall be paid by the contractor to the workmen directly without the intervention of Jamadar and that Jamadar shall not be entitled to deduct or recover any amount from the minimum wage payable to the workmen as and by way of commission or otherwise.

The contractor shall ensure that no amount by way of commission or otherwise is deducted or recovered by the Jamadar from the wage of workmen.

66C. In respect of all labour directly or indirectly employed in the work for the performance of the contractor's part of this contract, the contractor shall at his own expense arrange for the safety provisions as per CPWD Safety Code framed from time to time and shall at his own expense provide for all facilities in connection therewith. In case the contractor fails to make arrangement and provide necessary facilities as aforesaid, he shall be liable to pay a penalty as mention in Schedule "F" for each default and in addition, the SBI / PMC shall be at liberty to make arrangement and provide facilities as aforesaid and recover the costs incurred in that behalf from the contractor.

66D. The contractor shall submit every month, to the SBI / PMC, a true statement showing in respect of the second half of the preceding month and the first half of the current month respectively: -

- i. the number of laborers employed by him on the work,
- ii. their working hours,

- iii. the wages paid to them,
- iv. the accidents that occurred during the said fortnight showing the circumstances under which they happened and the extent of damage and injury caused by them, and
- v. The number of female workers who have been allowed maternity benefit according to Clause 66F and the amount paid to them.

Failing which the contractor shall be liable to pay to SBI a sum as mention in Schedule "F" for each default or materially incorrect statement. The decision of the SBI PMC shall be final in deducting from any bill due to the contractor; the amount levied as fine and shall be binding on the contractor. The same would be pass on to the Client.

66E. In respect of all labour directly or indirectly employed in the works for the performance of the contractor's part of this contract, the contractor shall comply with or cause to be complied with all the rules framed by SBI from time to time for the protection of health and sanitary arrangements for workers employed by the SBI and its contractors.

66F: Pay:

In the case of delivery - leave pay during maternity leave will be at the rate of the women's average daily earnings, calculated on total wages earned on the days when full time work was done during a period of three months immediately preceding the date on which she gives notice that she expects to be confined.

in the case of miscarriage - leave pay at the rate of average daily earning calculated on the total wages earned on the days when full time work was done during a period of three months immediately preceding the date of such miscarriage.

Conditions for the grant of Maternity Leave:

No maternity leave benefit shall be admissible to a woman unless she has been employed for a total period of not less than six months immediately preceding the date on which she proceeds on leave.

The contractor shall maintain a register of Maternity (Benefit) in the Prescribed Form as shown in Appendix -I and II, and the same shall be kept at the place of work.

66G. In the event of the contractor(s) committing a default or breach of any of the provisions of the CPWD, Contractor's Labour Regulations and Model Rules for the protection of health and sanitary arrangements for the workers as amended from time to time or furnishing any information or submitting or filing any statement under the provisions of the above Regulations and' Rules which is materially incorrect, he/they shall, without prejudice to any other liability, pay to the SBI a sum as mention in Schedule "F" for every default, breach or furnishing, making, submitting, filing such materially incorrect statements and in the event of the contractor(s) defaulting continuously in this respect, the penalty may be enhanced to as mention in Schedule "F" per day for each day of default subject to a maximum of 5 per cent of the estimated cost of the work put to tender. The decision of the SBI shall be final and binding on the parties.

Should it appear to the SBI that the contractor(s) is/are not properly observing and complying with the provisions of the Contractor's Labour Regulations and Model Rules and the provisions of CPWD the Contract Labour (Regulation and Abolition) Act 1970, and the Contract Labour (R& A) Central Rules 1971, for the protection of health and sanitary arrangements for work-people employed by the contractor(s) (hereinafter referred as "the said Rules") the PMC/ SBI shall have power to give notice in writing to the contractor(s) requiring that the said Rules be complied with and the amenities prescribed therein be provided to the work-people within a reasonable time to be specified in the notice. If the contractor(s) shall fail within the period specified in the notice to comply with and/observe the said Rules and to provide the amenities to the work-people as aforesaid, the PMC/ SBI shall have the power to provide the amenities hereinbefore mentioned at the cost of the contractor(s). The contractor(s) shall erect, make and maintain at his/their own

expense and to approved standards all necessary huts and sanitary arrangements required for his/their work-people on the site in connection with the execution of the works, and if the same shall not have been erected or constructed, according to approved standards, the PMC/ Authority Engineer in Charge shall have power to give notice in writing to the contractor(s) requiring that the said huts and sanitary arrangements be remodeled and/or reconstructed according to approved standards, and if the contractor(s) shall fail to remodel or reconstruct such huts and sanitary arrangements according to approved standards within the period Specified in the notice, the PMC/ Authority Engineer in Charge shall have the power to remodel or reconstruct such huts and sanitary arrangements according to approved standards at the cost of the contractor(s).

66H The contractor(s) shall at his/their own cost provide his/their labour with a sufficient number of huts (hereinafter referred to as the camp) of the following specifications on a suitable plot of land to be approved by the PMC/ Authority Engineer in Charge.

(a) The minimum height of each hut at the eaves level shall be 2.10m (7 ft.) and the floor area to be provided will be at the rate of 2.7 sq. m. (30 sq. ft.) for each member of the worker's family staying with the labourer.

The contractor(s) shall in addition construct suitable cooking places having a minimum area of 1.80m x 1.50m (6'x5') adjacent to the hut for each family.

The contractor(s) shall also construct temporary latrines and urinals for the use of the labourers each on the scale of not less than four per each one hundred of the total strength, separate latrines and urinals being provided for women.

The contractor(s) shall construct sufficient number of bathing and washing places, one unit for every 25 persons residing in the camp. These bathing and washing places shall be suitably screened.

(b) All the huts shall have walls of sun-dried or burnt-bricks laid in mud mortar or other suitable local materials as may be approved by the PMC/ Authority Engineer in Charge. In case of sun-dried bricks, the walls should be plastered with mud gobri on both sides. The floor may be kutcha but plastered with mud gobri and shall be at least 15 cm (6") above the surrounding ground. The roofs shall be laid with thatch or any other materials as may be approved by the PMC/ Authority Engineer in Charge and the contractor shall ensure that throughout the period of their occupation, the roofs remain water-tight.

The contractor(s) shall provide each hut with proper ventilation.

All doors, windows, and ventilators shall be provided with suitable leaves for security purposes.

There shall be kept an open space of at least 7.2m (8 yards) between the rows of huts which may be reduced to 6m (20 ft.) according to the availability of site with the approval of the PMC/ Authority Engineer in Charge. Back to back construction will be allowed.

Water Supply - The contractor(s) shall provide adequate supply of water for the use of labourers. The provisions shall not be less than two gallons of pure and wholesome water per head per day for drinking purposes and three gallons of clean water per head per day for bathing and washing purposes. Where piped water supply is available, supply shall be at stand posts and where the supply is from wells or river, tanks which may be of metal or masonry, shall be provided. The contractor(s) shall also at his/ their own cost make arrangements for laying pipe lines for water supply to his/ their labour camp from the existing mains wherever available, and shall pay all fees and Charges therefore.

The site selected for the camp shall be high ground, with removed from jungle clearances, if required. Disposal of Excreta - The contractor(s) shall make necessary arrangements for the disposal of excreta from the latrines by trenching or incineration which shall be according to the requirements laid down by the Local Health Authorities. If trenching or incineration is not allowed, the contractor(s) shall make arrangements for the removal of the excreta through the Municipal Committee/authority and inform it about the number of labourers employed so that arrangements may be made by such Committee/authority for the removal of the excreta. All Charges on this account shall be borne by the contractor and paid direct by him to the Municipality/authority. The contractor shall provide one sweeper for every eight seats in case of dry system.

Drainage - The contractor(s) shall provide efficient arrangements for draining away sullage water so as to keep the camp neat and tidy.

The contractor(s) shall make necessary arrangements for keeping the camp area sufficiently lighted to avoid accidents to the workers.

Sanitation - The contractor(s) shall make arrangements for conservancy and sanitation in the labour camps according to the rules of the Local Public Health and Medical Authorities.

66I: The State Bank of India(SBI) may require the contractor to dismiss or remove from the site of the work any person or persons in the contractors' employ upon the work who may be incompetent or misconduct himself and the contractor shall forthwith comply with such requirements. In respect of maintenance/repair or renovation works etc. where the labour have an easy access to the individual houses, the contractor shall issue identity cards to the labourers, whether temporary or permanent and he shall be responsible for any untoward action on the part of such labour.

66J: It shall be the responsibility of the contractor to see that the building under construction is not occupied by unauthorized person(s) during construction, and is handed over to the SBI with vacant possession of complete building. If such building though completed is occupied illegally, then the SBI shall have the option to refuse to accept the said building/buildings in that position. Any delay in acceptance on this account will be treated as the delay in completion and for such delay, a compensation shall be levied as per clause 2 of the agreement, by the SBI whose decision shall be final both with regard to the justification and quantum and be binding on the contractor.

However, the SBI, through a notice, may require the contractor to remove the illegal occupation any time on or before construction and delivery.

66K: EMPLOYMENT OF SKILLED/SEMI SKILLED WORKERS

The contractor shall, at all stages of work, deploy skilled/semi-skilled tradesmen who are qualified and possess certificate in particular trade from CPWD Training Institute/ Industrial Training Institute/National Institute of construction Management and Research (NICMAR)/ National Academy of Construction, CIDC, National Skill Development Corporation certified training institute or any similar reputed and recognized Institute managed/ certified by State/Central Government. The number of such qualified tradesmen shall not be less than 20% of total skilled/semi-skilled workers required in each trade at any stage of work. The contractor shall submit number of man days required in respect of each trade, it's scheduling and the list of qualified tradesmen along with requisite certificate from recognized Institute to The SBI for approval. Notwithstanding such approval, if the tradesmen are found to have inadequate skill to execute the work of respective trade, the contractor shall substitute such tradesmen within two days of written notice from the SBI. Failure on the part of contractor to obtain approval of the SBI or failure to deploy qualified tradesmen will attract a compensation to be paid by contractor at the rate specified in Schedule "F" per such tradesman per day. Decision of the SBI as to whether particular tradesman possesses requisite skill and amount of compensation in case of default shall be final and binding.

68. CONTRIBUTION TO EPF and ESI

The ESI and EPF contributions, all other statutory payments including royalty etc on the part this Contract shall be paid by the Contractor and nothing shall be reimbursed by the SBI. The verification of deployment of labour will be done through biometric attendance system or any other suitable method by the SBI. The applicable and eligible amount of EPF & ESI shall be reimbursed preferably within 7 days but not later than 30 days of submission of documentary proof of payment provided same are in order.

69. SEXUAL HARASSMENT OF WOMEN AT WORKPLACE

The contractor shall comply with all provision(s) and guideline(s) of Sexual Harassment of Women at Workplace (Prevention Prohibition and Redressal) Act, 2013 and amendment thereafter time to time or any other rules framed under any labour law affecting women worker(s).

70. MINIMUM WAGES ACT TO BE COMPLIED WITH

The contractor shall comply with all the provisions of the Minimum Wages Act, 1948, and Contract Labour (Regulation and Abolition) Act, 1970, and Gazette Notification 19.01.2017, S.O. 188 (E) extra ordinary part-2-sec.3 (ii) amended from time to time and rules framed there under and other labour laws affecting contract labour that may be brought into force from time to time.

71. WORK NOT TO BE SUBLET: ACTION IN CASE OF INSOLVENCY

The contract shall not be assigned or sublet without the written approval of the PMC/ SBI. And if the contractor shall assign or sublet his contract, or attempt to do so, or become insolvent or commence any insolvency proceedings or make any composition with his creditors or attempt to do so, or if any bribe, gratuity, gift, loan, perquisite, reward or advantage pecuniary or otherwise, shall either directly or indirectly, be given, promised or offered by the contractor, or any of his servants or agent to any public officer or person in the employ of SBI in any way relating to his office or employment, or if any such officer or person shall become in any way directly or indirectly interested in the contract, the PMC/ SBI shall have power to adopt the course specified in tender document thereof in the interest of SBI and in the event of such course being adopted, the consequences specified shall ensue.

72. QUALITY ASSURANCE AND SUPERVISION FOR EXECUTION PART OF WORK

Quality of Materials and Workmanship

- (i) The Contractor shall ensure that the Materials and workmanship are in accordance with the requirements specified in this Agreement, Specifications and Standards and Sound Engineering practice. The work shall be of the specified quality and standard, both in respect of ingredients as well as the intended functions it is supposed to perform for service life.
- (ii) The Contract warrants that all Materials shall be new, unused, not reconditioned, unless otherwise allowed as per contract or by The SBI/ PMC, and in conformity with Specification and Standards, Applicable Laws and Sound Engineering Practice, and that the Contractor shall not use any materials which are generally recognized as being deleterious under Sound Engineering Practice.

Inspection & review by the PMC/ Authority Engineer in Charge and External Audit.

The PMC/ Engineer in Charge, External Audit, department & his authorized subordinates, senior officers of department, QA unit or any other third party may inspect and review the progress and quality of the work and issue appropriate directions to the Contractor for taking remedial action in the event the work is not in accordance with the provisions of this Agreement. The work may be inspected at any time/stage by external inspection teams like CTE or TE, Third Party Quality assurance agency, SBI team etc. may conduct inspection of the quality of the works. The findings of the inspections shall be notified to the Contractor for taking remedial action in accordance with the agreement. The Contractor shall provide all assistance as may be required by the inspection teams in the conduct of its inspection here under. Suitable actions shall be taken as per the provisions contained in the relevant clauses of the agreement, if the work is not found to be as per specifications or quality as specified in the agreement.

Inspection of records

The SBI/ PMC or his authorized representative shall have the right to inspect the records of the Contractor relating to the works.

Inspection of Works

The SBI/ PMC and his authorized subordinates shall at all times have full access to all parts of the site and to all places from which natural materials are being obtained for use in the works; and during production, manufacture and construction at the site and at the place of production, be entitled to examine, inspect, measure and test the materials and workmanship and to check the progress of the manufacturer of Materials. The Contractor shall give the SBI/ PMC and its authorized representative access, facilities and safety equipment for carrying out their obligations under this Agreement.

Examination of work before covering up/ Test Check of item of Work

In respect of the work which the SBI/ PMC or his authorized representatives are required to examine, inspect, measure or test before it is covered up or put out of view or any part of the work is placed thereon, the Contractor shall give notice to the PMC/ SBI whenever any such work is ready and before it is covered up. The PMC/ SBI shall then either carry out the examination, inspection or testing without unreasonable delay within 7 days, or promptly give notice to the Contractor that the PMC/ SBI does not require him to do so. Provided, however, that if any work is of a continuous nature where it is not possible or prudent to keep it uncovered or incomplete, the Contractor shall notify the schedule of carrying out such work to give sufficient opportunity, not being less than 3(three) business days' notice, to the PMC/ SBI to conduct its inspection, Measurement or test while the work is continuing. Provided further that in the event the Contractor receives no response from the PMC/ SBI within a period of 3 (three) business days from the date on which the Contractor's notice hereunder is delivered to the SBI/PMC, the Contractor shall be entitled to assume that the PMC/ SBI would not undertake the said inspections.

Rejection

- i. If, as a result of an examination, inspection, measurement or testing, any Plant, Materials, design or workmanship is found to be defective or otherwise not in accordance with the provisions of this Agreement, the PMC/ SBI may reject such piece of work, Plant, Materials, design or Workman ship by giving notice to the Contractor, with reasons. The Contractor shall then promptly make good the defect and ensure that the rejected item complies with the requirements of this Agreement.
- ii. If the PMC/ SBI requires a Piece of work, Plant, Material, design or workmanship to be retested, the tests shall be repeated on the same terms and conditions, as applicable in each case. If the rejection and retesting cause the department to incur any additional costs, such costs shall be recoverable by the PMC/ SBI from the Contractor and may be deducted by the PMC/ SBI from any amount due to be paid to the Contractor.
- iii. The Contractor shall not be entitled to any extension of time on account of rectifying any defect or retesting as specified in this clause.
- iv. Examination, inspection, measurement or testing of any Plant, Material, design or workmanship by the PMC/ SBI or its failure to convey its observations or to examine, inspect, measure or test shall neither relieve the Contractor of its obligations and liabilities under this Agreement in any manner nor shall the PMC/ SBI be liable for the same in any manner.

Remedial work

- i) Notwithstanding any previous test or certification, the PMC/ SBI may instruct the Contractor to:
 - a) remove from the site and replace any piece of work, plant or materials which are not in accordance with the provisions of this Agreement.
 - b) remove and re-execute any work which is not in accordance with the provisions of this Agreement and the Specification and Standards; and
 - c) execute any work which is urgently required for the safety of the Project, whether because of an accident, unforeseeable event or otherwise.
- ii) If the Contractor fails to comply with the instructions issued by the PMC/ SBI under aforesaid para, within the time specified in the notice or as mutually agreed, the PMC/ SBI may get the work executed by another agency. The cost so incurred by the PMC/ SBI for undertaking such work shall, without prejudice to the rights of the PMC/ SBI to recover damages in accordance with the provisions of this Agreement, be recoverable from the Contractor and may be deducted by the PMC/ SBI from any amount due to be paid to the Contractor.

Quality Control Records

The Contractor shall hand over authenticated copy of all its quality control records and documents to the PMC/ SBI before the Completion Certificate is issued.

Video recording

During the Construction Period, the Contractor shall provide to the PMC/ SBI for every calendar quarter, a video recording which will be compiled into a 15 (fifteen) minutes digital video covering the status and progress of work in that quarter. Video recording should show different activities, stage of work, quality

assurance activities etc. including animation, graphs, digital maps, commentary, sub titles, etc. spread over the quarter. The video recording shall be provided to the PMC/ Authority Engineer in Charge no later than 15 (fifteen) days after the close of each quarter to be reckoned from next full month of date of start of work.

The contractor shall install GoPro or equivalent high-resolution cameras at fixed, strategic locations across the construction site to record progress through static-position time-lapse imagery. Cameras shall remain fixed without angle adjustments to maintain consistency in visual documentation. A minimum of 60–70 high-quality images shall be captured at defined construction stages, providing a comprehensive visual record from foundation to completion for monitoring, verification, and reporting purposes.

Suspension of unsafe Construction Works

Upon recommendation of the PMC/ SBI to this effect, or on his own volition in cases of emergency or urgency, the PMC/ SBI may by notice require the Contractor to suspend forthwith the whole or any part of the Works if, in the reasonable opinion of PMC/ SBI, as the case maybe, such work threatens the safety of the Users and or other persons on or about the Project. Provided, however, that in case of an emergency, the PMC/ SBI may somite issue the notice referred to hereinabove.

1. The Contractor shall, pursuant to the notice under above para, suspend the Works or any part thereof for such time and in such manner as may be specified by the PMC/ SBI and thereupon carry out remedial measures to secure the safety of suspended works, the Users, other persons and vehicles on or about the Project. The Contractor by notice require the Engineer-in- Charge to inspect such remedial measures forthwith and request for revocation of suspension. Upon reviewing the remedial measures, the PMC/ SBI shall either revoke such suspension or instruct the Contractor to carry out such other and further remedial measures as may be necessary and reasonable and the procedure set forth in this Clause shall be repeated until the suspension hereunder is revoked.
2. Subject to other provisions of the agreement, all reasonable cost incurred for maintaining and protecting the Works or part thereof during the period of suspension (the "Preservation Costs") shall be borne by the contractor, if in the opinion of PMC/ SBI suspension is on account of reasons attributable to the contractor.
3. If suspension of Work is for reasons not attributable to the Contractor, the PMC/ SBI shall determine any Time Extension, if required, in accordance with the relevant provisions in the tender.

Online maintenance of Site records including testing records.

The PMC/ SBI may require the contractor to upload all the site records in any online system devised by him. The contractor shall ensure that all the required site records, as desired by the PMC/ SBI shall be uploaded in this online system. Nothing extra on this account shall be payable to the contractor. In case these records are to be maintained in any online module then contractor shall comply with this.

73. CHANGES IN FIRM'S CONSTITUTION TO BE INTIMATED

Where the contractor is a partnership firm/company/LLP, the prior approval in writing from the Bank, with due recommendations of the PMC, shall be obtained before any change is made in the constitution of the firm/company/LLP. Where the contractor is an individual or a Hindu undivided family business concern, such approval as aforesaid shall likewise be obtained before the contractor enters into any partnership agreement where under the partnership firm would have the right to carry out the works hereby undertaken by the contractor. If previous approval as aforesaid is not obtained, the contract shall be deemed to have been assigned in contravention of clause 18 hereof and the same action may be taken, and the same consequences shall ensue as provided in the tender document.

74. CONTRACTOR(S) TO INDEMNIFY SBI AGAINST PATENT RIGHTS

The contractor shall fully indemnify and keep indemnified the SBI against any action, claim or proceeding relating to infringement or use of any patent or design or any alleged patent or design

rights and shall pay any royalties which may be payable in respect of any article or part thereof included in the contract. In the event of any claims made or action brought against SBI in respect of any such matters as aforesaid, the contractor shall be immediately notified thereof and the contractor shall be at liberty, at his own expense, to settle any dispute or to conduct any litigation that may arise there from, provided that the contractor shall not be liable to indemnify the SBI if the infringement of the patent or design or any alleged patent or design right is the direct result of an order passed by the State Bank of India (SBI) in Charge in this behalf.

75. WITHHOLDING AND LIEN IN RESPECT OF SUM DUE FROM CONTRACTOR

- (i) Whenever any claim or claims for payment of a sum of money arises out of or under the contract or against the contractor, the PMC/ Authority Engineer in Charge or the SBI shall be entitled to withhold and also have a lien to retain such sum or sums in whole or in part from the security, if any deposited by the contractor and for the purpose aforesaid, the Engineer- in- Charge or the SBI shall be entitled to withhold the security deposit, if any, furnished as the case may be and also have a lien over the same pending finalization or adjudication of any such claim. In the event of the security being insufficient to cover the claimed amount or amounts or if no security has been taken from the contractor, the PMC/ Authority Engineer in Charge or the SBI shall be entitled to withhold and have a lien to retain to the extent of such claimed amount or amounts referred to above, from any sum or sums found payable or which may at any time thereafter become payable to the contractor under the same contract or any other contract with the PMC/ Authority Engineer in Charge of the SBI or any contracting person through the Engineer- in-Charge pending finalization of adjudication of any such claim.

It is an agreed term of the contract that the sum of money or moneys so withheld or retained under the lien referred to above by the PMC/ Authority Engineer in Charge or SBI will be kept withheld or retained as such by the PMC/ Authority Engineer in Charge or SBI till the claim arising out of or under the contract is determined by the arbitrator (if the contract is governed by the arbitration clause) by the competent court, as the case may be and that the contractor will have no claim for interest or damages whatsoever on any account in respect of such withholding or retention under the lien referred to above and duly notified as such to the contractor.

For the purpose of this clause, where the contractor is a partnership firm or a limited company, the PMC/ Authority Engineer in Charge or the SBI shall be entitled to withhold and also have a lien to retain towards such claimed amount or amounts in whole or in part from any sum found payable to any partner/limited company as the case may be, whether in his individual capacity or otherwise.

- (ii) SBI shall have the right to cause an audit and technical examination of the works and the final bills of the contractor including all supporting vouchers, abstract, etc., to be made after payment of the final bill and if as a result of such audit and technical examination any sum is found to have been overpaid in respect of any work done by the contractor under the contract or any work claimed to have been done by him under the contract and found not to have been executed, the contractor shall be liable to refund the amount of over-payment and it shall be lawful for SBI to recover the same from him in the manner prescribed in sub-clause (i) of this clause or in any other manner legally permissible; and if it is found that the contractor was paid less than what was due to him under the contract in respect of any work executed by him under it, the amount of such under payment shall be duly paid by SBI to the contractor, without any interest thereon whatsoever.

Provided that the SBI shall not be entitled to recover any sum overpaid, nor the contractor shall be entitled to payment of any sum paid short where such payment has been agreed upon between the Engineer- in- Charge on the one hand and the contractor on the other under any term of the contract permitting payment for work after assessment by the SBI/ PMC.

76. LIEN IN RESPECT OF CLAIMS IN OTHER CONTRACTS

Any sum of money due and payable to the contractor (including the security deposit returnable to him) under the contract may be withheld or retained by way of lien by the SBI/ PMC any other

contracting person or persons through the SBI/ PMC against any claim of the SBI/ PMC or such other person or persons in respect of payment of a sum of money arising out of or under any other contract made by the contractor with the SBI/ PMC or with such other person or persons.

It is an agreed term of the contract that the sum of money so withheld or retained under this clause by the SBI/ PMC will be kept withheld or retained as such by the SBI/ PMC or till his claim arising out of the same contract or any other contract is either mutually settled or determined by the arbitration clause or by the competent court, as the case may be and that the contractor shall have no claim for interest or damages whatsoever on this account or on any other ground in respect of any sum of money withheld or retained under this clause and duly notified as such to the contractor.

77. ALTERNATE WATER ARRANGEMENTS

The contractor shall be allowed to construct temporary wells/ Bore wells in State Bank of India land for taking water for construction purposes only after he has got permission of the SBI in writing. No Charges shall be paid/ recovered from the contractor on this account, but the contractor shall be required to provide necessary safety arrangements to avoid any accidents or damage to adjacent buildings, roads and service lines. He shall be responsible for any accidents or damage caused due to construction and subsequent maintenance of the wells/ Bore wells and shall restore the ground to its original condition after the wells are dismantled on completion of the work.

78. POWER SUPPLY

The contractor shall make his own arrangements for power and supply/distribution system for driving plant or machinery for the work and for lighting purpose at his own cost. The cost of running and maintenance of the plants are to be included in his tender prices. He shall pay all fees and charges required for the power supply and include the same in his tendered rates and hold the owner free from all such costs. He has to obtain necessary approval from the appropriate authorities, if required.

79. EMPLOYMENT OF TECHNICAL STAFF AND EMPLOYEES

Contractors Superintendence, Supervision, Technical Staff & Employees

- (i) The contractor shall provide all necessary superintendence during execution of the work and all along thereafter as may be necessary for proper fulfilling of the obligations under the contract.

As per tendered amount (worked out on the basis of quoted rate of individual items) and before commencement of the work, intimate in writing to the SBI/ PMC, the name(s), qualifications, experience, age, address(s) and other particulars along with certificates, of the principal technical representative to be in charge of the work and other technical representative(s) who will be supervising the work. Minimum requirement of such technical representative(s) and their qualifications and experience shall not be lower than that specified below. Even of the contractor (or partner(s) in case of firm/ company) is himself / herself an Engineers, it is necessary on the part of the contractor to employ principal technical representative / technical representative (s) as per stipulation.

The State Bank of India (SBI)/ PMC shall within 3 days of receipt of such communication intimate in writing his approval or otherwise of such a representative(s) to the contractor. Any such approval may at any time be withdrawn and in case of such withdrawal, the contractor shall appoint another such representative(s) according to the provisions of this clause. Decision of

the tender accepting authority shall be final and binding on the contractor in this respect. Such a principal technical representative and other technical representative(s) shall be appointed by the contractor soon after receipt of the approval from the SBI/ PMC and shall be available at site before start of work.

All the provisions applicable to the principal technical representative under the Clause will also be applicable to other technical representative(s) The principal technical representative and other technical representative(s) shall be present at the site of work for supervision at all times when any construction activity is in progress and also present himself/themselves, as required, to the SBI/ PMC

and/or his designated representative to take instructions. Instructions given to the principal technical representative or other technical representative(s) shall be deemed to have the same force as if these have been given to the contractor. The principal technical representative and other technical representative(s) shall be actually available at site fully during all stages of execution of work, during recording/checking/test checking of measurements of works and whenever so required by the SBI/ PMC and shall also note down instructions conveyed by the SBI/ PMC or his designated representative(s) in the site order book and shall affix his/their signature in token of noting down the instructions and in token of acceptance of measurements/checked measurements/ test checked measurements. The representative(s) shall not look after any other work. Substitutes, duly approved by PMC/ Authority Engineer in Charge of the work in similar manner as aforesaid shall be provided in event of absence of any of the representative(s) by more than two days.

If the SBI/ PMC, whose decision in this respect is final and binding on the contractor, is convinced that no such technical representative(s) is/are effectively appointed or is/are effectively attending or fulfilling the provision of this clause, a recovery (non-refundable) shall be effected from the contractor as specified and the decision of The State Bank of India (SBI)/ PMC as recorded in the site order book and measurement recorded checked/test checked in Measurement Books shall be final and binding on the contractor. Further if the contractor fails to appoint suitable technical Principal technical representative and/or other technical representative(s) and if such appointed persons are not effectively present or are absent by more than two days without duly approved substitute or do not discharge their responsibilities satisfactorily, the SBI/ PMC shall have full powers to suspend the execution of the work until such date as suitable other technical representative(s) is/are appointed and the contractor shall be held responsible for the delay so caused to the work. The contractor shall submit a certificate of employment of the technical representative(s) (in the form of copy of Form-16 or CPF deduction issued to the Engineers employed by him) along with every on account bill/ final bill and shall produce evidence if at any time so required by the SBI/ PMC.

- (ii) The contractor shall provide and employ on the site only such technical assistants as are skilled and experienced in their respective fields and such foremen and supervisory staff as are competent to give proper supervision to the work.

The contractor shall provide and employ skilled, semiskilled and unskilled labour as is necessary for proper and timely execution of the work.

The SBI/ PMC shall be at liberty to object to and require the contractor to remove from the works any person who in his opinion misconducts himself, or is incompetent or negligent in the performance of his duties or whose employment is otherwise considered by the SBI/ PMC to be undesirable. Such person shall not be employed again at works site without the written permission of the SBI/ PMC and the persons so removed shall be replaced as soon as possible by competent substitutes.

- (iii) For works with estimated cost more than Rs.10 Crores and stipulated time period more than 6 months

The contractor must ensure that the deployed technical representatives are having adequate qualifications from reputed engineering colleges/ institutions having AICTE affiliation. If the contractor fails to ensure the same, then a non-refundable recovery up to Rs. 60,000/- per month for each representative shall be made from the bill of the contractor, till replacement / appointment of qualified engineer. Decision of SBI/ PMC in this regard shall be final and binding on the contractor. The recovery rate shall be as under:-

Minimum Requirement of Technical Representative(s) and monthly recovery Rate					
S. No	Requirement of Technical Staff		Minimum Experience (Years)	Designation of Technical Staff	Rate of recovery if provision not fulfilled
	Qualification	Strengt h			

1.	Graduate (Civil) Engineer	1 No	15 (and having experience of one similar nature of work)	Project Manager	Rs. 60,000/- per Month
2.	Post Graduate (Structural Engineer)	1 No	10 (and having experience of one similar nature of work)	Deputy Project Manager (Structural)	Rs. 50,000/- per Month
3.	Post Graduate (Electrical)	1 No	8 (and having experience of one similar nature of work)	Deputy Project Manager (Electrical)	Rs. 40,000/- per Month
4.	Graduate (Civil) Engineer	1 Nos.	10 (and having experience of one similar nature of work)	Deputy Project Manager (Civil) & Quality control	Rs. 50,000/- per Month
5.	Graduate Engineer (Electrical)	1 No	8 (and having experience of one similar nature of work)	Deputy Project Manager & Quality control	Rs. 40,000/- per Month
6.	Architect (Graduate)	1 No	8 (and having experience of one similar nature of work)	Architect	Rs 40,000/- per Month
7.	Civil Engineer (Graduate Or Diploma Engineer)	1 No	5 or 10 Respectively	Project / Site Engineer/ Billing	Rs.30,000/- per Month per person
8.	Graduate Engineer (Planning)	1 Nos	3	Planning / BIM Engineer	Rs.30,000/- per Month per person
9.	Fire/Safety Engineer Degree /Diploma in Safety Management/ Industrial Safety.	1 Nos	5	Fire/Safety Engineer.	Rs. 30,000/- per Month

Note: (1) The Staff at S. No. 1, 3, 4, 5 & 7 (1 no. each) above are required to be in position at site within 15 days of commencement of work or as and when instructed by the PMC/ SBI. The balance along with other staff for specialized works to be in position at site as per requirements at project site or within 15 days of directions of The State Bank of India (SBI) / PMC, whichever is earlier. The above given strength shall be required to be deployed as and when necessity arises at site or so directed by The State Bank of India (SBI) / PMC.

(2) Assistant Engineers retired from Government services, who are holding Diploma will be treated at par with Graduate Engineers.

(3) Diploma holder with minimum 10-years relevant experience with a reputed construction company can be treated at par with Graduate Engineers for such deployment subject to the condition that such diploma holders should not exceed 50% of requirement of Graduate engineers. This shall however shall not be applicable for Project Manager.

(4) Architect should be registered with Council of Architecture (COA).

(5) The Bidder shall submit a certificate of employment of the technical representative(s) (in the form of copy of Form -16 or CPF deduction issued to the Engineers employed by him) along with every account bill/final bill and shall produce evidence of regular physical availability of such engineers on the above project if at any times so required by the PMC/ SBI.

- (iv) Building Information Model (BIM) professional shall be deployed by the contractor for the work wherever BIM is applicable. The BIM professional shall be available exclusively for this work from stipulated date of start and till actual date of completion of project. The recovery shall be made from bill of contractor in case of non-deployment of BIM Professional as mentioned above without giving any notice in writing. The decision of the SBI/ PMC in this respect shall be final and binding on the contractor.

80. LEVY/TAXES PAYABLE BY CONTRACTOR

- i. Building and other Construction Workers Welfare Cess or any other tax, levy or Cess in respect of input for or output by this contract shall be payable by the contractor and SBI shall not entertain any claim whatsoever in this respect.
- ii. The contractor shall deposit royalty at his own cost and obtain necessary permit for supply of the red bajri, stone, kankar, etc. from local authorities.
- iii. If pursuant to or under any law, notification or order any royalty, cess or the like becomes payable by the Government of India and does not any time become payable by the contractor to the State Government, Local authorities in respect of any material used by the contractor in the works, then in such a case, it shall be lawful to the Government of India and it will have the right and be entitled to recover the amount paid in the circumstances as aforesaid from dues of the contractor.

81. CONDITIONS FOR REIMBURSEMENT OF LEVY/TAXES IF LEVIED AFTER RECEIPT OF TENDERS

- (i) All tendered rates shall be inclusive of any tax, royalty, levy or cess applicable on last stipulated date of receipt of tender including extension, if any, except GST. No adjustment i.e. increase or decrease, shall be made for any variation in the rate of Building and Other Construction Workers Welfare Cess or any tax, levy or cess applicable on inputs. GST will be paid extra as per the actuals.
- (ii) The contractor shall keep necessary books of accounts and other documents for the purpose of this condition as may be necessary and shall allow inspection of the same by the PMC/ SBI and shall also furnish such other information document as the PMC/ SBI may require from time to time.
- (iii) The contractor shall, within a period of 30 days of the imposition of any such further tax or levy or cess, give a written notice thereof to the PMC/ SBI that the same is given pursuant to this condition, together with all necessary information relating thereto.

82. TERMINATION OF CONTRACT ON DEATH OF CONTRACTOR

Without prejudice to any of the rights or remedies under this contract, if the contractor dies (in case of proprietorship), the SBI/ PMC on behalf of the SBI shall have the option of terminating the contract without compensation to the contractor.

83. IF RELATIVE WORKING IN OFFICE OF CLIENT/ DEPARTMENT THEN THE CONTRACTOR NOT ALLOWED TO TENDER

The contractor shall not be permitted to tender for works in the SBI in which his near relative is posted as an officer in any capacity between the grades of the General Manager/ Chief Engineer and Site Engineer (both inclusive). He shall also intimate the names of persons who are working with him in any capacity or are subsequently employed by him and who are near relatives to any Gazetted Officer

in the in the Ministry of Health & Family Welfare. Any breach of this condition by the contractor would render him liable to be removed from the approved list of contractors of Client/SBI. If, however the contractor is registered in any other department, he shall be debarred from tendering in the Client/SBI in future for any breach of this condition.

NOTE: By the term “near relatives” is meant wife, husband, parents and grandparents, children and grandchildren, brothers and sisters, uncles, aunts and cousins and their corresponding in-laws.

84. NO ENGINEER TO WORK AS CONTRACTOR WITHIN ONE YEAR OF RETIREMENT

No engineer / officer employed in engineering or administrative duties in Premises & Estate department of the State Bank of India shall work as a contractor or employee of a contractor for a period of one year after his retirement from government service without the previous permission of Government of India in writing. This contract is liable to be cancelled if either the contractor or any of his employees is found at any time to be such a person who had not obtained the permission of Government of India as aforesaid, before submission of the tender or engagement in the contractor's service, as the case may be.

85. THEORETICAL CONSUMPTION OF MATERIALS

- (i) After completion of the work and also at any intermediate stage in the event of Non reconciliation of materials procured, theoretical quantity of materials used in the work shall be calculated on the basis and method given hereunder: -
 - (a) Quantity of cement & bitumen shall be calculated on the basis of quantity of cement & bitumen required for different items of work as shown in the Schedule of Rates. In case any item is executed for which standard constants for the consumption of cement or bitumen are not available in the above-mentioned schedule/statement or cannot be derived from the same shall be calculated on the basis of standard formula to be laid down by the PMC/ SBI.
 - (b) Theoretical quantity of steel reinforcement or structural steel sections shall be taken as the quantity required as per design or as authorized by PMC/ SBI, including authorized lap pages, chairs etc. plus 3% wastage due to cutting into pieces, such theoretical quantity being determined and compared with the actual procurement each diameter wise, section wise and category wise separately.
 - (c) Theoretical quantity of G.I. & C.I. or other pipes, conduits, wires and cables, pig lead and G.I./M.S. sheets shall be taken as quantity actually required and measured plus 5% for wastage due to cutting into pieces (except in the case of G.I./M.S. sheets it shall be 10%), such determination & comparison being made diameter wise & category wise.
 - (d) For any other material as per actual requirements. Over the theoretical quantities of materials so computed a variation shall be allowed as specified in Schedule 'F'. For non-scheduled items, the decision of the SBI/ PMC regarding theoretical quantities of materials which should have been actually used, shall be final and binding on the contractor.
- (ii) The said action under this clause is without prejudice to the right of the SBI to take action against the contractor under any other conditions of contract for not doing the work according to the prescribed specifications.

86. COMPENSATION DURING WAR LIKE SITUATIONS

The work (whether fully constructed or not) and all materials, machines, tools and plants, scaffolding, temporary buildings and other things connected therewith shall be at the risk of the contractor until the work has been delivered to the State Bank of India (SBI) and a completion certificate from him to that effect obtained. In the event of the work or any materials properly brought to the site for incorporation in the work being damaged or destroyed in consequence of hostilities or warlike operation, the contractor shall when ordered (in writing) by the SBI/ PMC to remove any debris from the site, collect and properly stack or remove in store all serviceable materials salvaged from the damaged work and shall be paid at the contract rates in accordance with the provision of this agreement for the work of clearing the site of debris, stacking or removal of serviceable material and for reconstruction of all

works ordered by the SBI/ PMC, such payments being in addition to compensation up to the value of the work originally executed before being damaged or destroyed and not paid for. In case of works damaged or destroyed but not already measured and paid for, the compensation shall be assessed by the SBI/PMC. The contractor shall be paid for the damages/destruction suffered and for restoring the material at the rate based on analysis of rates tendered for in accordance with the provision of the contract. The certificate of the SBI/ PMC regarding the quality and quantity of materials and the purpose for which they were collected shall be final and binding on all parties to this contract.

Provided always that no compensation shall be payable for any loss in consequence of hostilities or warlike operations (a) unless the contractor had taken all such precautions against air raid as are deemed necessary by the A.R.P(Air Raid Precaution) Officers or the SBI/ PMC (b) for any material etc. not on the site of the work or for any tools, plant, machinery, scaffolding, temporary building and other things not intended for the work.

In the event of the contractor having to carry out reconstruction as aforesaid, he shall be allowed such extension of time for its completion as is considered reasonable by the SBI/ PMC.

87. APPRENTICES ACT PROVISIONS TO BE COMPLIED WITH

The contractor shall comply with the provisions of the Apprentices Act, 1961 and the rules and orders issued there under from time to time. If he fails to do so, his failure will be a breach of the contract and the SBI may, in his discretion, cancel the contract. The contractor shall also be liable for any pecuniary liability arising on account of any violation by him of the provisions of the said Act.

88. RELEASE OF SECURITY DEPOSIT AFTER LABOUR CLEARANCE

The Security Deposit of the work shall be refunded if no labour complaint has been received from the labour officer till the due date of its payment. If a labour complaint is received during this period, the Engineer-in- Charge shall, after issue of notice in this regard to the contractor, deduct the amount required to settle the complaint from his security deposit and refund the balance amount.

In case, if part completion certificate of work is recorded then security deposit shall be released only after recording final completion certificate of the work and after completion of defect liability period whichever is later or specified otherwise in the contract.

Note: - In case of any discrepancies between Hindi and English version, English version shall prevail.

89. EVIDENCE AND TERMS OF INSURANCE

The Contractor shall provide evidence to the as soon as practicable after the respective insurance have been taken out but, in any case, prior to the start of work at the Site that insurance required under the Contract have been affected and shall, within 30 days of the Commencement Date, provide the insurance policies to the SBI. When providing such evidence and such policies to the SBI, the Contractor shall notify to the PMC/ SBI also. Such insurance policies shall be consistent with the general terms agreed prior to the issue of the Letter of Acceptance. The Contractor shall effect all insurance for which he is responsible with insurers and in terms approved by the SBI/ PMC.

90. ADEQUACY AND CANCELLATION OF INSURANCE

- i. The Contractor shall notify the insurers of changes in the nature, extent or programme for the execution of the Works and ensure the continuity and adequacy of the insurance at all times in accordance with the terms of the Contract and shall, when required, produce to the SBI the insurance policies in force and the receipts for payment of the current premiums.
- ii. The aforesaid insurance policies shall provide that they shall not be cancelled till the SBI has agreed for cancellation.

91. REMEDY ON THE CONTRACTOR'S FAILURE TO INSURE

If the contractor shall fail to effect and keep in force the insurance referred to above or any other

insurance which he/they may be required to effect under the terms of the contract then and in any such case SBI/ PMC may without being bound to, effect and keep in force any such insurance and pay such premium or premiums, as may be necessary for that purpose and from time to time deduct the amount so paid by the SBI/ PMC from any moneys due or which may become due to the contractor or recover the same as a debt due from the contractor.

92. COMPLIANCE WITH POLICY CONDITIONS

In the event that the Contractor fails to comply with conditions imposed by the insurance policies effected pursuant to the Contract, the Contractor indemnify the SBI against all losses and claims arising from such failure.

93. MAINTENANCE OF RECORDS TO BE DONE BY CONTRACTOR

A.	Registers at the site office of the Bank's Engineer / PROJECT ARCHITECT CUM PMC:
1	Measurement Books.
2	Cement Register (Daily Record).
3	Steel Register.
4	Steel Consumption Register - Bill wise.
5	Drawings register
6	Materials at site register.
7	Hindrance Register.
8	Concrete cube Test Register.
9	File and Register for extra / variation items.
10	Materials test Register and File.
11	Site Order Book (in triplicate).
13	Labour Reports and progress Reports Register.
14	Site Visit & Instructions Register.
15	Certified true copies of the contracts.

C. SAFETY CODE

1. Suitable scaffolds should be provided for workmen for all works that cannot safely be done from the ground, or from solid construction except such short period work as can be done safely from ladders. When a ladder is used an extra Mazdoor shall be engaged for holding the ladder and if the ladder is used for carrying materials as well suitable footholds and hand-hold shall be provided on the ladder and the ladder shall be given an inclination not steeper than $\frac{1}{4}$ to 1 ($\frac{1}{4}$ horizontal and 1 vertical).
2. Scaffolding of staging more than 3.6 m (12 ft.) above the ground or floor, swung or suspended from an overhead support or erected with stationary support shall have a guard rail properly attached or bolted, braced and otherwise secured at least 90 cm (3 ft.) high above the floor or platform of such scaffolding or staging and extending along the entire length of the outside and ends thereof with only such opening as may be necessary for the delivery of materials. Such scaffolding or staging shall be so fastened as to prevent it from swaying from the building or structure.
3. Working Platforms, gangways and stairways should be so constructed that they should not sag unduly or unequally, and if the height of the platform or the gangway or the stairway is more than 3.6 m (12 ft.) above ground level or floor level, they should be closely boarded, should have adequate width and should be suitably fastened as described in (2) above.
4. Every opening in the floor of a building or in a working platform shall be provided with suitable means to prevent the fall of person or materials by providing suitable fencing or railing whose minimum height shall be 90 cm (3 ft.).
5. Safe means of access shall be provided to all working platforms and other working places. Every ladder shall be securely fixed. No portable single ladder shall be over 9 m (30 ft.) in length while the width between side rails in rung ladder shall in no case be less than 29 cm. ($11\frac{1}{2}$ " for ladder up to and including 3 meter (10 ft.) in length. For longer ladders this width should be increased at least $\frac{1}{4}$ " for each additional 30 cm. (1 foot) of length. Uniform step spacing of not more than 30 cm shall be kept. Adequate precautions shall be taken to prevent danger from electrical equipment. No materials on any of the sites or work shall be so stacked or placed as to cause danger or inconvenience to any person or the public. The contractor shall provide all necessary fencing and lights to protect the public from accident and shall be bound to bear the expenses of defense of every suit, action or other proceedings at law that may be brought by any person for injury sustained owing to neglect of the above precautions and to pay any damages and cost which may be awarded in any such suit, action or proceedings to any such person or which may, with the consent of the contractor, be paid to compensate any claim by any such person.
6. (a) Excavation and trenching- All trenches 1.2 m (4 ft.) or more in depth, shall at all times be supplied with at least one ladder for each 30 meter (100 ft.) in length or fraction thereof. Ladder shall extend from bottom of the trench to at least 90 cm. (3 ft.) above the surface of the ground. The sides of the trenches, which are 1.5 m (5 ft.) or more in depth shall be stepped back to give suitable slope or securely held by timber bracing, so as to avoid the danger of sides collapsing. The excavated material shall not be placed within 1.5 m (5 ft.) of the edges of the trench or half of the depth of the trench whichever is more. Cutting shall be done from top to bottom. Under no circumstances undermining or undercutting shall be done.
 (b) Safety Measures for digging bore holes: -
 - (i) If the bore well is successful, it should be safely capped to avoid caving and collapse of the bore well. The failed and the abandoned ones should be completely refilled to avoid caving and collapse;
 - (ii) During drilling, sign boards should be erected near the site with the address of the drilling contractor and the Engineer in-Charge of the work;
 - (iii) Suitable-fencing should be erected around the well during the drilling and after the installation of the rig on the point of drilling, flags shall be put 50m all-round the point of drilling to avoid entry of people;
 - (iv) After drilling the bore well, a cement platform (0.50m x 0.50m to 1.20m) 0.60m above ground level and 0.60m below ground level should be constructed around the well casing;
 - (v) After the completion of the bore well, the contractor should cap the bore well properly by welding steel plate, cover the bore well with the drilled wet soil and fix thorny shrubs over the soil. This should be

done even while repairing the pump;

- (vi) After the bore well is drilled the entire site should be brought to the ground level.
- 7. Demolition. - Before any demolition work is commenced and also during the progress of the work,
 - i) All roads and open areas adjacent to the work site shall either be closed or suitably protected.
 - ii) No electric cable or apparatus which is liable to be a source of danger or a cable or apparatus used by the operator shall remain electrically Charged.
 - iii) All practical steps shall be taken to prevent danger to persons employed from risk of fire or explosion or flooding. No floor, roof or other part of the building shall be so overloaded with debris or materials as to render it unsafe.
- 8. All necessary personal safety equipment as considered adequate by the PMC/ Authority Engineer in Charge should be kept available for the use of the person employed on the site and maintained in a condition suitable for immediate use, and the contractor should take adequate steps to ensure proper use of equipment by those concerned. The following safety equipment shall invariably be provided.
 - i) Workers employed on mixing asphaltic materials, cement and lime mortars shall be provided with protective footwear and protective goggles.
 - ii) Those engaged in whitewashing and mixing or stacking of cement bags or any material, which is injurious to the eyes, shall be provided with protective goggles.
 - iii) Those engaged in welding works shall be provided with welder's protective eye shields.
 - iv) Stonebreakers shall be provided with protective goggles and protective clothing and seated at sufficiently safe intervals.
 - v) When workers are employed in sewers and manholes, which are in active use, the contractors shall ensure that the manhole covers are opened and ventilated at least for an hour before the workers are allowed to get into manholes and the manholes so opened shall be cordoned off with suitable railing and provided with warning signals or boards to prevent accident to the public. In addition, the contractor shall ensure that the following safety measures are adhered to: -
 - (a) Entry for workers into the line shall not be allowed except under supervision of the PMC/ Authority Engineer in Charge or any other higher officer.
 - (b) At least 5 to 6 manholes upstream and downstream should be kept open for at least 2 to 3 hours before any man is allowed to enter into the manhole for working inside.
 - (c) Before entry presence of toxic gases should be tested by inserting wet lead acetate paper, which changes colour in the presence of such gases and gives indication of their presence.
 - (d) Presence of oxygen should be verified by lowering a detector lamp into the manhole. In case, no oxygen is found inside the sewer line, worker should be send only with oxygen kit.
 - (e) Safety belt with rope should be provided to the workers. While working inside the manhole such rope should be handled by two men standing outside to enable him to be pulled out during emergency.
 - (f) The area should be barricaded or cordoned off by suitable means to avoid mishaps of any kind. Proper warning signs should be displayed for the safety of the public whenever for the cleaning works is undertaken during night or day.
 - (g) No smoking or open flames shall be allowed near the blocked manhole being cleaned.
 - (h) The melba obtained on account of cleaning of blocked manholes and sewer lines should be immediately removed to avoid accidents on account of slippery nature of the melba.
Workers should not be allowed to work inside the manhole continuously. He should be given rest intermittently. The PMC/ Authority Engineer in Charge may decide the time up to which worker may be allowed to work continuously inside the manhole.
 - (i) Gas masks with Oxygen cylinder should be kept at site for use in emergency.
 - (j) Air blowers should be used for flow of fresh air through the manholes. Whenever called for, portable air blowers are recommended for ventilating the manholes. The motors for these, shall be vapour proof and of totally enclosed type. Non-sparking gas engines also could be used but they should be placed at least 2 meters away from the opening and on the leeward side, protected from wind so

that they will not be the source of friction on any inflammable gas that might be present.

- (k) The workers engaged for cleaning the manholes/sewers should be properly trained before allowing working in the manhole.
- (l) The worker shall be provided with Gumboots or non-sparking shoes bump helmets and gloves non-sparking tools and safety lights and gas masks and portable air-blowers (when necessary). They must be supplied with barrier cream for anointing the limits before working inside the sewer lines.
- (m) Workmen descending a manhole shall try each ladder stop or rung carefully before putting his full weight on it to guard against insecure fastening due to corrosion of the rung fixed to manhole well.
- (n) If a man has received a physical injury, he should be brought out of the sewer immediately and adequate medical aid should be provided to him.
- (o) The extent to which these precautions are to be taken depend on individual situation but the decision of the PMC/ Authority Engineer in Charge regarding the steps to be taken in this regard in an individual case will be final.
- vi) The contractor shall not employ men and women below the age of 18 years on the work of painting with products containing lead in any form. Whenever men above the age of 18 years are employed on the work of lead painting, the following precautions should be taken: -
 - (a) No paint containing lead or lead products shall be used except in the form of paste or readymade paint.
 - (b) Suitable face masks should be supplied for use by the workers when paint is applied in the form of spray or a surface having lead paint is dry rubbed and scrapped.
 - (c) Overalls shall be supplied by the contractors to the workmen and adequate facilities shall be provided to enable the working painters to wash during and on the cessation of work.
- 9. The Contractor shall not employ women and men below the age of 18 years on the work of painting with product containing lead in any form. Whenever men above the age of 18 are employed on the work of lead painting, the following principles must be observed for such use:
 - i) White lead, sulphate of lead or product containing these pigments, shall not be used in painting operation except in the form of pastes or paint ready for use.
 - ii) Measures shall be taken, wherever required in order to prevent danger arising from the application of paint in the form of spray.
 - iii) Measures shall be taken, wherever practicable to prevent danger arising out of from dust caused by dry rubbing down and scrapping.
 - iv) Adequate facilities shall be provided to enable working painters to wash during and on cessation of work
 - v) Overall shall be worn by working painters during the whole of working period.
 - vi) Suitable arrangement shall be made to prevent clothing put off during working hours being spoiled by painting materials.
 - vii) Cases of lead poisoning and suspected lead poisoning shall be notified and shall be subsequently verified by medical man appointed by the competent authority of Department.
 - viii) Department may require, when necessary, medical examination of workers.
 - ix) Instructions with regard to special hygienic precautions, to be taken in the painting trade, shall be distributed to working painters.
- 10. When the work is done near any place where there is risk of drowning, all necessary equipment should be provided & kept ready for use and all necessary steps taken for prompt rescue of any person in danger and adequate provision, should be made for prompt first aid treatment of all injuries likely to be obtained during the course of the work.
- 11. Use of hoisting machines and tackle including their attachments, anchorage and supports shall conform to the following standards or conditions: -

- (i) (a) These shall be of good mechanical construction, sound materials and adequate strength and free from patent defects and shall be kept repaired and in good working order.
- (b) Every rope used in hoisting or lowering materials or as means of suspension shall be of durable quality and adequate strength, and free from patent defects.
- (ii) Every crane driver or hoisting appliance operator shall be properly qualified and no person under the age of 21 years should be in Charge of any hoisting machine including any scaffolding winch or give signals to operator.
- (iii) In case of every hoisting machine and of every chain ring hook, shackle swivel and pulley blocks used in hoisting or as means of suspension the safe working load shall be ascertained by adequate means. Every hoisting machine and all gear referred to above shall be plainly marked with the safe working load. In case of hoisting machine having a variable safe working load each safe working load and the condition under which it is applicable shall be clearly indicated. No part of any machine or any gear, referred to above in this paragraph shall be loaded beyond the safe working load except for the purpose of testing.
- (iv) In case of departmental machines, the safe working load shall be notified by the Electrical Engineer-in-Charge. As regard contractor's machines the contractors shall notify the safe working load of the machines to the PMC/ Authority Engineer in Charge whenever he brings any machinery to the site of work and get it verified by the Electrical Engineer concerned.
- 12. Motors, gearing, transmission, electric wiring and other dangerous parts of hoisting appliances should be provided with efficient safeguards. Hoisting appliances should be provided with such means as will reduce to the minimum the risk of accidental descent of the load. Adequate precautions should be taken to reduce to the minimum the risk of any part of a suspended load becoming accidentally displaced. When workers are employed on electrical installations, which are already energized, insulating mats, wearing apparel, such as gloves, sleeves and boots, as may be necessary, should be provided. The worker should not wear any rings, watches and carry keys or other materials, which are good conductors of electricity.
- 13. All scaffolds ladders and other safety devices mentioned or described herein shall be maintained in safe condition and no scaffold, ladder or equipment shall be altered or removed while it is in use. Adequate washing facilities should be provided at or near places of work.
- 14. These safety provisions should be brought to the notice of all concerned by display on a notice board at a prominent place at work spot. The person responsible for compliance of the safety code shall be named therein by the contractor.
- 15. To ensure effective enforcement of the rules and regulations relating to safety precautions the arrangements made by the contractor shall be open to inspection by Labour Officer or the Engineer-in-Charge or their representatives.
- 16. Notwithstanding the above clauses from (1) to (15) there is nothing in these to exempt the contractor from the operations of any other Act or Rule in force in the Republic of India.

D. RULES FOR THE PROTECTION OF HEALTH AND SANITARY ARRANGEMENTS FOR WORKERS EMPLOYED BY CONTRACTORS

1. APPLICATION

These rules shall apply to all buildings and construction works in Charge of the SBI in which twenty or more workers are ordinarily employed or are proposed to be employed in any day during the period during which the contract work is in progress.

2. DEFINITION

Work place means a place where twenty or more workers are ordinarily employed in connection with construction work, on any day during the period, during which the contract work is in progress.

3. FIRST-AID FACILITIES

- i) At every work place there shall be provided and maintained, so as to be easily accessible during working hours, first aid boxes at the rate of not less than one box for 150-contract labour or part thereof ordinarily employed.
- ii) The first-aid box shall be distinctly marked with a red cross on white back ground and shall contain the following equipment: -
 - a) For work places in which the number of contract labour employed does not exceed 50- Each first-aid box shall contain the following equipment: -
 - 6 small sterilised dressings.
 - 3 medium size sterilised dressings.
 - 3 large size sterilised dressings.
 - 3 large sterilised burn dressings.
 - 1 (30 ml.) bottle containing a two percent alcoholic solution of iodine
 - 1 (30ml) bottle containing Sal volatile having the dose and mode of administration indicated on the label.
 - 1 snakebite lancet.
 - 1 (30gms.) bottle of potassium permanganate crystals.
 - 1 pair scissors.
 - 1 copy of the first-aid leaflet issued by the Director General, Factory Advice Service and Labour Institute, Government of India/ SBI.
 - 1 Bottle containing 100 tablets (each of 5 gms.) of aspirin.
 - Ointment for burns.
 - A bottle of suitable surgical antiseptic solution
 - b) For workplaces in which the number of contract labour exceeds 50- Each first-aid- box shall contain the following equipment.
 - 12 small sterilized dressing.
 - 6 medium size sterilized dressings.
 - 6 large size sterilized dressings.
 - 6 large size sterilized burn dressings.
 - 6 (15-gms.) packets sterilized cotton wool.
 - 1 (60 ml.) bottle containing two percent alcoholic solution iodine.
 - 1 (60-ml.) bottle containing salvolatile having the dose and mode of administration indicated on the label.
 - 1 roll of adhesive plaster.
 - 1 snake bite lancet.
 - 1 (30 gms.) bottle of potassium permanganate crystals.
 - 1 pair of scissors.
 - 1 copy of the first-aid leaflet issued by the Director General Factory Advice Service and Labour Institute/ Government of India or SBI.

- A bottle containing 100 tablets (each of 5 gms.) of aspirin.
 - Ointment for burns.
 - A bottle of suitable surgical antiseptic solution.
- iii) Adequate arrangements shall be made for immediate procurement of the equipment when necessary.
 - iv) Nothing except the prescribed contents shall be kept in the First-aid box.
 - v) The first-aid box shall be kept in Charge of a responsible person who shall always be readily available during the working hours at the work place.
 - vi) A person in Charge of the first-aid box shall be a person trained in First-Aid treatment, at the work places where the number of contract labour employed is 150 or more.
 - vii) In work places where the number of contract labour employed is 500 or more and hospital facilities are not available within easy distance from the works, First-aid posts shall be established and run by a trained compounder. The compounder shall be on duty and shall be available at all hours when the workers are at work.
 - viii) Where workplaces are situated in places, which are not towns or cities, a suitable motor transport shall be kept readily available to carry injured person or person suddenly taken ill to the nearest hospital.

4. DRINKING WATER

- i) In every work place, there shall be provided and maintained, at suitable places, easily accessible to labour, a sufficient supply of cold water fit for drinking.
- ii) Where drinking water is obtained from an intermittent public water supply, each work place shall be provided with storage where such drinking water shall be stored.
- iii) Every water supply or storage shall be at a distance of not less than 50 feet from any latrine drain or other source of pollution. Where water has to be drawn from an existing well, which is within such proximity of latrine, drain or any other source of pollution, the well shall be properly chlorinated before water is drawn from it or for drinking. All such wells shall be entirely closed in and be provided with a trap door, which shall be dust and waterproof.
- iv) A reliable pump shall be fitted to each covered well, the trap door shall be kept locked and opened only for cleaning or inspection which shall be done at least once a month.

5. WASHING FACILITIES

- i) In every work place adequate and suitable facilities for washing shall be provided and maintained for the use of contract labour employed therein.
- ii) Separate and adequate cleaning facilities shall be provided for the use of male and female workers.
- iii) Such facilities shall be conveniently accessible and shall be kept in clean and hygienic condition.

6. LATRINES AND URINALS

- i) Latrines shall be provided in every work place on the following scale namely: -
 - a) Where female are employed there shall be at least one latrine for every 25 females.
 - b) Where males are employed, there shall be at least one latrine for every 25 males.

Provided that where the number of males or females exceeds 100, it shall be sufficient if there is one latrine for 25 males or females as the case may be up to the first 100, and one for every 50 thereafter.

- i) Every latrine shall be under cover and so partitioned off as to secure privacy, and shall have a proper door and fastenings.
 - ii) Construction of latrines: The inside walls shall be constructed of masonry or some suitable heat-resisting nonabsorbent materials and shall be cement washed inside and outside at least once a year. Latrines shall not be of a standard lower than bore-hole system.
- a) Where workers of both sexes are employed, there shall be displayed outside each block of latrine and urinal, a notice in the language understood by the majority of the workers "For Men only" or "For Women only" as the case may be. The notice shall also bear the figure of a man or a woman, as the case may be.
- i) There shall be at least one urinal for up to 50 number of male workers and one for up to 50 number of female workers employed at a time, provided that where the number of male or female workers,

as the case may be, exceeds 500, it shall be sufficient if there is one urinal for every 50 males or females, up to the first 500 and one for every 100 or part thereafter.

- ii) a) The latrines and urinals shall be adequately lighted and shall be maintained in a clean and sanitary condition at all times.
- b) Latrines and urinals other than those connected with a flush sewage system shall comply with the requirements of the Public Health Authorities.
- i) Water shall be provided by means of tap or otherwise so as to be conveniently accessible in or near the latrines and urinals.
- ii) Disposal of excreta: - Unless otherwise arranged for by the local sanitary authority, arrangements for proper disposal of excreta by incineration at the work place shall be made by means of a suitable incinerator. Alternately excreta may be disposed of by putting a layer of night soil at the bottom of a pucca tank prepared for the purpose and covering it with a 15 cm. layer of waste or refuse and then covering it with a layer of earth for a fortnight (When it will turn to manure).
- iii) The contractor shall at his own expense, carry out all instructions issued to him by the Engineer-in-Charge to effect proper disposal of night soil and other conservancy work in respect of the contractor's workmen or employees on the site. The contractor shall be responsible for payment of any Charges, which may be levied by Municipal or Cantonment Authority for execution of such on his behalf.

7. PROVISION OF SHELTER DURING REST

At every place there shall be provided, free of cost, four suitable sheds, two for meals and the other two for rest separately for the use of men and women labour. The height of each shelter shall not be less than 3 metres (10 ft.) from the floor level to the lowest part of the roof. These shall be kept clean and the space provided shall be on the basis of 0.6 sq. m. (6 sq. ft.) per head.

Provided that the PMC/ SBI may permit subject to his satisfaction, a portion of the building under construction or other alternative accommodation to be used for the purpose.

8. CRECHES

- i) At every work place, at which 20 or more women worker are ordinarily employed, there shall be provided two rooms of reasonable dimensions for the use of their children under the age of six years. One room shall be used as a playroom for the children and the other as their bedroom. The rooms shall be constructed with specifications as per clause 19 H (ii) a, b & c.
- ii) The rooms shall be provided with suitable and sufficient openings for light and ventilation. There shall be adequate provision of sweepers to keep the places clean.
- iii) The contractor shall supply adequate number of toys and games in the playroom and sufficient number of cots and beddings in the bedroom.
- iv) The contractor shall provide one ayah to look after the children in the crèche when the number of women workers does not exceed 50 and two when the number of women workers exceeds 50.
- v) The use of the rooms earmarked as crèches shall be restricted to children, their attendants and mothers of the children.

9. CANTEENS

- i) In every work place where the work regarding the employment of contract labour is likely to continue for six months and where in contract labour numbering one hundred or more are ordinarily employed, an adequate canteen shall be provided by the contractor for the use of such contract labour.
- ii) The contractor shall maintain the canteen in an efficient manner.
- iii) The canteen shall consist of at least a dining hall, kitchen, storeroom, pantry and washing places, separately for workers and utensils.
- iv) The canteen shall be sufficiently lighted at all times when any person has access to it.
- v) The floor shall be made of smooth and impervious materials and inside walls shall be lime-washed or colour washed at least once in each year. Provided that the inside walls of the kitchen shall be lime-washed every 4 months.
- vi) The premises of the canteen shall be maintained in a clean and sanitary condition.

- vii) Wastewater shall be carried away in suitable covered drains and shall not be allowed to accumulate so as to cause a nuisance.
- viii) Suitable arrangements shall be made for the collection and disposal of garbage.
- ix) The dining hall shall accommodate at a time 30 percent of the contract labour working at a time.
- x) The floor area of the dining hall, excluding the area occupied by the service counter and any furniture, except tables and chairs, shall not be less than one square metre (10 sq.ft.) per diner to be accommodated as prescribed in sub-Rule 9.
 - a) A portion of the dining hall and service counter shall be partitioned off and reserved for women workers in proportion to their number.
 - b) Washing places for women shall be separate and screened to secure privacy.
- xi) Sufficient tables, stools, chair or benches shall be available for the number of diners to be accommodated as prescribed in sub-Rule 9.
- xii) There shall be provided and maintained, sufficient utensils, crockery, furniture and any other equipment's, necessary for the efficient running of the canteen.
- xiii) The furniture utensils and other equipment shall be maintained in a clean and hygienic condition.
- xiv) Suitable clean clothes for the employees serving in the canteen shall be provided and maintained.
- xv) A service counter, if provided, shall have top of smooth and impervious material.
- xvi) Suitable facilities including an adequate supply of hot water shall be provided for the cleaning of utensils and equipment's.
- xvii) The foodstuffs and other items to be served in the canteen shall be in conformity with the normal habits of the contract labour.
- xviii) The Charges for foodstuffs, beverages and any other items served in the canteen shall be based on 'No profit, No loss' and shall be conspicuously displayed in the canteen.
- xix) In arriving at the price of food stuffs, and other articles served in the canteen, the following items shall not be taken into consideration as expenditure namely: -
 - a) The rent of land and building.
 - b) The depreciation and maintenance Charge for the building and equipment's provided for the canteen.
 - c) The cost of purchase, repairs and replacement of equipment's including furniture, crockery, cutlery and utensils.
 - d) The water Charges and other Charges incurred for lighting and ventilation.
 - e) The interest and amounts spent on the provision and maintenance of equipment's provided for the canteen.
- xx) The accounts pertaining to the canteen shall be audited once every 12 months by registered accountants and auditors.

10. ANTI-MALARIAL PRECAUTIONS

The contractor shall at his own expense, conform to all anti-malarial instructions given to him by the PMC/ Authority Engineer in Charge including the filling-up of any borrow pits which may have been dug by him.

11. AMENDMENTS

The above rules shall be incorporated in the contracts and in notices inviting tenders and shall form an integral part of the contracts.

Department may, from time to time, add to or amend these rules and issue directions it may consider necessary for the purpose of removing any difficulty, which may arise in the administration thereof.

12. EPIDEMIC SITUATION

In such situation contractor shall deploy special labour to keep the site, worker's hutments, rest rooms etc. neat and clean including sanitization. Contractor shall provide all epidemic related arrangements (at his cost following the guidelines issued by State/ Central Government in this regard.

E. CONTRACTOR'S LABOUR REGULATIONS TO BE FOLLOWED IN THIS PROJECT

1. SHORT TITLE

These regulations may be called the Contractors Labour Regulations and shall be followed by the Contractor for this Project.

2. DEFINITIONS

- i) **Workman** means, any person employed by Department or its contractor directly or indirectly, through a subcontractor, with or without the knowledge of the Department, to do any skilled, semiskilled or unskilled, manual, supervisory, technical or clerical work, for hire or reward, whether the terms of employment are expressed or implied, but does not include any person: -
 - a) Who is employed mainly in a managerial or administrative capacity; or,
 - b) Who, being employed in a supervisory capacity draws wages exceeding five hundred rupees per mensem or exercises either by the nature of the duties attached to the office or by reason of powers vested in him, functions mainly of managerial nature; or,
 - c) Who is an out worker, that is to say, person to whom any article or materials are given out by or on behalf of the principal employers to be made up cleaned, washed, altered, ornamental finished, repaired adopted or otherwise processed for sale for the purpose of the trade or business of the principal employers and the process is to be carried out either in the home of the out worker or in some other premises, not being premises under the control and management of the principal employer.

No person below the of 14 years shall be employed to act as a workman

- ii) **Fair Wages** means wages whether for time or piecework fixed and notified under the provision of the Minimum Wages Act from time to time.
- iii) **Contractors** shall include every person who undertakes to produce a given result other than a mere supply of goods or articles of manufacture through contract labour or who supplies contract labour for any work and includes a subcontractor.
- iv) **Wages** shall have the same meaning as defined in the Payment of Wages Act.

3. WORKING HOURS

- i) Normally working hours of an adult employee should not exceed 9 hours a day. The working day shall be so arranged that inclusive of interval for rest, if any, it shall not spread over more than 12 hours on any day.
- ii) When an adult worker is made to work for more than 9 hours on any day or for more than 48 hours in any week he shall be paid over time for the extra hours put in by him at double the ordinary rate of wages.
- iii)
 - a) Every worker shall be given a weekly holiday normally on a Sunday, in accordance with the provisions of Minimum Wages (Central) Rules 1960, as amended from time to time, irrespective of whether such worker is governed by the Minimum Wages Act or not.
 - b) Where the minimum wages prescribed by the Government, under the Minimum Wages Act, are not inclusive of the wages for the weekly day of rest, the worker shall be entitled to rest day wages, at the rate applicable to the next preceding day, provided he has worked under the same contractor for a continuous period of not less than 6 days.
 - c) Where a contractor is permitted by the PMC/ SBI to allow a worker to work on a normal weekly holiday, he shall grant a substituted holiday to him for the whole day, within the month in which the holidays were due to him or within the two months immediately following that month, compensatory holidays of equal number to the holidays so lost.

4. DISPLAY OF NOTICE REGARDING WAGES ETC.

The contractor shall, before he commences his work on contract, display and correctly maintain and continue to display and correctly maintain, in a clear and legible condition in conspicuous places on the work, notices in English and in local Indian languages spoken by the majority of the workers, giving the minimum rates of the wages fixed under Minimum Wages Act, the actual wages being paid, the hours of work for which such wage are earned, wages periods, dates of payments of wages and other relevant information as per Appendix 'III'.

5. PAYMENT OF WAGES.

- i) The contractor shall fix wage periods in respect of which wages shall be payable.
- ii) No wage period shall exceed one month.
- iii) The wages of every person employed as contract labour in an establishment or by a contractor, where less than one thousand such persons are employed, shall be paid before the expiry of seventh day and in other cases before the expiry of tenth day after the last day of the wage period in respect of which the wages are payable.
- iv) Where the employment of any worker is terminated by or on behalf of the contractor the wages earned by him shall be paid before the expiry of the second working day from the date on which his employment is terminated.
- v) All payment of wages shall be made on a working day at the work premises and during the working time and on a date notified in advance and in case the work is completed before the expiry of the wage period, final payment shall be made within 48 hours of the last working day.
- vi) Wages due to every worker shall be paid to him direct or to other person authorised by him in this behalf.
- vii) All wages shall be paid in current coin or currency or in both.
- viii) Wages shall be paid without any deductions of any kind except those specified by the Central Government by general or special order in this behalf or permissible under the Payment of Wages Act 1956.
- ix) A notice showing the wages period and the place and time of disbursement of wages shall be displayed at the place of work and a copy sent by the contractor to the PMC/ Authority Engineer in Charge under acknowledgement.
- x) It shall be the duty of the contractor to ensure the disbursement of wages in presence of authorised representative of the PMC/ Authority Engineer in Charge who will be required to be present at the place and time of the disbursement of wages by the contractor to workmen.
- xi) The contractor shall obtain from the junior engineer or any other authorised representative of the PMC/ Authority Engineer in Charge, as the case may be, a certificate under his signature at the end of the entries in the "Register of Wages" or the "Wage-cum-Muster Roll", as the case may be, in the following form: -
"Certified that the amount shown in the column No. has been paid to the workman concerned in my presence on.....at _____"

6. FINES AND DEDUCTIONS WHICH MAY BE MADE FROM WAGES

- (i) The wages of a worker shall be paid to him without any deduction of any kind except the following: -
 - (a) Fines
 - (b) Deductions for absence from duty i.e. from the place or the places where by the terms of his employment he is required to work. The amount of deduction shall be in proportion to the period for which he was absent.
 - (c) Deductions for damage to or loss of goods expressly entrusted to the employed person for custody, or for loss of money or any other deductions which he is required to account, where such damage or loss is directly attributable to his neglect or default.
 - (d) Deduction for recovery of advances or for adjustment of overpayment of wages, advances granted shall be entered in a register.
 - (e) Any other deduction, which the Central Government may from time to time, allows.
- (ii) No fines should be imposed on any worker save in respect of such acts and omissions on his part as have been approved of by the Chief Labour Commissioner.

Note: - An approved list of Acts and Omission for which fines can be imposed is enclosed at Appendix-X.

- (i) No fine shall be imposed on a worker and no deduction for damage or loss shall be made from his wages until the worker has been given an opportunity of showing cause against such fines or deductions.
- (ii) The total amount of fine, which may be imposed, in any one-wage period, on a worker, shall not exceed an amount equal to three paise in a rupee of the total wages, payable to him in respect of that wage period.
- (iii) No fine imposed on any worker shall be recovered from him by installment, or after the expiry of sixty days from the date on which it was imposed.
- (iv) Every fine shall be deemed to have been imposed on the day of the act or omission in respect of which it was imposed.

7. LABOUR RECORDS

- (i) The contractor shall maintain a **Register of Persons employed** on work on contract in Form XIII of the CL (R&A) Central Rules 1971 (Appendix IV)
- (ii) The contractor shall maintain a **Muster Roll** register in respect of all workmen employed by him on the work under Contract in Form XVI of the CL (R&A) Rules 1971 (Appendix V)
- (iii) The contractor shall maintain a **Wage Register** in respect of all workmen employed by him on the work under contract in Form XVII of the CL (R&A) Rules 1971 (Appendix VI)
- (iv) **Register of accident** – The contractor shall maintain a register of accidents in such form as may be convenient at the work place but the same shall include the following particulars:
 - a) Full Particulars of the labourers who met with accident.
 - b) Rate of wages.
 - c) sex
 - d) Age
 - e) Nature of accident and cause of accident
 - f) Time and date of accident
 - g) Date and time when admitted in hospital
 - h) Date of discharge from the hospital
 - i) Period of treatment and result of treatment
 - j) Percentage of loss of earning capacity and disability as assessed by Medical Officer.
 - k) Claim required to be paid under Workmen's Compensation Act.
 - l) Date of payment of compensation
 - m) Amount paid with details of the person to whom the same was paid
 - n) Authority by whom the compensation was assessed
 - o) Remarks.
- (v) The contractor shall maintain a Register of Fines in the Form XII of the CL (R&A) Rules 1971 (Appendix XI)
- (vi) The contractor shall display in a good condition and in a conspicuous place of work the approved list of acts and omission for which fines can be imposed (Appendix X)
- (vii) The contractor shall maintain a Register of deductions for damage or loss in Form XX of the CL (R&A) Rules 1971 (Appendix XII).
- (viii) The contractor shall maintain a Register of Advances in Form XXIII of the CL (R&A) Rules 1971 (Appendix-XIII).
- (ix) The contractor shall maintain a **Register of Overtime** in Form XXIII of the CL (R&A) Rules 1971 (Appendix-XIV).

8. ATTENDANCE CARD-CUM WAGE SLIP

- (i) The contractor shall issue an **Attendance card cum wage slip** to each workman employed by him in the specimen format (Appendix-VII).

- (ii) The card shall be valid for each wage period.
- (iii) The contractor shall mark the attendance of each workman on the card twice each day, once at the commencement of the day and again after the rest interval, before he actually starts work.
- (iv) The card shall remain in possession of the worker during the wage period under reference.
- (v) The contractor shall complete the wage slip portion on the reverse of the card at least a day prior to the disbursement of wages in respect of the wage period under reference.
- (vi) The contractor shall obtain the signature or thumb impression of the worker on the wage slip at the time of disbursement of wages and retain the card with him.

9. EMPLOYMENT CARD

The contractor shall issue an **Employment Card** in the Form XIV of CL (R&A) Central Rules 1971 to each worker within three days of the employment of the worker (Appendix-VIII).

10. SERVICE CERTIFICATE

On termination of employment for any reason whatsoever the contractor shall issue to the workman whose services have been terminated, a Service Certificate in the Form XV of the CL (R&A) Central Rules 1971 (Appendix-IX).

11. PRESERVATION OF LABOUR RECORDS

All records required to be maintained under Regulations Nos. 6 & 7 shall be preserved in original for a period of three years from the date of last entries made in them and shall be made available for inspection by the PMC/ Authority Engineer in Charge or Labour Officer or any other officers authorised by the Department this behalf.

12. POWER OF LABOUR OFFICER TO MAKE INVESTIGATIONS OR ENQUIRY

The labour officer or any person authorised by the Central Government on their behalf shall have power to make enquiries with a view to ascertaining and enforcing due and proper observance of Fair Wage Clauses and provisions of these Regulations. He shall investigate into any complaint regarding the default made by the contractor or subcontractor in regard to such provision.

13. REPORT OF LABOUR OFFICER

The Labour Officer or other persons authorised as aforesaid shall submit a report of result of his investigation or enquiry to the PMC/ Authority PMC/ Authority PMC/ Authority PMC/ Authority Engineer in Charge concerned indicating the extent, if any, to which the default has been committed with a note that necessary deductions from the contractor's bill be made and the wages and other dues be paid to the labourers concerned. In case an appeal is made by the contractor under Clause 13 of these regulations, actual payment to labourers will be made by the PMC/ Authority PMC/ Authority PMC/ Authority PMC/ Authority Engineer in Charge after the SBI has given his decision on such appeal.

SBI shall arrange payments to the labour concerned within 45 days from the receipt of the report as the case may be from the Labour Officer

14. APPEAL AGAINST THE DECISION OF LABOUR OFFICER

Any person aggrieved by the decision and recommendations of the Labour Officer or other person so authorized may appeal against such decision to the SBI within 30 days from the date of decision, forwarding simultaneously a copy of his appeal to the PMC/ Authority PMC/ Authority PMC/ Authority PMC/ Authority Engineer in Charge concerned but subject to such appeal, the decision of the officer shall be final and binding upon the contractor.

15. PROHIBITION REGARDING REPRESENTATION THROUGH LAWYER

- i) A workman shall be entitled to be represented in any investigation or enquiry under these regulations by: -
 - a) An officer of a registered trade union of which he is a member.
 - b) An officer of a federation of trade unions to which the trade union referred to in Clause (a) is affiliated.
 - c) Where the employer is not a member of any registered trade union, by an officer of a registered trade union, connected with the industry in which the worker is employed or by any other

workman employed in the industry in which the worker is employed.

- ii) An employer shall be entitled to be represented in any investigation or enquiry under these regulations by: -
 - a) An officer of an association of employers of which he is a member.
 - b) An officer of a federation of associations of employers to which association referred to in Clause (a) is affiliated.
 - c) Where the employer is not a member of any association of employers, by an officer of association of employer connected with the industry, in which the employer is engaged or by any other employer, engaged in the industry in which the employer is engaged.
- iii) No party shall be entitled to be represented by a legal practitioner in any investigation inquiry under these regulations.

16. INSPECTION OF BOOKS AND SLIPS

The contractor shall allow inspection of all the prescribed labour records to any of his workers or to his agent at a convenient time and place after due notice is received or to the Labour Officer or any other person, authorised by the Central Government on his behalf.

17. SUBMISSION OF RETURNS

The contractor shall submit periodical returns as may be specified from time to time.

18. AMENDMENTS

The Central Government/SBI may from time to time add to or amend the regulations and on any question as to the application/interpretation or effect of those regulations the decision of the EIC concerned shall be final.

F. FORMATS & ANNEXURES

ANNEXURE I

FORMAT FOR PRE-BID QUERIES

(To be emailed to one day before the pre-bid meeting date as specified in the NIT)

NAME OF THE CONTRACTOR:

ADDRESS:

CONTACT PERSON NAME AND PHONE NUMBER:

EMAIL ID:

SI No	Part (A, B or C)	Clause No.	Page No.	Query

ANNEXURE II

Declaration-Cum- Certificate on the Letter Head of Bidder Regarding Restrictions on Procurement From Bidders From A Country Or Countries, On Grounds Of Defense In India, Or Matters Directly Related Thereto, Including National Security.

Restrictions under Rule 144 (XI) of General Financial Rules 2017 of Ministry of Finance, India order no. F. No 6/18/2019/PPD dated 23rd July 2020 (including any amendment/ revision thereto)

I/We have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India.

I/We, the bidder (Specify full name -----) certify that we are NOT from such a country OR, if from such a country, has been registered with Competent Authority.

I/We hereby certify that we fulfil all requirements in this regard and is eligible to be considered.

(Signature of Authorised Signatory along with Seal)

Name of authorised signatory:

Designation of Authorised signatory:

List of Evidence enclosed:

1. Copy of certificate of valid registration with the Competent Authority (Score out if not applicable)
2.
3. ...

ANNEXURE- III

PROFORMA FOR HINDRANCE TO WORK

Name of Work : Date of Start of work :
Name of Contractor : Period of Completion :
Agreement No. : Dt. of Completion of work :

S.No.	Nature of Hindrance	Date of Occurrence of Hindrance	Date of which Hindrance was removed	Period of which Hindrance existed	Signature of Site Engineer	Signature of Bank / Architects Representative
1	2	3	4	5	6	7

ARTICLES OF AGREEMENT

This agreement made theday of between Deputy General Manager(Premises), State Bank of India, -----(hereinafter called the Bank or SBI) which expression shall include the successors and assigns) of the one part and M/s. company / partnership for registered under the Indian Companies Act / Partnership Act having its office registered -----(hereinafter called 'the Contractors' which expression shall include the present directors / partners and also the directors / partners from time to time as also their respective heirs, legal representatives, administrators and assigns) of the other part

WHEREAS the employer is desirous of execution of _____(Name of Work)_____ and has caused drawings and specifications describing the works to be done prepared by Project Architects M/s Pithavadian & Partners having their offices at _____ (hereinafter called "the Architect" or "PMC")

AND WHEREAS THE SAID the specifications and the Schedule of items and quantities and rates have been signed by or on behalf of the parties hereto.

AND whereas the contractors have agreed to execute upon and subject to the condition set forth herein and Schedule of items and quantities, Notice Inviting Tender, Instructions to Tenderers, General & Special Conditions of Contract, BOQ and tender specifications etc. contained in the tendered documents including all correspondences exchanged by or between the parties from the submission of tender till the award of work, both letters inclusive, (all of which are collectively hereinafter referred to as "the said conditions"). The works shown upon the said drawing and /or described in the said specification and included in the schedule of Items and Quantities at the respective rates therein set forth amounting to the sum of ____Rs_____ (Rupees _____in words_____) as there in arrived at or such other sum as shall become payable there under (hereinafter referred to as " the said Contract Amount").

NOW IT IS HEREBY AGREED AS FOLLOWS:

1. In consideration of the said Contract amount to be paid at the times and the manner set forth in the said Conditions, the Contractors shall upon and subject to the said conditions prepare detailed designs and drawings, obtain approval for design and drawings from PMC and SBI including proof checking of the structural and service drawings, submit application on behalf of Bank and obtain all approvals from local authorities including Environmental clearance, execute and complete the work as per timelines and as per the said drawings and described in the said specifications and the schedule of items and quantities.
2. The employer shall pay the Contractors the amount or such other sum as shall become payable, at the times and in the manner specified in the said conditions.
3. The term "the Architect" in the said condition shall mean the said "M/s ____" or in the event of their ceasing to be the Architect for the purpose of this contract for whatever reason, such other person

or persons as shall be nominated for that purpose by the Employer, not being a person to whom the Contractor shall object for reasons considered to be sufficient by the Employer provided always that no person or persons subsequently appointed to be Architect under this contract shall be entitled to disregard or over rule any previous decisions or approval or direction given or expressed in writing by the architect for the time being.

4. The said conditions and appendix thereto shall be read and construed as forming part of this agreement, and the parties hereto shall respectively abide by / submit themselves to the said conditions and perform the agreements on their part respectively in the said conditions contained.

5. The plans, agreement and documents mentioned herein shall form the basis of this contract.

6. This contract is neither a fixed Lump sum contract nor a piece work contract but is a contract to carry out the work in respect of the entire project on item rate basis to be paid for according to actual measured quantities at the rates contained in the schedule of quantities and rates or as provided in the said conditions.

7. The Bank / Employer reserves to itself the rights of altering the specifications and nature of work by adding to or omitting any item of work or having portions of the same carried out without prejudice to the contract.

8. Time shall be considered as the essence of this contract and the contractor here by agrees to

a) Obtain approvals from the local authorities including Environmental clearance within 6 months from the date of Letter of Acceptance.

b) To complete all pre-construction activities such as preparation and submission of the detailed designs & drawings, proof checking and obtain final approvals for design and drawings from PMC and SBI for the same within this period.

c) To commence the work soon after the site is handed over to him or from the 15th day after date of issue of formal work order as provided for in the said conditions of contractor whichever is later and to complete the entire work within 24 months (period of contract) months subject never the less to the provisions for extension of time.

9. All payments by the Employer under this contract will be made only at _____.

10. Any dispute arising under this Agreement shall be referred to arbitration in accordance with the stipulations laid down in the tender.

11. That all the parts of this contract have been read by the contractor and fully understood by the contractor. They further agree to complete the said work to fullest satisfaction of architect / Employer.

12. IN WITNESS WHEREOF the Employer and the contractors have set their respective hands to these presents through their duly authorized official and the said two duplicates hereof to be executed on its behalf of the day and year first herein above written.

**Signed on Behalf of
State Bank of India**

**Signed on Behalf of the
Contractor**

In Presence of

In Presence of

1. Signature_____

Name_____

Address_____

In Presence of

2. Signature_____

Name_____

Address_____

1. Signature _____

Name_____

Address _____

In Presence of

2. Signature _____

Name_____

Address _____

ANNEXURE- V

FORMAT OF BANK GUARANTEE FOR SECURITY DEPOSIT/ MOBILISATION ADVANCE

BANK GUARANTEE NO:

ISSUE DATE:

Place:

Date:.....

(On non-judicial stamp paper of Rs.-----/-)

BANK GUARANTEE IN LIEU OF SECURITY DEPOSIT

B.G.No.

Value Rs.

State Bank of India,
(Address)

Sub:Bank Guarantee of Rs.....towards Security Deposit/ Mobilization advance for the work offer State Bank of India.

(Name of Branch/Office)

Dear Sir,

WHEREAS (Name and address of contractor/ vendor) (hereinafter called the Contractor) have entered into contract for (Name of Work) with State Bank of India (SBI) as mentioned in the letter of SBI's Consultants (Name & address of consultants) vide their letter No..... datedand the correspondence and tender relating thereto which is hereinafter referred to as "the said contract" the Contractor has now agreed to produce a Bank Guarantee amounting to Rs.....(Rupees only), to State Bank of India for performing their part of the contract obligations.

AND WHEREAS in terms of said contract, the contractor is required to furnish to State Bank of India a Guarantee of a Scheduled Bank for a value of Rs..... to be valid upto (date).

AND WHEREAS (Name of Bank and its branch) having their office at (address) the Guarantor, at the request of the contractor hereby furnishes a BG in favour of State Bank of India and Guarantees in the manner hereinafter appearing.

In consideration of the premise, we (name of Bank and its branch) having our office at (address)here after called the "Guarantor" (which expression shall include its successors and assigns) here by expressly, irrevocably &unreservedly undertake and guarantee under that if the Contractor fails to execute the work according to his obligations under the said contract, then notwithstanding any dispute between State Bank of India and the contractor the Guarantor shall, on demand without demur and without reference to the contractor pay to State Bank of India immediately any sum claimed by State Bank of India under the said contract up to a maximum amount of Rs. (Rupees only).

In case the amount demanded by State Bank of India is not paid within 48 hours of receipt of demand, the Guarantor agrees to pay the aforesaid amount of Rs./- (Rupees only).

(i)Such payment shall be notwithstanding any right the contractor may have directly against State Bank of India or any disputes raised by the Contractor with State Bank of India or any suits or proceedings pending in any competent court or before any arbitrator. State Bank of India's written demand shall be conclusive evidence to the Guarantor that such payment is payable under the terms of the Contract and shall be binding in all respect on the guarantor.

(ii)The Guarantor shall not be discharged or released from the the undertaking and Guarantee, by any arrangement, variations made between SBI and the Contractor and or indulgence shown to the contractor by SBI, with or without the consent and knowledge of the guarantor or by alterations in the obligations of the contractor by any forbearance, whether as to payment, time performance or otherwise.

(iii)This guarantee shall remain valid until or as may be caused to be extended by the contractor or until discharged by SBI in writing whichever is earlier.

(iv)This guarantee shall be a continuing guarantee and shall not be revocable during its currency except with the previous written consent of SBI.

(iv)(a)This guarantee shall not be affected by any change in the constitution of the contractor, by absorption with any other body or corporation or dissolution or otherwise and this guarantee will be available to or enforceable against such body or corporation.

(v)In order to give effect to this guarantee SBI will be entitled to act as if the Guarantor were the Principal debtor and the Guarantor hereby waives all and any of its rights or surety ship.

(vi)This guarantee shall continue to be in force notwithstanding the discharge of the contractor by operation of law and shall cease only on payment of the full amount by the Guarantor to SBI of the amount hereby secured.

(vii)This guarantee shall be in addition to and not in substitution for any other guarantee or security for the contractor given or to be given to SBI in respect of the said contract.

(viii)Any notice by way of request and demand or otherwise here under may be sent by post or any other mode or communication to the guarantor addressed as aforesaid and if sent by post it shall be deemed to have been given at the time when it would be delivered in due course of post and in providing such notice when given by post it shall be sufficient to prove that the envelope containing the notice was posted and a certificate signed by an officer of SBI that the envelope was so posted shall be conclusive.

(ix) These presents shall be governed by and constructed in accordance with Indian Law.

Notwithstanding anything contained hereinbefore the liability of the guarantor under this guarantee is restricted to a sum of Rs._____.

This guarantee will remain valid upto _____ unless a demand or claim under this guarantee is made in writing on or before _____ the guarantor shall be discharged from all liability under the guarantee thereafter.

Dated the

For (Name of Bank)

(Signature/s with designation/s of signatory/ies)

(Name and Stamp of Bank)

ANNEXURE- VI

PROFORMA OF CUBE TEST REGISTER

[illegible]

ANNEXURE- VII

FORMAT FOR SITE ORDER BOOK

Name of the work_____

Date of Commencement_____

Sr. No	Remarks/ Instructions of the site Engineer/ Architect	Dated Initials of site Engineer/ Architect	Initials of the Contractor for having received the instructions	Action taken with date	Dated initials of the site Engineer	Remarks of the Architects PMC/ C.C. Officials
1	2	3	4	5	6	7

ANNEXURE- VIII **FORMAT FOR HINDRANCE REGISTER**

Name of Work	:	Date of state of work	:
Name of Contractor	:	Period of completion	:
Agreement No.	:	Date of completion	:

[illegible]

Appendix 'I'

REGISTER OF MATERNITY BENEFITS (Clause 19F)

Name and address of the contractor _____ Name and Location of the work _____

Name of the Employee	Father's/husband's name	Nature of Employment	Period of actual confinement	Date on which notice of confinement given
1	2	3	4	5

Date on which maternity leave commenced and ended				
Date of Delivery/Miscarriage	In case of delivery		In case of miscarriage	
	Commenced	Ended	Commenced	Ended
6	7	8	9	10

Leave pay paid to the employee				Remarks
In case of delivery		In case of miscarriage		
Rate of leave pay	Amount paid	Rate of leave pay	Amount paid	
11	12	13	14	15

Appendix 'II'

SPECIMEN FORM OF THE REGISTER, REGARDING MATERNITY BENEFIT ADMISSIBLE TO THE CONTRACTOR'S LABOUR

Name and address of the contractor_____

Name and location of the work_____

1. Name of the woman and her husband's name.
2. Designation
3. Date of appointment.
4. Date with months and years in which she is employed.
5. Date of discharge / dismissal, if any.
6. Date of production of certificates in respect of pregnancy.
7. Date on which the woman informs about the expected delivery.
8. Date of delivery / miscarriage / death.
9. Date of production of certificates in respect of delivery / miscarriage.
10. Date with the amount of maternity/ death benefit paid in advance of expected delivery.
11. Date with amount of subsequent payment of maternity benefit.
12. Name of the person nominated by the woman to receive the payment of the maternity benefit after her death.
13. If the woman dies, the date of death, the name of the person to whom maternity benefit amount was paid, the month thereof and the date of payment.
14. Signature of the contractor authenticating entries in the register.
15. Remarks column for the use of inspecting officer.

Appendix 'III'

LABOUR BOARD

Name of work:_____

Name of Contractor:_____

Address of Contractor:_____

Name and address of Construction division. /unit _____

Name of SBI Labour Officer:_____

Address of SBI Labour Officer:_____

Name of Labour Enforcement Officer:_____

Address of Labour Enforcement Officer:_____

Sl. No	Category	Minimum wage	Fixed	Actual wage paid	Number Present	Remarks

Weekly holiday_____Wage period _____

_____Date of payment of

Wages_____Working hours_ Rest

interval_____

Appendix 'IV'

Form-XIII (See Rule 75)
Register of Workmen Employed by Contractor

Name and address of contractor_____

Name and address of establishment under which contract is carried on_____

Nature and location of Work_____

Name and address of Principal Employer_____

1	Sl. No
2	Name and surname of Workman
3	Age and Sex
4	Father' s/ Husband' s
5	Nature of employment / designation.
6	Permanent home address of the workman (Village and Tehsil,
7	Local Address
8	Date of commencement of employment
9	Signature or thumb impression of the workman
10	Date of Termination
11	Reasons For
12	Remarks

Appendix 'V'

Form-XVI (See Rule 78(2)(a))

Muster Roll

Name and address of the contractor _____

Name and address of establishment under which contract is carried on_____

Nature and location of work_____

Name and address of Principal Employer_____

For the month of fortnight _____

[illegible]

Appendix 'VI'

Form -XVII (See Rule 78(2)(a))

Register of Wages

Name and address of the contractor _____

Name and address of establishment under which contract is carried on _____

Nature and location of work _____

Name and address of Principal Employer _____

Wages period _____ Monthly/fortnightly

1	2	3	4	5	6	7	8
Sl. No	Name of workman	Serial No. in the register of workman	Designation Nature of work done	No. of days worked	Units of work done	Daily rate of wages/piece rate	Basic Wages
DA	Overtime	Other cash payments (Indicate nature)	Total	Deductions if any, (indicate nature)	Signature or thumb impression of the workman	Initial of contractor or his representative	

Appendix 'VII'

Wage Card

Wage Card No. _____

Name and address of the contractor _____ Date of issue _____
 Name and location of work _____ Designation _____
 Name of Workman _____ Month/fortnight-----
 Rate of Wages _____

DATE																																		
	1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	25	26	27	28	29	30	31			
Morning																																		
Evening																																		
Initial																																		

Rate _____ Amount _____

Received from _____ the sum of Rs. _____ on account of my wages.

Signature

The wage card is valid for one month from the date of issue

**Form-XIX (See rule
78(2)(b))**

Wages Slip

Name and address of the contractor_____

Name and Father's/Husband's name of workman_

Nature and location of work_____

For the Week/Fortnight/Month ending___

No. of days worked ____

No. of units worked in case of piece rate workers_

Rate of daily wages/piece rate_

Amount of overtime wages_____

Gross wages payable_____

Deduction, if any_____

Net amount of wages paid_____

Initials of the Contractors or his representative

Form-XIV (See rule
76)

Employment Card

Name and address of the contractor_____

Name and address of establishment under which contract is carried on_____

Nature of work and location of work_____

Name and address of Principal Employer_____

Name of Workman_____

S No. in the register of workman employed_____

Nature of employment/designation_____

Wage rate (with particulars of unit in case of piece work)_____

Wages period_____

Tenure of employment_____

Remarks_____

Signature of contractor

Appendix 'IX'
Form-XV (See Rule 77)

Service Certificate

Name and address of the contractor_____

Nature and location of work_____

Name and Address of workman_

Age or date of birth_____

Identification marks_____

Father's/Husband's name_____

Name and address of establishment in under which contract is carried on__

Name and address of Principal Employer.

Sl. No	Total period for which Employed		Nature of work done	Rate of Wages (with particulars of unit in case of piece work)	Remarks
	From	To			
1	2	3	4	5	6

Signature

Appendix 'X'

LIST OF ACTS AND OMISSIONS FOR WHICH FINES CAN BE IMPOSED

In accordance with rule 7 (v) of the Contractor's Labor Regulations to be displayed prominently at the site of work both in English and local Language.

Willful insubordination or disobedience, whether along or in combination with other.

Theft fraud or dishonestly in connection with the contractors beside a business or property of Department.

Taking or giving bribes or any illegal gratifications.

Habitual late attendance.

Drunkenness fighting, riotous or disorderly or indifferent behavior.

Habitual negligence.

Smoking near or around the area where combustible or other materials are locked.

Habitual indiscipline.

Causing damage to work in the progress or to property of the Department or of the contractor.

Sleeping on duty.

Malingering or slowing down work.

Giving of false information regarding name, age, father's name etc.

Habitual loss of wage cards supplied by the employers.

Unauthorized use of employer's property of manufacturing or making of Unauthorized particles at the work place.

Bad workmanship in construction and maintenance by skilled workers which is not approved by the Department and for which the contractors are compelled to undertake rectification.

Making false complaints and/or misleading statements.

Engaging on trade within the premises of the establishments.

Any unauthorized divulgence of business affairs of the employees.

Collection or canvassing for the collection of any money within the premises of an establishment unless authorized by the employer.

Holding meeting inside the premises without previous sanction of the employers.

Threatening or intimidating any workman or employer during the working hours within the premises.

Appendix 'XI'

Form-XII (See Rule 78(2)(d))

Register of Fines

Name and address of the contractor_____

Name and address of establishment in under which contract is carried on_____

Nature and location of work_____

Name and address of Principal Employer_____

Sl.No	Name of workman	Father's/Husband's name	Designation/nature of employment	Act/Omission For which fine imposed	Date of Offence
1	2	3	4	5	6

Whether workman Showed cause against fine	Name of person in whose presence employees explanation was heard	Wage period and wages payable	Amount of fine imposed	Date on which fine realized	Remarks.
7	8	9	10	11	12

Appendix 'XII'

Form-XX (See Rule 78(2)(d))

Register of Deduction for Damage or Loss

Name and address of the contractor_____

Name and address of establishment in under which contract is carried on_____

Nature and location of work_____

Name and address of Principal Employer_____

Sl. No	Name of workman	Father's/Husband's name	Designation/nature of employment	Particulars of damage or loss	Date of damage or loss
1	2	3	4	5	6

Whether workman showed cause against fine	Name of person in whose presence employees explanation was heard	Amount of deduction imposed	No. of installments	Date of recovery		Remarks
				First installment	Last installment	
7	8	9	10	11	12	13

Appendix 'XIII'

Register of Advances

Name and address of the contractor_____

Name and address of establishment under which contract is carried on_____

Nature and location of work_____

Name and address of Principal Employer_____

1	2	3	4	5	6	7	8	9	10	11
Sl. No.	Name of workman	Father' s/Husband' s name	Designation nature of employment	Wage period and wages payable	Date and Amount of Advance given	Purpose(s) for which Advance made	Number of Installments by which advance to be repaid	Date and amount of each installments repaid	Date on which last Installments was repaid	Remarks

Appendix 'XIV'

Form-XXIII (See Rule 78(2)(e))

Register of Overtime

Name and address of the contractor_____

Name and address of establishment in under which contract is carried on_____

Nature and location of work_____

Name and address of Principal Employer _____

1	2	3	4	5	6	7	8	9	10	11	12
Sl. No.	Name of workman	Father' s/husband' s name	Sex	Designation /nature of employment	Date on which Overtime worked	Total overtime worked or production in case of piece rated	Normal rate of wages	Overtime rate of wages	Overtime earnings	Rate on which overtime wages paid	Remarks

Appendix-XV (FORM 31)
INDENTURE FOR SECURED ADVANCES
(Referred to in paragraphs 10.2.20 and 10.2.22 of CPWD Code)

(For use in cases in which the contract is for finished work and the contractor has entered into an agreement for the execution of a certain specified quantity of work in a given time)

THIS INDENTURE made the..... day of20..... BETWEEN
..... (hereinafter called the Contractor which expression shall where the context so admits or implies be deemed to include his executors administrators and assigns) of the one part and the IITB (hereinafter called the IITB which expression shall where the context so admits or implies be deemed to include his successors in office and assigns) of the other part.

WHEREAS by an agreement dated (hereinafter called the said agreement) the Contractor has agreed AND WHEREAS the Contractor has applied to the IITB that he may be allowed advances on the security of materials absolutely belonging to him and brought by him to the site of the works the subject of the said agreement for use in the construction of such of the works as he has undertaken to execute at rates fixed for the finished work (inclusive of the cost of materials and labour and other charges) AND WHEREAS the IITB has agreed to advance to the Contractor the sum of Rupees..... on the security of materials the quantities and other particulars of which are detailed in Accounts of Secured Advances attached to the Running Account Bill for the said works signed by the Contractor on..... and the IITB has reserved to himself the option of making any further advance or advances on the security of other materials brought by the Contractor to the site of the said works. Now THIS INDENTURE WITNESSETH that in pursuance of the said agreement and in consideration of the sum of Rupees..... on or before the execution of these presents paid to the Contractor by the IITB (the receipt whereof the Contractor does hereby acknowledge) and of such further advances (if any) as may be made to him as aforesaid the Contractor does hereby covenant and agree with the IITB and declare as follows: -

That the said sum of Rupees..... so advanced by the IITB to the Contractor as aforesaid and all or any further sum or sums advanced as aforesaid shall be employed by the Contractor in or towards expediting the execution of the said works and for no other purpose whatsoever.

That the materials detailed in the said Account of Secured Advances which have been offered to and accepted by the IITB as security are absolutely the Contractor's own property and free from encumbrances of any kind and the contractor will not make any application for or receive a further advance on the security of materials which are not absolutely his own property and free from encumbrances of any kind and the Contractor indemnifies the IITB against all claims to any materials in respect of which an advance has been made to him as aforesaid. That the materials detailed in the said Account of Secured Advances and all other materials on the security of which any further advance or advances may hereafter be made as aforesaid (hereinafter called the said materials) shall be used by the Contractor solely in the execution of the said works in accordance with the directions of the Divisional Officer Division (hereinafter called the Divisional Officer) and in the term of the said agreement.

That the Contractor shall make at his own cost all necessary and adequate arrangements for the proper watch, safe custody and protection against all risks of the said materials and that until used in construction as aforesaid the said materials shall remain at the site of the said works in the Contractor's custody and on his own responsibility and shall at all times be open to inspection by the Divisional Officer or any officer authorised by him. In the event of the said materials or any part thereof being stolen, destroyed or damaged or becoming deteriorated in a greater degree than is due to reasonable use and wear thereof the Contractor will forthwith replace the same with other materials of like quality or repair and make good the same as required by the Divisional Officer.

That the said materials shall not on any account be removed from the site of the said works except with the written permission of the Divisional Officer or an officer authorised by him on that behalf.

That the advances shall be repayable in full when or before the Contractor receives payment from the IITB of the price payable to him for the said works under the terms and provisions of the said agreement. Provided that if any intermediate payments are made to the Contractor on account of work done than on the occasion of each such payment the IITB will be at liberty to make a recovery from the Contractor's bill for such payment by deducting there from the value of the said materials then actually used in the construction and in respect of which recovery has not been made previously, the value for this purpose being determined in respect of each description of materials at the rates at which the amounts of the advances made under these presents were calculated.

That if the Contractor shall at any time make any default in the performance or observance in any respect of any of the terms and provisions of the said agreement or of these presents the total amount of the advance or advances

that may still be owing to the IITB shall immediately on the happening of such default be repayable by the Contractor to the IITB together with interest thereon at twelve per cent per annum from the date or respective dates of such advance or advances to the date of repayment and with all costs charges, damages and expenses incurred by the IITB in or for the recovery thereof or the enforcement of this security or otherwise by reason of the default of the Contractor and the Contractor hereby covenants and agrees with the IITB to repay and pay the same respectively to him accordingly.

That the Contractor hereby charges all the said materials with the repayment to the IITB of the said sum of Rupees and any further sum or sums advanced as aforesaid and all costs charges, damages and expenses payable under these presents PROVIDED ALWAYS and it is hereby agreed and declared that notwithstanding anything in the said agreement and without prejudice to the powers contained therein if and whenever the covenant for payment and repayment herein before contained shall become enforceable and the money owing shall not be paid in accordance therewith the IITB may at any time thereafter adopt all or any of the following courses as he may deem best :-

Seize and utilize the said materials or any part thereof in the completion of the said works on behalf of the Contractor in accordance with the provisions in that behalf contained in the said agreement debiting the Contractor with the actual cost of effecting such completion and the amount due in respect of advances under these presents and crediting the Contractor with the value of work done as if he had carried it out in accordance with the said agreement and at the rates thereby provided. If the balance is against the Contractor, he is to pay same to the IITB on demand.

Remove and sell by public auction the seized materials or any part thereof and out of the moneys arising from the sale retain all the sums aforesaid repayable or payable to the IITB under these presents and pay over the surplus (if any) to the Contractor.

Deduct all or any part of the moneys owing out of the security deposit or any sum due to the Contractor under the said agreement.

That except in the event of such default on the part of the Contractor as aforesaid interest on the said advance shall not be payable.

That in the event of any conflict between the provisions of these presents and the said agreement the provisions of these presents shall prevail and in the event of any dispute or difference arising over the construction or effect of these presents the settlement of which has not been herein before expressly provided for the same shall be finally resolved as per provisions of clause 25 of the contract.

In witness whereof the said and by the order and under the direction of the IITB have hereunto set their respective hands the day and year first above written.

Signed, sealed and delivered by..... the said contractor in the presence of

.....

.....

Signature

Witness Name Address Signed by.....

by the order and direction of the IITB in the presence of

Signature

Witness Name Address

Appendix 'XV-A'
ESTABLISHING SITE LABORATORY AND TESTING OF MATERIALS

Equipment for conducting necessary tests including mandatory tests (as per CPWD Specifications) shall be provided and installed at site in the well-furnished site laboratory by the Contractor at his own cost. Following is the suggestive list of laboratory equipment which should be, in general or as and when required, available for setting up of laboratory at site: -

Sl. No.	Equipment	Numbers
1.	100MT compression testing machine, electrical-cum-manually operated)	1
2.	Slump cone, steel plate, tamping rod, steel scale, scoop	10
3.	Vicat Apparatus with Desk pot	3
4.	Megger & earth resistance tester	3
5.	Pumps and pressure gauges for hydraulic testing of pressure Pipes	2
6.	Weighing scale platform type 100 Kg capacity	2
7.	Graduated glass measuring cylinder	As per requirement
8.	Sets of sieves of 450mm internal dia for coarse aggregate [100mm, 80mm, 40mm; 2mm; 12.5mm, 10mm; 4.75mm complete with lid and pan]	3
9.	Sets of sieves of 20mm internal dia for fine aggregate [4.75mm; 2.36mm; 1.18mm; 600 microns; 300 microns & 150 micron, with lid and pan]	3
10.	Sieve Brushes and sieve shaker capable of 20mm and 300mm dia sieves, manually operated with timing switch assembly	5
11.	Cube moulds size 70mmx70mmx70mm	30
12.	Cube moulds size 150mmx150mmx150mm	60
13.	Ultrasonic Test Equipment (For concrete)	3
14.	Hot air oven temp. Range 50°C to 300°C- sensitivity 1 degree	3
15.	Electronic balance 600gx0.1g., 10kg and 50 kg	4
16.	Physical balance weight up to 5 kg	4
17.	Digital thermometer up to 150oc	4
18.	Air Content of concrete testing machine	3
19.	Measuring jars 100ml, 20ml, 500ml	5 Nos each size
20.	Gauging trowels 100mm & 20mm with wooden handle	12

21.	Spatula 100mm & 20mm with long blade wooden handle	12
22.	Vernier calipers 12" & 6" size	6 each
23.	Digital PH meter least count 0.01mm	6 each
24.	Digital Micrometer least count. 0.01mm	6 each
25.	Digital paint thickness meter for steel 500 microns Range	3
26.	GI tray 600x450x50mm, 450x300x40mm,300x250x40mm	3 Nos each
27.	Electric Motor mixer 0.25 cum capacity	4
28.	Rebound hammer test digital rebound hammer	4
29.	Screw gauge 0.1mm-10mm, least count 0.05	6
30.	Water testing kit	3
31.	Motorized sieve shaker	3
32.	Pruning Rods 2 Kg weight length 40 cm and ramming face 25 mm ²	4
33.	Extra Bottom plates for 15 cm cube mould	30
34.	Standard Vibration Table for gauging the cubes	2
35.	Pocket concrete penetrometer 0 to 50kg/ sq.cm	2
36.	Concrete temperature measuring thermometer with Brass protection sheath 0- 100 degree centigrade	4
37.	Mortar Cube vibrator	2
38.	Dial type spring balance preferable with zero correction knob capacity 100 kgs. reading to ½ kg.	2
39.	Counter scale capacity 1 kg and 10 kg	2
40.	Iron Weight of 5 kg, 2 kg, 1 kg, 500 gm, 20 gm, 100 gm	2each
41.	Brass Weight of 50 gm, 2 gm, 10 gm, 5 gm, 2 gm, 1 gm	2each
42.	Measuring cylinder TPX or Poly propylene capacity 100 ml, 500 ml, 250 ml, 100 ml	2each
43.	Pyrex, corning or Borosil beakers with cover capacity 500 ml, 20 ml, 50 ml	3 each
44.	Wash Bottles capacity 500 ml	12
45.	Thermometers 1-100 degree centigrade / max. and Min/ Dry and wet with table	6
46.	Set of box spanner ratchet	3
47.	Hammer 1lb& 2lb	3 each
48.	Distance metre (of 100 metre)	2
49.	Hacksaw with 6 blades	3
50.	Measuring tape (5 metre)	4
51.	Depth gauge 2 cm	6

52.	Shovels& Spade	6
53.	Steel plates 5 mm thick 75x75 cm	6
54.	Plastic or G.I. Buckets 15 ltr, 10 ltr, 5 ltr	3each
55.	Wheel Barrow	12
56.	Floor Brushes, hair dusters, scrappers, wire brush, paint brushes, shutter steel plat oil, kerosene with stove etc.	12each
57.	Any other equipment for site tests as outlined in BIS and other relevant codes/specifications and as directed by the Engineer-in-Charge .	-

SUGGESTIVE LIST OF PLANT AND EQUIPMENT AT SITE

APPENDIX – XVB
(Refer Clause 5.4)

Sl. No.	Equipment	Numbers
1.	Builders hoist/Tower Crane	As per requirement
2.	Centralized concrete batch mix plant of minimum capacity 30 cum per hour (fully automatic with computerized control)	As per requirement
3.	Excavator cum loader (JCB 3D model or equivalent).	4
4.	Compressor machine minimum 20 CFM with rock Breaker.	4
5.	DG set of minimum capacity 62.5 KVA.	As per requirement
6.	Transit Mixers/ Mini batching plant (6 cum. /hr.).	As per requirement
7.	Concrete pump	4
8.	Needle Vibrators.	10
9.	Screed leveler.	5
10.	Plate Vibrator	10
11.	Automatic Ring making machine(Reinforcement)	8
12.	Dumper/Tipper	8
13.	Reinforcement bending machine.	8
14.	Reinforcement cutting machine.	8
15.	Power driven earth rammer (Soil compactor).	4
16.	Total station with rover.	2
17.	Water tanker (Minimum capacity of 5000 liters)	4
18.	Welding machine 400 Ampere	5
19.	Screener for coarse sand and fine sand	5
20.	Centrifugal mono block water pump minimum capacity 2 HP	5
21.	Road roller 8 to 10 tons	1
22.	Vibratory roller	1
23.	Drilling machine	5 Nos.
24.	Shuttering & Necessary Props.	30000 sq.mt.
25.	Double Steel Scaffolding & Staging materials	15000 sq.mt.
26.	Air compressor	3 Nos.

27.	Floor grinding / Polishing Machines,	5 Nos.
28.	Mobile tower cranes	As per requirement
29.	Desktop Computers (All in one)	6 Nos.
30.	Laptop / I PAD for recording measurements at site	4 Nos.
31.	Inspection Vehicle for coordination with various agencies and delivery of samples for third Party Labs.	As per requirement
32.	Mobile Phones (with camera) for communication and instant photos.	8 Nos.
33.	Good Quality Camera for taking photographs & video recording of major activities for record purpose and for quality assurance.	2 Nos.
34.	Any other machinery required for compilation of the work as per decision of PMC/ Authority Engineer in Charge	As per requirement

Note:

The above list is only indicative and not exhaustive. The Bidder may be required to deploy more T&P as per requirement of work and as and when directed by the SBI/ PMC

All the above plants & equipment are to be deployed as and when required or directed by SBI/ PMC

Form of application by the Contractor for seeking Rescheduling of Milestones/ Extension of time

Name of contractor

Name of work as given in the agreement

Agreement no

Estimated amount put tender

Date of commencement of work as per agreement

Period allowed for completion of work as per agreement

Date of completion stipulated in agreement

Period for which extension of time if has been given by authority in schedule 'F' previously

	Letter No. And date	Extension granted	
		Months	Days
(a) 1 st extension			
(b) 2 nd extension			
(c) 3 rd extension			
(d) 4 th extension			
(e) Total extension previously given			

Reasons for which extension have been previously given (copies of the previous applications should be attached)

Period for which extension if applied for

Hindrances on account of which extension is applied for with dates on which hindrances occurred and the period for which these are likely to last (for cause under clause 5.2/ and 5.3)

Submitted to the authority indicated in schedule F with copy to the Engineer –in –Charge.

Signature of contractor

Dated

Reference of disputes and amount claimed for each dispute to the Conciliator. [Refer clause 25]

To
The
.....

Subject: Reference of disputes and amount claimed for each dispute to the Conciliator for settlement of disputes relating to agreement number:.....

Dear Sir,

In terms of clause 41 of the aforesaid agreement, particulars of which are given below, I/We hereby refer my / our disputes and amount claimed for each dispute to you for settlement in your capacity as Conciliator.

Name of applicant:

Whether applicant is Individual/Proprietorship Firm/Partnership Firm/Company:

Full address of the applicant:

Name of the work and contract number for which arbitration is sought:

Name of the Division which entered into contract:

Contract amount:

Date of contract:

Stipulated date of start of work:

Stipulated date of completion of work:

Actual date of completion of work (if completed):

Total number of claims made:

Total amount claimed:

Date of intimation of final bill (if work is completed):

Date of payment of final bill (if work is completed):

Amount of final bill (if work is completed):

Date of claim made to SBI/ PMC:

Date of receipt of decision from SBI/ PMC:

I/We certify that the information given above is true to the best of my/our knowledge. I /We enclose the statement of claims with amount of each claim

Specimen signatures of the applicant (Only the person/authority who signed the contract should sign)

Copy to: PMC

APPENDIX - XVIII
Notice for appointment of Arbitrator [Refer to Clause 25]

To
The

.....

Dear Sir,

In terms of clause 41 of the agreement, particulars of which are given below, I/we hereby give notice to you to appoint an arbitrator for settlement of disputes mentioned below:

Name of applicant

Whether applicant is Individual/Prop. Firm/Partnership Firm/Ltd. Co.

Full address of the applicant

Name of the work and contract number in which arbitration sought

Name of the Division which entered into contract

Contract amount in the work

Date of contract

Date of contract Date of initiation of work

Stipulated date of completion of work

Actual date of completion of work (if completed)

Total number of claims made

Total amount claimed

Date of intimation of final bill (if work is completed)

Date of payment of final bill (if work is completed)

Amount of final bill (if work is completed)

Date of request made to Reviewing Authority for decision

Date of receipt of Reviewing Authority's decision

*I/We hereby give consent for appointment of Arbitrator of --. An agreement as per Appendix- XVIII is enclosed. Or

* I/We do not give consent for appointment of Arbitrator of -----.

I/We certify that the information given above is true to the best of my/our knowledge. I/We enclose following documents.

Statement of claims with amount of claims.

Yours faithfully,

Specimen signatures of the applicant (Only the person/authority who signed the contract should sign)

Copy in duplicate to:

PMC

Appendix XIX

Undertaking by the Contractor to have complied with the provisions of Contract Labour (Regulation & Abolition) Act & Rules, EPF and ESI Obligations.

(To be submitted along with each RA/ Final Bill) (Clause 7)

I.....S/o Sh.

Authorized representative of M/s do hereby declare and undertake as under:

That in the capacity of independent Contractor for M/s at , Contractor engaged by me on behalf of for the above said work, if any, have complied with the provisions of Contract Labour (Regulation & Abolition) Act, 1970 by holding a valid license under the Act and Rules thereto. I have paid the wages for the month of These wages are not less than the minimum rates applicable to all the employees and no other dues are payable to any employee.

That I and the sub-contractor engaged by me for the above said work, if any, have covered all the eligible employees under Employees Provident Funds and Miscellaneous Provisions Act, 1952 and the Employees State Insurance Act, 1948 and deposited the Contributions for the months up to _____ and as such no amount towards EPF/ESI contributions, whatsoever is payable, is pending.

I, further declare and undertake that in case any liability pertaining to my employees or towards employees of the sub-contractor engaged by me for the above said work, if any, arises in future, I shall be fully responsible for all consequences. In case, any Liability is discharged by SBI. due to my/ my sub-contractor's lapse. I undertake to reimburse the same or SBI is authorized to deduct the same from my dues at this Project or at any other Project.

Authorized Signatory (Name & Seal of
Company)

Date:___ Witness:

Appendix XX (A)

GUARANTEE TO BE EXECUTED BY THE CONTRACTOR FOR REMOVAL OF DEFECTS AFTER COMPLETION IN
RESPECT OF WATER SUPPLY AND SANITARY INSTALLATIONS AT

(On a Non- Judicial Stamp Paper of Rs. 200/- (Rupees One Hundred Only)

The agreement made this..... Day of Two thousand and between
..... (hereinafter called the GUARANTOR of the one part) and the (herein after called
the Client of the other part).

WHEREAS THIS agreement is supplementary to the contract. (Herein after called
the Contract) no..... dated and made between the GUARANTOR OF THE ONE
PART AND the Client of the other part, whereby the contractor interilic, undertook to render the work in the
said contract recited structurally stable workmanship and use of sound materials.

AND WHEREAS THE GUARANTOR agreed to give a guarantee to the effect that the said work will remain
structurally stable and guarantee against faulty workmanship, finishing, manufacturing defects of materials and
leakages etc.

NOW THE GUARANTOR hereby guarantee that work executed by him will remain structurally stable, after
the expiry of maintenance period prescribed in the contract for the minimum life of ten years, to be reckoned from
the date of completion of work, to be reckoned after the expiry of maintenance period prescribed in the contract.
The decision of the Engineer- in- Charge with regard to nature and cause of defects shall be final.

During the period of guarantee the guarantor shall make good all defects to the satisfaction of the Engineer-
in- Charge calling upon him to rectify the defects, failing which the work shall be got done by the Client by some
other contractor at the guarantor's cost and risk. The decision of The State Bank of India (SBI)/ PMC as to the cost
payable by the Guarantor shall be final and binding.

That if the guarantor fails to make goods all the defects, commits breach there-under then the guarantor will
indemnify the Principal and his successor against all loss, damage cost expense or otherwise which may be incurred
by him by reason of any default on the part of THE GUARANTOR in performance and observance of this
supplementary agreement. As to the amount of loss and/or damage and/or cost incurred by the Client the decision
of The State Bank of India (SBI)/ PMC will be final and binding on the parties.

IN WITNESS WEHREOF those presents have been executed by the obligator. And by for and on behalf of
the Client on the day, month and year first above written.

Signed sealed and delivery by OBLIGATOR in the presence of:

- 1.
- 2.

SIGNED FOR AND ON BEHALF OF ----- BY in the present of:

- 1.
- 2.

Appendix XX (B)GUARANTEE BOND TO BE EXECUTED BY THE CONTRACTOR FOR ANTI TERMITE TREATMENT AT

(On a Non- Judicial Stamp Paper of Rs. _____ /- (Rupees _____ Only)

The agreement made this..... Day of Two thousand and between
 (hereinafter called the GUARANTOR of the one part) and the (herein after called
 the Client of the other part).

WHEREAS this agreement is supplementary to a contract (Herein after called the Contract)
 no..... dated..... and made between the GUARANTOR OF THE ONE PART AND the
 Client of the other part, whereby the contractor interilic, undertook to render the building and structures in the said
 contract recited completely Anti Termite proof.

AND WHEREAS GUARANTOR hereby guarantee that the effect that the building and structures will remain
 completely Anti Termite proof for TEN years, to be reckoned from the date after the expiry of maintenance period
 prescribed in the contract.

NOW THE GUARANTOR hereby guarantees that Anti Termite treatment given by him under agreement Item No.
, will render the structure completely Anti Termite proof and the minimum life of such Anti Termite
 treatment given by him will render the structures completely leak proof and the minimum life of such Anti
 Termite treatment shall be TEN years, to be reckoned from the date of completion of work.

Provided that THE GUARANTOR shall be not responsible for leakage caused by earth quake or structural defects
 or misuse of Building or alteration and for such purpose:

misuse of Building shall mean any operation which will Anti Termite treatment to the Building.

Alteration shall mean construction of any addition or construction adjoining to existing Building Whereby Anti
 Termite treatment is removed/damaged in parts;

The decision of the Engineer with regard to nature and cause of defects shall be final.

During this period of guarantee the guarantor shall make good all defects and in case of any defect being found to
 render the Anti Termite proof treatment of the building to the satisfaction of the Engineer at his cost and shall
 commence the work for rectification within seven days from the date of issue of the notice from the Engineer calling
 upon him to rectify the defects failing which the work shall be got done by the Client by some other contractor at
 the GUARANTORS cost and risk. The decision of the Engineer as to cost, payable by the Guarantor shall be final
 and binding.

That if the guarantor fails to execute the Anti Termite treatment, or commits breach there-under then the guarantor
 will indemnify the Principal and his successor against all loss, damage, cost of expenses or otherwise which may be
 incurred by him by reason of any of any default on the part of the GUARANTOR in performance and observance
 of this supplementary agreement.

As to the amount of loss and/or cost incurred by the Client on the decision of the PMC/ Authority PMC/
 Authority PMC/ Authority PMC/ Authority Engineer in Charge will be final and binding on the parties.

IN WITNESS WHEREOF those presents have been executed by the obligator___and by_by for and on
 behalf of _____ on the day, month and year first above written.

Signed sealed and delivered by OBLIGATOR in presence of: 1.__2.

SIGNED FOR AND ON BEHALF OF ----- BY_In _____ presence _____ of:

1.____ 2. ____

Appendix XX (C)GUARANTEE BOND TO BE EXECUTED BY THE CONTRACTOR FOR WATER PROOFING TREATMENT FOR ROOF/ PODIUM AT(On a Non- Judicial Stamp Paper of Rs. 200/- (Rupees One Hundred Only)

The agreement made this..... Day of Two thousand and between
 (hereinafter called the GUARANTOR of the one part) and the (herein after called
 the Client of the other part).

WHEREAS this agreement is supplementary to a contract (Hereinafter called the Contract) no..... dated and made between the GUARANTOR OF THE ONE PART AND the Client of the other part, whereby the contractor interilic, undertook to render the building and structures in the said contract recited completely water and leak proof.

AND WHEREAS GUARANTOR hereby guarantee that the effect that the building and structures will remain completely water and leak proof for TEN years, to be reckoned from the date after the expiry of maintenance period prescribed in the contract.

NOW THE GUARANTOR hereby guarantees that water proofing treatment given by him under agreement Item No....., will render the structure completely leak proof and the minimum life of such water proofing treatment given by him will render the structures completely leak proof and the minimum life of such water proofing treatment shall be TEN years, to be reckoned from the date of completion of work.

Provided that THE GUARANTOR shall be not responsible for leakage caused by earth quake or structural defects or misuse of Basement or alteration and for such purpose:

a. misuse of roof shall mean any operation which will damage proofing treatment like chopping of fire wood and things of the same nature which might cause damage to the roof of the building.

β. Alteration shall mean construction of any additional storey or part of the roof or construction adjoining to existing roof whereby proofing treatment is removed in parts;

z. The decision of the Engineer with regard to nature and cause of defects shall be final.

During this period of guarantee the guarantor shall make good all defects and in case of any defect being found to render the building water proof to the satisfaction of the Engineer at his cost and shall commence the work for rectification within seven days from the date of issue of the notice from the Engineer calling upon him to rectify the defects failing which the work shall be got done by the Client by some other contractor at the GUARANTORS cost and risk. The decision of the Engineer as to cost, payable by the Guarantor shall be final and binding.

That if the guarantor fails to execute the water proofing, or commits breach there-under then the guarantor will indemnify the Principal and his successor against all loss, damage, cost of expenses or otherwise which may be incurred by him by reason of any of any default on the part of the GUARANTOR in performance and observance of this supplementary agreement.

As to the amount of loss and/or cost incurred by the Client on the decision of the PMC/ Authority PMC/ Authority PMC/ Authority PMC/ Authority Engineer in Charge will be final and binding on the parties.

IN WITNESS WHEREOF those presents have been executed by the obligator___and by_by for and on behalf of _____ on the day, month and year first above written.

Signed sealed and delivered by OBLIGATOR in presence of:

1.____2.

SIGNED FOR AND ON BEHALF OF ----- BY_In presence of:

1.____ 2. ____

Appendix XX (D)GUARANTEE BOND TO BE EXECUTED BY THE CONTRACTOR FOR WATER PROOFING TREATMENT (UNDER FLOORS) AT.....(On a Non- Judicial Stamp Paper of Rs. 200/- (Rupees One Hundred Only)

The agreement made this..... Day of Two thousand and between
 (hereinafter called the GUARANTOR of the one part) and the (herein after called
 the Client of the other part).

WHEREAS this agreement is supplementary to a contract (Herein after called the Contract)
 no..... dated and made between the GUARANTOR OF THE ONE PART AND
 the Client of the other part, whereby the contractor interilic, undertook to render the toilets, terraces and such
 related areas of the building in the said contract recited completely water and leak proof.

AND WHEREAS GUARANTOR hereby guarantee that the effect that the said toilets, terraces and such related
 areas will remain completely water and leak proof for TEN years, to be reckoned from the date after the expiry
 of maintenance period prescribed in the contract.

NOW THE GUARANTOR hereby guarantees that water proofing treatment under the floors in toilets, terraces and
 such related areas given by him under the contract, will render the areas completely water and leak proof and the
 minimum life of such water proofing treatment shall be TEN years, to be reckoned from the date of completion
 of work i.e. to be reckoned from the date after the expiry of maintenance period prescribed in the contract.

Provided that THE GUARANTOR shall be not responsible for leakage caused by earth quake or structural defects or
 misuse of floors or alteration and for such purpose:

a. misuse of such floors shall mean any operation which will damage proofing treatment and things of the same
 nature which might cause damage to the such floors of the building.

β. Alteration shall mean construction of any addition or construction adjoining to existing such floors whereby
 proofing treatment is removed in parts;

z. The decision of the Engineer with regard to nature and cause of defects shall be final.

During this period of guarantee the guarantor shall make good all defects and in case of any defect being found to
 render the building water proof to the satisfaction of the Engineer at his cost and shall commence the work for
 rectification within seven days from the date of issue of the notice from the Engineer calling upon him to rectify the
 defects failing which the work shall be got done by the Client by some other contractor at the GUARANTORS cost
 and risk. The decision of the Engineer as to cost, payable by the Guarantor shall be final and binding.

That if the guarantor fails to execute the water proofing, or commits breach there-under then the guarantor will
 indemnify the Principal and his successor against all loss, damage, cost of expenses or otherwise which may be
 incurred by him by reason of any of any default on the part of the GUARANTOR in performance and observance
 of this supplementary agreement.

As to the amount of loss and/or cost incurred by the Client on the decision of the PMC/ Authority PMC/
 Authority PMC/ Authority PMC/ Authority Engineer in Charge will be final and binding on the parties.

IN WITNESS WHEREOF those presents have been executed by the obligator___and by by for and on
 behalf of on the day, month and year first above written.

Signed sealed and delivered by OBLIGATOR in presence of: 1. __2.

SIGNED FOR AND ON BEHALF OF BY ____In presence of:
 1. ____ 2. ____

Appendix XX (E)

GUARANTEE BOND TO BE EXECUTED BY THE CONTRACTOR IN RESPECT OF SEISMIC/ MECHANICAL
JOINT WORKS AT

(On a Non- Judicial Stamp Paper of Rs. 200/- (Rupees One Hundred Only)

The agreement made this _ day of _ two thousand and twenty five between S/o _____ (hereinafter called the GUARANTOR of the one part) and the _____ (hereinafter called the Client of the other part).

WHEREAS this agreement is supplementary to a contract (Herein after called the Contract) no. dated. and made between the GUARANTOR OF THE ONE PART AND the Client of the other part, whereby the contractor interilic, undertook to render the Seismic/ Mechanical Joint System/Work under agreement Item No. in the said contract recited safe against water leakage, unsound material and workmanship and defective anodizing etc.

AND Whereas GUARANTOR agreed to give a guarantee to the effect that the Seismic/ Mechanical Joint System/Work will remain safe against water leakage, unsound material and workmanship and defective anodizing for TEN years from the date of completion of work, to be reckoned from the date after the expiry of maintenance period prescribed in the contract.

NOW THE GUARANTOR hereby guarantees that the Seismic/ Mechanical Joint System/Works executed by him will remain safe against water leakage, unsound material and workmanship and defective anodizing for TEN years from the date of completion of work, to be reckoned from the date after the expiry of maintenance period prescribed in the contract.

Provided that the guarantor shall not be responsible for any damage caused by earth quake or misuse of the Seismic/ Mechanical Joint System/Work or alteration and for such purpose:

misuse of the Seismic/ Mechanical Joint System/Work mean any operation which will damage the Aluminum Work executed by him;

alteration shall mean construction of an addition to the Seismic/ Mechanical Joint System/Work executed by him or part thereof or construction adjoining to the existing Seismic/ Mechanical Joint System/Work whereby the Seismic/ Mechanical Joint System/Work is likely to be effected/ damaged;

The decision of the Engineer with regard to nature and cause of defects shall be final.

During this period of guarantee, the guarantor shall make good all defects and in case of any defect being found to render the Seismic/ Mechanical Joint System/Work non-functional to the satisfaction of the Engineer at his cost and shall commence the work for rectification within seven days from the date of issue of the notice from the Engineer –in-Charge calling upon him to rectify the defects failing which the work shall be got done by the Client by some other contractor at the GUARANTORS cost and risk. The decision of the Engineer as to cost, payable by the Guarantor shall be final and binding.

That if the guarantor fails to execute the Seismic/ Mechanical Joint System/Work, or commits breach there- under then the guarantor will indemnify the Principal and his successor against all loss, damage, cost of expenses or otherwise which may be incurred by him by reason of any of any default on the part of the GUARANTOR in performance and observance of this supplementary agreement. As to the amount of loss and/or cost incurred by the Client on the decision of the PMC/ Authority PMC/ Authority PMC/ Authority PMC/ Authority Engineer in Charge will be final and binding on the parties.

IN WITNESS WHEREOF those presents have been executed by the obligator _____ and by _____ for and on behalf of _____ on the day, month and year first above written.

Signed sealed and delivered by OBLIGATOR in presence of: 1. _____ 2. _____

SIGNED FOR AND ON BEHALF OF _____ BY _____ In presence of:

END OF PART B